

RANK AND TALENT;

A NOVEL.

BY THE

AUTHOR OF "TRUCKLEBOROUGH-HALL."

When once he's made a Lord,
Who'll be so sassy as to think he can
Be impotent in wisdom? COOK.

Why, Sir, 'tis neither satire nor moral, but the mere passage of an history; yet there are a sort of discontented creatures, that bear a stingless envy to great ones, and these will wrest the doings of any man to their base malicious appliment. MARSHON.

IN THREE VOLUMES.

VOL. III.

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RANK AND TALENT.

CHAPTER I.

“——th’ high vulgar of the town,
Which England’s common courtesy,
To make bad fellowship go down,
Politely calls good company.”

COOPER.

We left Dr. Crack at the end of the last volume in a fair way of falling deeply in love with Miss Henderson, and there, for the present, we will leave him still, conscious that no one envies him. Our attention is now required in another quarter. The gentle, unobtrusive Clara Rivolta, whom nature indeed had never destined to be a heroine or even to be talked about, continued to undergo with much forbearance and quietness the persecuting attentions of the fragrant Henry Augustus Tippetson, who divided his time and attentions between the Countess of Trimmerstone and the granddaughter of old John Martindale. What points of resemblance there were between these two ladies is not easy to say. Tippetson, however, thought much of rank: it was so great an honor to be intimate with a countess. Every body said that Tippetson was too intimate with the Countess, and another every body said that he was going to be married to Clara Rivolta.

Our readers must have observed that we are in general tolerably candid. But sometimes we do find ourselves glowing with an indignation not easily expressed, and feeling a contempt, for the conveyance of which no ordinary terms or allowed language will suffice. This contempt and this indignation do we now feel for that most execrable fribble, for that most attenuated shred of a dandikin, Henry Augustus Tippetson. Singleton Sloper is a lazy, ignorant lob, and Dr. Crack is a conceited puppy; but in neither of these two do we discern any thing at all equivalent in moral turpitude to that effeminate, that more than unmanly, that almost inhuman selfishness that disgraces, or rather constitutes, the character of Tippetson. This young gentleman had learned by rote the common places of polished society, and he played them off with a vile, cunning dexterity on the simple Clara

Rivolta, till she was almost deceived as to his character. Her mind had been injured, though unintentionally, by the trumpery sentimentality of Miss Henderson's foolish correspondence. The circumstances, also, of Mr. Martindale's oddness of character, of Signora Rivolta's retired habits, and of the Colonel's general indifference to every thing, allowed to Clara but little opportunity of seeing or learning the world and its moral elements.

Markham now but seldom paid his visits. When he did, he was sure to find Tippetson there before him, or soon after he entered the house; and such was the cunning and craftiness of that young fox, that, whenever Markham was present, he contrived to pay such attentions as might corroborate to his eye the report of an engagement, and yet such as Clara could not pointedly or freezingly repel. To Markham, therefore, it seemed almost demonstrated that there subsisted an implicit engagement or understanding between the two; and as Markham saw in Tippetson nothing but the perfumed fop, and was not aware of his dirty cunning, he began to fancy that he had given Clara credit for more discernment than she possessed, when she could tolerate and be pleased with the attentions of such an unfurnished blockhead.

The days passed away to Clara very heavily. There was but little comfort to her in life, for there was little satisfaction in her situation. Without exactly knowing it, she missed the intelligent conversation of Markham, which was but imperfectly supplied by the common-place prate of Tippetson. She did not feel that she loved Markham, or that she hated Tippetson; but her feeling was that of dissatisfaction with herself. It was not a feeling of moral pain, but of moral uneasiness. There was nothing in amusement that amused her, and there was nothing in pleasure that pleased her. Her mother was intelligent and parentally kind; but there was in the construction of her mother's mind that which rendered it unfit for a dexterous and accommodating sympathy with hers. Her mother had all the wisdom of a Mentor, but could not lay aside the majesty of a Minerva. It is a painful and disagreeable state of being, when a soul of natural and ardent sensibility has had its feelings wrongly excited and improperly directed, and when, from the disappointment which naturally results from this, it is beginning to settle down into the coldness of apathy and indifference. This is a condition in which multitudes have been placed; and shame be the portion of those who have placed them therein. "In the transition of this

bitter hour” the strength of the mind is tried, and the destiny for life is decided.

Clara Rivolta was at this time in such state of mind, that had Tippetson made an offer of his hand, and had her parents approved it, she would have accepted the offer. And on the other hand, had Markham proposed to her, and had her parents expressed the slightest opposition, she would without any painful effort have refused him. To her mother’s mental discernment and strength of character was she indebted for the prevention of the first of these evils. Tippetson saw, as we have said above, that Signora Rivolta knew him, and he was therefore well aware that he could not have any hope of obtaining Clara’s hand till he had gained her affections, and had become essential to her happiness. How soon that was likely to take place is not easy to say. For greater coxcombs than he have been loved by women in other respects sensible and rational.

The mind of Tippetson, if such expression be consistent, was of such a nature as to be totally unable to exist without some stimulus, and yet absolutely without power to frame amusement or employment for itself. He had an ambition, but not a laborious ambition; it was composed of and impelled by trick and artifice. He could only ascend by creeping; and he found it easier to distinguish himself by singularity than by strength, to attract attention by eccentricity than to gain notice by excellence. He had been for a long while Clara’s companion. By the sufferance of the odd old gentleman, Mr. John Martindale, he had been in the habit of considering and finding himself at home at their house. He had never so far committed himself as to give Clara an opportunity of refusing him, nor had his behaviour to her been such as she could at all take notice of. There was nothing in his manner which demanded an explanation; and had he been asked what were his intentions, he could have replied that no one had any right to ask such a question from any part of his conduct. In the same manner as he deported himself towards Clara Rivolta did he, considering the different circumstances of the parties, behave towards the Countess of Trimmerstone. There was, however, this difference in the two cases; viz. that while his attentions were indifferent to the former, they were manifestly agreeable to the latter. In his company Clara was grave and silent, but Lady Trimmerstone cheerful and loquacious. Her ladyship’s ignorance attributed to the young gentleman a high degree of fashionable and scientific

knowledge. Few were the Countess's friends and intimates among persons of real consequence in society. Her parties were as numerously attended as need be, and the report of them looked as well in the Morning Post as the record of any other congregation of the superfine. But though many were her visitors, few were her friends. The cards which announced calls did not bear the names of those with whom she was personally intimate; and if by any accident she met any of the number, their chilling, freezing formality kept her at a mighty distance from them; and so far as acquaintance went, her intimacy with them was no more than if she had been presented at the court of the Emperor of China: she had an audience, but not any understanding of the party. We have, in the course of this narrative, mentioned it as a misfortune that Clara Rivolta had a female friend. We may here state that it was a misfortune that the Countess of Trimmerstone had not a female friend; for the Dowager Lady Martindale had taken herself quite out of the world, and had gone to reside at a distance from town, that she might give her undivided attention to her family. Of her eldest son she had long ceased to have any hopes; and of her daughter-in-law such was her opinion, that she was happy in any excuse to avoid her society.

The Earl of Trimmerstone, who had cared but little for Miss Sampson, now cared less for Lady Trimmerstone. His own acquaintance with that part of polite society with which his lady might with propriety have been made intimate, was very small and contracted; and he took little pains to form any friendships or intimacies for her with them. Every body pitied her, but nobody patronised her. Some, indeed, have gone so far as to say, that whenever they called, they were sure to see Mr. Tippetson there. Some grave ladies thought of hinting to the Countess the impropriety of such familiarity and unreasonable intimacy with this young gentleman. But they thought again that it was no business of theirs; and so they let her alone.

It would be an ingenious work for an ingenious man to write an essay on every body. Many can write well on nothing; but who can write well on every body? Every body is a paradox and a contradiction. Every body said that Tippetson was always with the Countess of Trimmerstone; and every body said that Tippetson was always with Clara Rivolta. This could not be true. Clara was not aware of the young gentleman's intimacy with the Countess; nor had she ever heard the censorious remarks which the calumnious and wicked world had circulated concerning him. But the

Countess was aware of his intimacy with the family of old John Martindale, and of the intention with which that intimacy was kept up. Frequently would she make allusion to it in such style of expression, as to lead the young puppy to imagine that she should, in the event of his marriage, feel the loss of his company. Such indeed was the impudence of this young coxcomb, that he has actually been heard to say that he had not quite made up his mind whether he should take Clara to Scotland, or the Countess to Italy.

All this time, where, it may be asked, was the Earl of Trimmerstone? Where, indeed! Every where but where he ought to be. Not having the fear of old John Martindale's will before his eyes; either forgetting what the old gentleman had threatened, or flattering himself that the language of the will would be altered, he did not for any great length of time abstain from the indulgence of gaming; and though he was by no means a desperate gamester, setting his life on the cast of a die, yet he could not live comfortably without the stimulus; and he did not like to be called a methodist. He still kept horses at Newmarket, but not in his own name. His patriotism was still so great, that for the pure purpose of training up a breed of horses which may make the English cavalry the glory of the world, he continued to dawdle away his time with stable-boys, and lose his money to sharpers. He gamed elsewhere as well as at Newmarket; and sometimes he was a winner. He kept up but little intercourse with his opulent relative; for he was not able to give a very good account of himself. He had taken his seat in the House of Lords, but he had not much distinguished himself as an orator or a voter; for he had once been so careless as to give a proxy against ministers: he apologised for it afterwards, and promised to be more careful for the future. He was grievously negligent of home, and thought that to be the most melancholy hour of the twenty-four, in which having nothing else to do, and no where else to go, he was almost necessitated to return to his own home. We have not described this noble Earl as an ill-tempered or churlish man: he was indeed rather good-humored than otherwise; but his habits and pursuits had rendered him exceedingly anti-domestic. He never spoke a word of a harsh nature to his Countess; and even when he had lost at play, which happened more frequently than the reverse, he did not swear, stamp, or rave; nor was he moody and melancholy; but he would walk restlessly about the house with his hands in his pockets, whistling or humming odds and ends of old songs. When he was a winner, his raptures

were not great, and he kept his joys to himself in silent meditation. Thus much for vindication of his behaviour in the married state may be said for him, that he did not deport himself very differently in marriage and in courtship. He had never been a very ardent or attentive lover; and no expectations were therefore raised by the lover's attentions to be frustrated by the husband's neglect. He suffered some disappointment indeed in the gratifications derived from exalted rank. He found himself of no more consequence or importance now that he was a noble Earl, than when he was simply and plainly Mr. Martindale; and though this disappointment did not sour his temper, it rendered him still more negligent and careless. Such was the stimulus that his mind required, that he suffered himself not unfrequently to be led into scenes and fooleries by which the dignity of his character was not a little impaired. It may be very well for lads just come from school, and abounding more in high spirits than discretion, to transgress occasionally the limits of strict decorum and grave propriety of demeanour; but it does not become right honorable hereditary legislators approaching the middle of life to play boy's pranks, and disturb the peace of the neighbourhood. Such conduct does not add greatly to human dignity; and though very amusing for the time being, is not always productive of any permanent satisfaction.

As one of these frolics to which we here allude is somewhat connected with the development of our history, we will relate it. One evening, towards the latter end of May, when the days are at such an inconvenient length that it is hardly candle-light by dinner-time, the Earl of Trimmerstone and Singleton Sloper had agreed to dine at a club-house at nine in the evening, together with a set of honorable ones of the same slip-shod dignity as themselves. Every thing was ordered to be prepared on the most sumptuous possible scale; and though the weather was not warm enough to render ice a luxury, the apartment was ordered to be raised to such a temperature that iced wines might be properly enjoyed. The Earl and his friend did not design to be at the expense of this entertainment; but promised themselves that a young gentleman who was to be of the party, would, for the sake of the honor of such high society, suffer himself to be honorably deprived of enough, and more than enough, to defray the cost of the banquet. The bait appeared to take; but as neither the Earl nor his friend Sloper was absolutely dishonest or addicted to play unfairly, as they both trusted rather to their own skill and experience than to any dishonorable artifices, they were most

cruelly and miserably disappointed. For our own part, such is our fastidiousness and delicacy, that we think it at least dishonorable, if not absolutely dishonest, to sit down deliberately to play for large stakes where there is a supposed great advantage in skill or experience; and therefore we do not think that money is fairly won under such circumstances, even though only what is called fair play has been used. We are, however, very glad, when in such cases the knowing ones are taken in. So it happened in the present case. Whatever the young gentleman, whom his lordship intended to pluck, wanted in experience, he seemed to make up by natural quickness and observant attention; and without any design of deep play, he was led on “deeper and deeper still.” Now, Singleton hinted to his lordship that it would be absolutely necessary to apply the “vinous stimulus,” as Dr. Crack called it, more copiously to their too vigilant friend. But whether it was from superior strength and vigor of constitution in the young man, or from the anxiety and agitation of the others, it so happened that the Right Hon. the Earl of Trimmerstone and his worthy friend Mr. Singleton Sloper felt most powerfully the effects of the wine. So much did they feel its effects, that they were compelled to leave off play after being considerable losers. The young gentleman, who had not the slightest supposition that any conspiracy had been formed against him, though he, perhaps, might not be reluctant, with his apparent simplicity, to form a conspiracy against another, felt in high spirits, pleased with his winnings, and proud of the honor of an acquaintance with a man of rank. At an early hour in the morning the party separated; but the young gentleman, as his home lay partly in the same direction, accompanied the Earl and his friend Mr. Sloper. By this time all three of them were under the influence of strong drink, and they were disposed to be exceedingly facetious. The Earl and his friend were on very intimate terms with the watchmen of their own immediate neighbourhood; but, to speak again after the manner of Dr. Crack, “the vinous stimulus had obfuscated their geographical apprehension,” so that they roamed beyond their usual precincts, amusing themselves as they went by copiously complying with the exhortation inscribed on many doors—“knock and ring.” This was not unobserved, nor did it pass unrebuked by the trusty guardians of the night. Advice and reproof are seldom very agreeable; and they are more frequently received with nominal than with real thanks. In the present instance they were most uncourteously received, seeing that an hereditary legislator ought certainly to know how to conduct himself

without any monitory assistance from a watchman. The consequence of this indisposition to take good advice, terminated in the unpleasant and mortifying catastrophe of sending a noble earl and two illustrious commoners to the watch-house. But this was not effected by the arm of one individual watchman, nor was it accomplished till a great conflict had taken place between the parties; by the exertions of which conflict the already inebriated gentlemen were reduced to a state of nearly unconscious apathy and insensibility.

If this chapter were not already sufficiently long, we should certainly be tempted to lengthen it by a dissertation on dignity and propriety: in which dissertation we should attempt to demonstrate that nobility and gentry, however ornamental to society under certain conditions, may become, by means of weakness of head and emptiness of mind, a most intolerable nuisance; and we should also show that the homage which is paid to exalted station, undignified by exalted conduct, is the mere sycophancy of selfishness, altogether undesirable to those to whom it is offered, and disgraceful to those who offer it; and we should likewise have set forth, for the edification of the Toms and Jerrys of high life, the bitterness of mortification which is felt by that amiable class when they perceive that those whom they consider as their inferiors actually look down upon them with contempt. Still farther, it would be our laudable endeavour to remind those who squander away their means by low-minded pursuits, are tolerably sure to remain for life in that low and vulgar level to which they have reduced themselves; and lastly, though not least, we should say, with the utmost seriousness of manner, that the low-minded, profligate, and vulgar extravagants in high life, proud as they may be of their loyalty and toryism, do more rapidly and surely hasten the disorganization of society and the downfall of its Corinthian capital, than all the declamations of grumblers general, the washy sophistries of puling debating societies, or the clamorous mob of noisy radicals.

For this fine dissertation we have no room; and we pity our readers that they cannot have the pleasure of reading the development of the above scheme.

CHAPTER II.

“The next advantage
Will we take thoroughly.”

SHAKSPEARE.

That very same worthy magistrate before whom the Hon. Philip Martindale was obliged, as above recorded, to enter into an engagement to keep the peace towards Mr. Isaac Solomons, junior, of St. Mary Axe, in the county of Middlesex, did again cast magisterial eyes on the same person under the style and title of the Right Hon. the Earl of Trimmerstone. Before his lordship and his companions made their appearance before the magistrate, they were perfectly sober, and of course completely mortified. They could not escape without betraying their names, and they hoped, by means of a private hearing, to escape a public exhibition; but as soon as they made their appearance, and the complaint was exhibited against them, the magistrate uttered an exclamation of surprise, and addressed his lordship by name. The secret being thus published, the Right Honorable and his two companions made their peace with justice as soon as possible, and retired. Now, as soon as this event was made public, the Earl of Trimmerstone expected a visit from his caustic and opulent relative, Mr. John Martindale. Nor was he disappointed in the expectation.

His lordship's town mansion was magnificently furnished: this was owing to the taste of the Countess. Mr. Martindale, who waited some minutes in the drawing-room before his cousin made his appearance, was, when his lordship entered, surveying the apartment with a sneer of contempt.

“Good morrow; I greet you well;” said the old gentleman. “I have called to pay my compliments, and to offer my cordial congratulations on your very providential escape from Bridewell, of which I think that your lordship has been recently in very imminent danger.”

His lordship could not afford to quarrel with his wealthy relative; and therefore, though most deeply mortified by this salutation, he was under the absolute necessity of putting up with it, and preparing himself to expect as much more. It is very painful for a man of rank, who has passed some years beyond the age of boyhood, to be snubbed, schooled, and lectured. There is not one man in a thousand who would put up with it. But so it was that, step by step, this Hon. Earl of Trimmerstone had been entangled in the snares of dependence, and was now unable to extricate himself. He was caught in a net which he had not strength to break or patience to untie.

In a subdued and sheepish tone, he replied to his cousin's taunts: "I am very sorry, sir, that I was so much off my guard."

"Oh! yes, no doubt, you are very sorry; but I think if I had such a fine drawing-room as this, I should not leave it so much as you do, nor endanger its decorations by the dice-box. For I suppose you have been at your usual amusements. Oh! Philip, Philip—I beg pardon—I mean, my lord; if your lordship spends all your lordship's means in gambling, pray what do you intend to do in order to keep up your dignity. You are too great a man to earn a living for yourself. Your lordship has nothing before you but beggary and dependence."

His lordship was not quite such a simpleton as to fly out into a violent passion; nor was he so far sunk in self-esteem as to bear this language with unreplying patience. He replied, with a little more firmness:

"I hope, sir, I have some better prospect than this, which you are pleased to lay out for me. There do exist many men who were giddy in youth, and are respectable in age."

"Very likely, very likely," replied the old gentleman. "I understand you, my lord."

"My remark, sir, was not designed to be of any particular application. I only spoke generally."

"Oh, oh! then you disclaim all reference to me, when you speak of respectability in age."

"Indeed, sir, you put a very unfavorable construction on my words as well as on my actions."

“Unfavorable construction! Now, pray, my lord, as you are so very ingenious a personage, will you be so kind as to enlighten my ignorance so far as to tell me what you would call a favorable construction of such an elegant and accomplished feat as that which you performed last night, in company with that paragon of wit and elegance, Mr. Singleton Sloper? Only suppose that you wished to communicate that truly noble and gentleman-like transaction to the world through the medium of the press, and suppose the very kind and accommodating reporters were to give you leave to use your own language, how would you express yourself? In the first place, perhaps, you would think it an unfavorable construction to say that you were in company with Mr. Singleton Sloper. Or, perhaps, if you could not conscientiously suppress the fact, you would attribute the same to your most humane and kind consideration in taking notice of a vulgar blockhead, whom nobody else would deign to honor with their company and countenance. And pray, my lord, what is the most favorable construction your lordship would put upon the simple and silly fact of reeling about the streets in a state of intoxication? I suppose you would take credit to yourself for being above the milksop system now so fashionable; and magnanimously reverting to the practice of the good old times, by making a beast of yourself. And your knocking and ringing at the doors you no doubt designed as a gentle admonition to your neighbours, that they should not spend so much of their precious time in slothful sleep. There, my lord, is that construction favorable enough?”

His lordship smiled, and said: “Perfectly so, sir; perhaps rather too flattering.”

The old gentleman smiled not when his lordship smiled; but changing a sneer for a frown, he said: “And what construction, my lord, is favorable enough to your taste to be put on the fact of your money, or rather your wife’s money, lost at the gaming-table?”

His lordship started, and looked pale; and the amount of his loss came over him like a dream.

“Yes,” continued the old gentleman, “I will totally acquit you of any intention of losing your money; but can you acquit yourself of a mean and contemptible design of plundering a simple and untutored boy, by the assistance of that contemptible fellow, Singleton Sloper?”

“Mr. Singleton Sloper, sir,” replied the Earl, “is a gentleman of good family.”

“So much the worse for his family, for they have reason to be ashamed of him; and you, my lord, would never have taken notice of him, or associated with him, but for purposes of gaming. I know the whole transaction. I know that you had encouraged Sloper to induce that simple boy to sit down and play with you, and that you made yourself sure of repaying yourself by his means for the losses which you had yourself sustained. You cannot deny the fact; and I think you cannot put a very favorable construction upon it.”

All that the old gentleman said was perfectly true, and the Right Hon. Earl knew it to be so; and though he had not been ashamed to act thus, he did feel ashamed at the mention of it.

It is very unpleasant to have a serious accusation brought home so pointedly; but it is more unpleasant still not to be able to say a single word by way of extenuation. His lordship, not caring to be speechless and self-convicted, replied:

“There was nothing but fair play, sir, used or intended; as is manifest from the fact of my having been loser.”

“Whatever was intended, I know not; but I cannot call it fair play to take advantage of youth and inexperience: that, I know, you designed to do; and I am very happy the design was frustrated. My Lord of Trimmerstone, you and I must come to a better understanding. I will not suffer you to suppose that my property is to be made answerable for your gambling-debts. I have once told you the condition on which my will was made; and on that condition I am well assured you are never likely to receive a shilling of my property. But as I have no design to leave you without some legacy, I will tell you now that I will make one more, and that a final alteration. A legacy of thirty thousand pounds you will find in my last will and testament. You know best how much of that is already anticipated; and as a friend, I would advise you to make the best of what remains. It must be a miracle of reformation that will make any change in this disposal.”

Without waiting for a word in answer, the old gentleman rung for his carriage and departed, leaving the Right Hon. the Earl of Trimmerstone in a very disagreeable position.

As soon as Mr. Martindale had departed, the Right Honorable began to think again most soberly and seriously of his perplexities and embarrassments. He made a great variety of calculations, but none of them were definite or satisfactory. The figures and the sums whirled round and round in his head, and all was confusion. He scarcely knew, nor could he by any means make out, whether or not he was solvent. He knew nothing more of his own affairs than that he was solicited for money which he could not pay; and when by any contrivance he could put off the time of payment, that postponement set him at rest for the time being.

There was no one with whom he could consult. He had not a single friend in the world on whose good counsel he could rely. As for Sir Gilbert Sampson, he was afraid or ashamed to mention to him a word on the subject; and indeed there had been lately a great coolness between them, arising from the very negligent behaviour of his Lordship to the Countess. And she, who should have been his best friend and most confidential adviser, had very little capacity or inclination for prudential and deliberate thought.

When noblemen and gentlemen marry for the sake of money, they ought always to take especial care that they have money enough: for it is much better to suffer many disadvantages from pecuniary deficiency, and to remain unmarried, than to marry one who has not money enough to answer all purposes. Ladies with small fortunes may not thank us for this remark; but they will, on second thoughts, consider that such a husband as the Right Hon. the Earl of Trimmerstone is not worth having. It is not unlikely that his lordship would, had the law allowed him so to do, have married another wife for the sake of pecuniary aid, and have deserted the daughter of Sir Gilbert Sampson. Perhaps it might be an improvement in the system of accommodating legislation, if hereditary legislators would allow themselves the privilege of marrying two or more wives, provided these wives were all of plebeian extraction; by such means a greater number of city people might purchase nobility for their daughters, and the estates of the titled be relieved from many of their embarrassments. But legislation is not our present subject; so to proceed.

The Earl of Trimmerstone finding that thinking was a disagreeable and unpleasant occupation, and not being much allured to stay at home by the magnificent decorations of his drawing-room, which Mr. Martindale had so

much admired, took his departure without any inquiries after the health or even existence of the Countess. He sauntered about the streets, and looked at the shop-windows, and looked at the people as they passed, and at the carriages; and he looked among those on foot, and among those in carriages, for some one to speak or move to; but his friends were not to be met with that morning. He wondered what had become of Sloper; for he used to be almost always sure of meeting him in St. James's Street at a certain hour of the day. He strolled into Pall Mall, and was very sleepy; and he stood so long rubbing his eyes and stretching his arms at the gate of St. James's Palace, that he positively set the sentinels yawning. He smiled at the effect of sympathy; and the sentinels also smiled modestly, and with appearance of great gratification: for it is a high honor to be smiled at by a man of rank and consequence; and they knew that he must be a man of rank and consequence, because he was very sleepy, and did not know what to do with himself.

To keep himself awake he walked along Pall Mall, but not very fast, lest he might have too much time on his hands when he should arrive at the other end. Then he threw the contents of his snuff-box into the street, that he might have the amusement of getting it filled again at Pontet's. When he had, by dint of great exertion to walk slow, and make the most of his expedition, arrived, after a quarter of an hour's sauntering, at the little snuff-shop at the corner of the street, he felt almost fatigued enough to enjoy the pleasure of sitting down; and he accordingly took his seat, and was for a time exceedingly happy, enjoying the pleasure of kicking his heels against the frames of the high shop-stool, and gazing at the passengers.

Not long had he been thus occupied, when two persons passed the shop-door in apparently close and earnest conversation, and seemingly on very good terms with each other. One of them, turning a side glance towards the snuff-shop, caught the eye of Lord Trimmerstone, and turned away his head again in great haste, as if to avoid being recognised. This movement excited his lordship's curiosity; and a few seconds after they had passed, he cautiously stepped to the door and looked after them. He was certain that one of the two was Singleton Sloper. He knew by the broad shoulders, short neck, and shuffling gait, that it could be no other. As to Sloper's companion, who was the one that had so suddenly withdrawn from his eye in passing the shop-door, his lordship could not form the slightest conjecture.

Curiosity induced him to follow them at a considerable distance, and without being discerned by them, he watched them into a coffee-house; where, soon after they had entered, he followed them.

Before he entered the room, he looked through the glass of the inner door, and saw that the two persons who had attracted his attention were Mr. Singleton Sloper and the young gentleman to whom his lordship and Mr. Sloper had lost their money the preceding evening. This was a strange sight; and the very good understanding between the two led his lordship into strong and unpleasant suspicions concerning the purity and integrity of Mr. Singleton Sloper. He determined, however, not to make any sudden interruption; but as he was unseen by them, he watched their proceedings, and saw a pocket-book produced and opened; and he saw some of the contents of that pocket-book handed over by the young gentleman to Mr. Singleton Sloper.

Lord Trimmerstone was greatly astonished at what he saw; and though the mere fact of something being thus transferred to Sloper was no proof of fraud on his part, yet the looks and smiles of the two gentlemen were so very significant and expressive of collusion, that could these looks have been sworn to and properly described to an honest and discerning jury, there would have been in them very powerful evidence to convict the parties of conspiracy.

Lord Trimmerstone was in doubt how to proceed; and after a few moments' hesitation, he thought it best to walk into the coffee-room as if not having seen the gentlemen, and to give them an opportunity to part, or at least to lay aside their confidential looks, before he fixed his eyes upon them.

The opening of the door soon excited their attention, and they presently assumed a different complexion towards each other; so that by the time that his lordship thought proper to see and recognise them, there was so great a change of look as to corroborate his suspicion. He knew, however, that it would not answer his purpose to manifest the slightest symptom of what was passing in his mind; he therefore greeted them carelessly, and received their careless reply. Attentively as he could, he watched the countenance of the young gentleman, and thought he saw in that face symptoms of more

advanced age than he had given him credit for. He was very sure that it was not the face of an inexperienced simpleton.

There was, notwithstanding all efforts to the contrary, a feeling of embarrassment between the parties; and much common-place talk was uttered at awkward little intervals, before any allusion was made to the transaction of the preceding evening. Sloper at length said:

“Trimmerstone, I have been endeavouring to make an arrangement with our young friend to let us have our revenge. When will it suit you to meet us? Will to-morrow night be convenient?”

Now it happened that his lordship had already written his name on several inconvenient pieces of paper and in connexion with certain ugly figures, and he was not very desirous of multiplying and enlarging these perplexities. He would have been happy to have his revenge; but it appeared very probable that the only revenge which he should be likely to obtain, would be to inflict on the person of Mr. Singleton Sloper the castigation of a horsewhip.

“I cannot say this moment; but if you will step home with me, Sloper, I will see how my engagements stand, and give you an answer; which you may communicate to our friend.”

Mr. Singleton Sloper did not much approve of this arrangement, but was, nevertheless, unwilling to exhibit any strong symptoms of disapprobation. He only said:

“I will follow you in half an hour.”

This, however, would not answer his lordship’s purpose, for he was very desirous of ascertaining the nature of those papers which Sloper had just received from the young gentleman.

“Oh no, come with me now, for I have an engagement an hour hence.”

Thus saying, his lordship took Singleton by the arm and led him away, saying to the young stranger, “You shall hear by my friend Mr. Sloper, when it will be convenient to have another meeting.”

Sloper had very little suspicion that his lordship entertained any ideas unfavorable to his integrity. But though he had little suspicion, he was not altogether free from such unpleasant thoughts. As the two worthies

therefore walked together, there was much constraint in their manners, and every effort to get rid of it only made the matter worse. His lordship felt more and more convinced that all was not right; but he had some difficulty in making his decision how to act, so as to ensure conviction if he was right, and to avoid an awkward quarrel if he was wrong.

CHAPTER III.

“He said, and stalk’d away.”

DODSLEY.

When the Earl of Trimmerstone and his good friend, Mr. Singleton Sloper, arrived at the house of the former, his lordship ushered his friend into his own apartment, and requested him to be seated. Sloper thought that the Earl had locked the door; but in that suspicion he was wrong: the thought, however, staggered and perplexed him. With as much indifference as he could assume, his lordship said:—

“Sloper, do you know any thing of that young man that we lost our money to last night? I am of opinion that he is not quite so young and inexperienced as you imagined him to be. How came you acquainted with him?”

His lordship watched Sloper’s countenance very narrowly, while he replied:

“He was introduced to me by that Tippetson, who is paying court to Mr. Martindale’s foreign grand-daughter. I was as much deceived in him as you were. Tippetson told me that he was quite young, and had just stepped into a very pretty fortune, and that he seemed very well disposed to enter into gaiety.”

There was very little hesitation in the manner in which Sloper made this reply, and no inference could be drawn from it. But Lord Trimmerstone saw that there was an unusual awkwardness of manner about his friend, so that his suspicions continued unabated though unconfirmed. With a view therefore of probing him, his lordship said, with more significance of expression than he had adopted before:—

“Have you no suspicion that this very young gentleman has a partner rather older than himself?”

No immediate answer was given to this inquiry; and Lord Trimmerstone, after proposing the question, kept his eyes firmly fixed on his friend with a most searching and almost threatening expression. Sloper looked pale, and was angry, and rose from his seat with great indignation, replying:

“Do you mean to insinuate, by that question, any thing dishonorable against me, my lord? I really do not understand your question. What am I to know about his partners?”

This was quite enough to satisfy his lordship that there was some ground for his suspicions; and feeling therefore indignant at the treachery of his pretended friend, he returned with considerable warmth, almost with violence:

“I do mean to insinuate something dishonorable against you; I mean to say that you have now in your possession damning proofs of your guilt and your meanness. Clear yourself if you can.”

With a contemptuous sneer, Mr. Singleton Sloper replied: “Upon my word, I shall not take the trouble to argue with a madman. I must leave you, my lord, for the present; we shall meet again shortly, and then I will give you or you shall give me satisfaction.”

“You shall not leave this apartment, sir, till I have satisfied myself of the extent of your treachery. You have conspired with that young thief to defraud me, and I saw you divide the plunder; you have my note now in your possession.”

Mr. Singleton Sloper had not much of a character to lose, but what little he had he was desirous of preserving. Seeing that Lord Trimmerstone was resolute, and knowing that his own case was really a bad one, he endeavoured to soften matters down as well as he could; and with that cowardice which continually attends guilt, he pleaded guilty to the accusation, and urged his own necessity as a plea. Lord Trimmerstone should have spurned such a caitiff from him with contempt; but Lord Trimmerstone recollected that his own dear character was as much implicated as that of his friend, Mr. Singleton Sloper: they were, in fact, in each other's power. Then did his lordship gradually descend from his high and towering attitude, and feel that he himself was but one degree more respectable than that very Sloper against whom he was beginning to launch

the bolts of his mighty indignation, and the shafts of his withering contempt.

Now there was this difference between the Earl of Trimmerstone and Mr. Singleton Sloper: to wit, that the first-mentioned personage had been led rather by what he considered fashion or fashionable practice from one degree of foolery to another; but the latter was habitually and constitutionally of low and mean habits. Lord Trimmerstone was not essentially and constitutionally of low habits, but he had been by various circumstances drawn into the vortex. He was a careless rather than a weak man, and he had fallen into bad hands. Singleton Sloper was what may be designated a moral sloven, a man of no mind, and of little feeling; incapable of any thing great or good; one of the condescending among the patricians, and never stooping but to something that was low. These two personages were on the whole well met. The difference certainly was in favor of his lordship, but the difference was not great. His lordship felt this in their rising quarrel, and was therefore under the necessity of bearing patiently that which otherwise he must have resented indignantly.

When this explanation was entered into, if explanation it may be called, the two friends looked at one another like a couple of fools, or perhaps to speak more properly, like a couple of knaves. The Right. Hon. the Earl of Trimmerstone was so exceedingly out of humor with himself, that he scarcely knew how to act or what to say. He was going to say, "Sloper, I can never trust you again." But upon second thoughts he considered that Sloper was really no worse than he had previously known him to be. He was tempted to call Sloper a knave; but he recollected that he himself was as great a knave. He was tempted to think that he would discontinue all intimacy with a man who had thus, as he called it, defrauded him; but he recollected that Singleton Sloper had been serviceable to him, and might be again; and he thought it better to depend on a rogue that he did know, than to run the risk of relying on a rogue that he did not know.

It might not be at this juncture that his lordship's character received the deepest stain of degradation; but it was at this period, and by this circumstance, that his lordship was brought to feel how very low he had sunk in the scale of moral worth. Then did he again and more deeply than ever regret that the days of his independence were passed away, and that he had sacrificed for the sake of honors which were no honor to him, that

composure of mind and that independence of spirit which had in early life been his portion and blessing. He became very low-spirited, and almost morose. His appetite for pleasure was greatly abated. He no longer considered the turf and the betting-table the true and supreme enjoyment of life, or the dignified enjoyment of rank and fortune.

Many days passed away in a state of nervous depression bordering on insanity; and had he in this period laid violent hands on himself, there would have been quite sufficient evidence to convince a coroner's jury that a verdict of insanity should be brought in.

Coroner's juries have a very ingenious mode of reasoning on this subject. Thus may the argument be stated: If a poor, pennyless, friendless outcast of society, broken down by calamity, and having no resource whereby to mend his fortunes, or to better his condition, does through an absolute weariness of life lay hands on himself, and thus commit the sin of suicide, he acts from an apparently sufficient motive; and he could not have been insane, inasmuch as it is considered that no man in his senses could desire the continuance of such a life. But if a person of rank or fortune who may live sumptuously every day, or any one even in actual and personal distress from reduced circumstances, but yet having friends or relatives by whose wealth his poverty may be relieved, and at whose table he may, if he pleases, yet enjoy life's luxuries, should, notwithstanding all that he does or may possess or enjoy, destroy himself, surely he must be insane: for who but a madman would throw away a life which could possibly be enjoyed? This is an invariable and infallible rule.

That period of Lord Trimmerstone's life and experience at which we are now arrived, was indeed to himself a season of very great interest and emotion; but could not be so rendered to our readers without a very long, and to some perhaps, a very tedious analysis of human feelings; and as our business is more with facts than philosophies, we must pass very briefly over this period; not endeavouring to portray his lordship's state of mind, but contenting ourselves with narrating the facts to which these feelings led.

Being upon reflection convinced of the meanness and littleness of those pursuits in which he had been engaged, and finding that there was not in his honors that enjoyment and satisfaction which he had anticipated from them, he seriously resolved that he would no longer expose himself to those

mortifications which had of late gathered so thick upon him. He made up his mind that he would give up his establishment in town; that he would dispose of his horses, and retire to Trimmerstone, to enjoy, if possible, the quiet comforts of domestic life. But when he thought of domestic life, he could not help also thinking how ill-adapted was his Countess for a life of that description. He had taken but little notice of her or her proceedings, and often, while he had been spending the night at the hazard-table, her rooms had been lighted up for the reception and entertainment of such guests as she could procure. In a large party, and in the display of finery, the Countess had her happiness. The proposal therefore to her of removal from town and of quiet domestic life in the country, especially such a dull place as Trimmerstone, came very mournfully to her ears, and she would fain have expostulated and demurred. But his lordship, now he had grown wiser, had become rather sulky and obstinate; that good-humor for which he had formerly been remarkable was considerably abated; and his Countess perceived the change with a feeling of concern and uneasiness.

The Countess, as our readers may probably have discovered, was a thoughtless, unreflecting, though good-humored woman; very fond was she of gaiety, mistaking, as many vulgar fine folks do, gaiety for greatness, and fancying that the most magnificent entertainments were the chief good of life. Her ladyship's taste was rather more vulgar than usually happens in that class of society from whence she had her origin; and as the exclusives were not well pleased with her birth, they could easily apologise for their neglect of her on account of her manners. In spite, however, of all the indifference of what is called the fashionable world, she contrived to live a life of no little gaiety. Such companions and intimates as she honored with her acquaintance were not the best adapted to prepare her mind for retirement. Mr. Tippetson, so far as reflection or intellectual digestion was concerned, had not a single idea in his head. He had by no means any capacity either for thinking or exciting thought in others; but in commonplace he was perfect.

Dr. Crack was also another intimate of the Countess. He at least thought that he thought; and his ambition was to unite the philosopher with the man of fashion; which very ambition was proof positive that he never thought to any good purpose. He had endeavoured by various theories to immortalise himself; but, unfortunately, he was so conscientious, that he suffered facts

to overturn his theories, and so none of them lasted long enough to establish his reputation. He also was very powerful in common-place, but nothing equal to Mr. Tippetson. His style of talk was very magnificent, so much so that the Countess of Trimmerstone could not always understand his fine words and his long elaborate sentences. This is not said by way of depreciating the understanding of her ladyship; for many minds of a much higher order than hers would have found quite as great difficulty in comprehending the meaning of many of Dr. Crack's prodigiously wise speeches.

It may readily be imagined that a lady of rank whose most intimate acquaintants were such as Mr. Tippetson and Dr. Crack, could not have much relish for a life of retirement, wherein her enjoyments must be of her own procuring, and must have their seat in the mind. When, therefore, his lordship mentioned the topic of retirement, it by no means met with her ladyship's approbation. She laughed at his lordship's gravity. That was bad policy; for laughing at gravity only makes it worse. By this mode of treating her lord's humors, the Countess made him angry and positive; then he insisted and commanded; and then, in the wantonness of resistance and the impotence of opposition, her ladyship refused to obey. That was very great folly; because she could not help herself, and obey she must. Then his lordship was more positive and more angry; then her ladyship was more vexed, and burst into a flood of tears. This last expression seems to us a very foolish one, and an absolute contradiction; but it sounds very fine, and is generally understood in England; and is much more eloquent than simply saying that her ladyship cried, or wept, or shed tears. Her ladyship also would have gone into hysterics; but that part of her education had been sadly neglected, therefore she could only cry and be sulky.

His lordship, however, was very positive; and in that positive humor did he depart from his home, and direct his steps to the house of his troublesome but indispensable relative, Mr. Martindale. At that house Mr. Henry Augustus Tippetson was at that moment paying his most gracious attention to Clara; and the poor girl was listening with all the complacency of indifference to his silly prate concerning last night's opera. Mr. Tippetson had just persuaded the young lady to indulge him so far as to permit him to hear one of Rossini's airs on the piano-forte; and the first bar was hardly finished, when the arrival of the Earl of Trimmerstone was announced.

This announcement was an interruption more agreeable to Clara than to Mr. Tippetson, for the young lady was not in spirits; and to a dejected mind, sounds of joy are a sad and painful discord. But though Mr. Tippetson was sorry to be deprived of the pleasure of hearing the promised performance, he speedily took his leave of Clara, expressing a hope that he should enjoy that pleasure another day; and he left the room as soon as his lordship made his appearance.

CHAPTER IV.

“To go, alas! we know not where.”

COOPER.

Lord Trimmerstone had not been a very frequent visitor at his relative's house, and therefore Mr. Martindale apprehended that the present was more likely a call of business than compliment; especially did he think so when he observed how very grave and serious his lordship looked. Conducting the Earl into the library, Mr. Martindale began:

“What, in the name of wonder, can be the matter with you now? Has your lordship had the misfortune to lose more than is quite convenient to pay, and are you coming to ask me to pay it for you?”

“You may very well upbraid me, sir, with my sad propensity to gaming,” replied his lordship; “but I trust this is the last time I shall hear such reproof from you. I have seen my folly.”

“Have you, indeed?” interrupted the old gentleman; “what a wonderful discovery you have made! Every body else has seen it for a long while past. Now I suppose that you are going to let the world see your wisdom. But pray, what is the amount which you wish me to discharge for you in the present awkward juncture of affairs?”

“I have not any request of that kind to make, sir;” replied his lordship.

“Oh, oh!” said the old gentleman, “indeed! I am very happy to hear it. But I should be glad to know what it is that makes you look so serious.”

“I have been thinking,” said his lordship, with great formality of manner and expression...

“It is high time you should think,” responded the old gentleman; “and what has your lordship been thinking about?”

“I have been thinking,” continued the Earl, “that it will be prudent for me, at least for the present, to give up my establishment in town, and retire,

with your permission, to Trimmerstone, where I may be out of the way of temptation. If you still continue in the same mind with respect to Trimmerstone Hall, I think it might be put into tenantable repair at a small expense."

"Very good, very good, young man;—I beg pardon—I mean my lord."

"Nay, sir, I beg that you will not use such taunting expressions. My title, you know, was not of my seeking."

His lordship uttered this last sentence in a tone of such humility and submissiveness that the old gentleman was touched, and he saw that his relative felt a strong impression of humiliation, and therefore he felt more compassionately, and replied in tones rather more conciliating.

"Yes, yes, very true; it was my fault. I am sorry for it. I don't know which was the greatest fool of the two; you for accepting the title, or I for obtaining it for you. Now if your poor father had not been smitten with the ambition of rank, and had you continued in your profession, you might at this time have been in the enjoyment of a handsome and honorable competency. But now you are a nobleman, you can do nothing to help yourself. I am sorry for you. But if you wish to reside at Trimmerstone, I will put the house in repair for you, and make any alterations or additions you please. Your wife, too, is to be consulted in this matter. Are you not apprehensive of some opposition to your schemes from that quarter?"

"Some objection was expressed when I made the proposal, but of course I must overrule every thing of that kind."

"Ay, ay, there again you have been unfortunate. With your views you should never have married such a woman as that. You see it has not answered your purpose after all, even in a pecuniary point of view. You have made a bad business of it altogether. I am sorry for you; but I cannot see what is to be done for you."

It might be very true that Mr. Martindale was sorry for his unfortunate relative, but it was not very decorous to speak thus of a lady before her husband's face. This circumstance also contributed to increase his lordship's mortifications, and to add to the weight of his grief.

After much more conversation to the same purpose, by which the old gentleman endeavoured to prove his lordship's folly, and by which his

lordship admitted it in all its extent, the interview terminated; and the result of the negotiation was, that orders were forthwith issued for the repair of Trimmerstone Hall for the reception of his lordship.

While the Earl of Trimmerstone was engaged with Mr. Martindale, the Countess was occupied by the condoling and sympathising attentions of Mr. Henry Augustus Tippetson. For as soon as Mr. Tippetson was aware of the Earl's absence from home, he took the opportunity of paying his respects to the Countess; and he found her ladyship in great affliction, and from her appearance he judged that she had been very recently dissolved in tears. This phrase, dissolved in tears, is one of those expressions which, for the sake of pathos, we must now and then use, but it is far too hyperbolical and exaggerated for our taste; and it is our firm and unalterable opinion, that the cause of sympathy is not effectually served by words that mean nothing, or that mean too much. The Countess, however, had very clearly been weeping, and was very obviously in ill-humor with her lord and master.

When Mr. Tippetson, therefore, made his appearance, and her ladyship, just recovered from her tears, expressed with more than usual cordiality how glad she was to see him, it was impossible for so tender-hearted a creature as Mr. Tippetson not to make some kind and condoling remark on the appearance which she exhibited of illness or great affliction.

"I am infinitely concerned to see your ladyship in low spirits this morning." Thus spoke the tender Henry Augustus.

"Oh, Mr. Tippetson," responded her ladyship, "I may well be in low spirits. This very morning, my brute of a husband, God forgive me for using such language," here her ladyship's tears flowed afresh, "has absolutely insisted on my leaving town; and he says that we must both go and end our days at that vile dull place, Trimmerstone."

"Has your ladyship ever been at Trimmerstone?" inquired the attentive and sympathising youth.

"Never," replied her ladyship; "but I am sure it must be a dull place; there is not a soul to speak to but a dull country squire or two, and the parson of the parish, and he is but the curate; for it is such a stupid place that even the rector cannot reside there. His lordship did not seem to want much of my company in town—I think he might do very well without it in the country."

“Your ladyship is very ill-used,” said Mr. Tippetson; “I have been often astonished that you could patiently put up with such behaviour.”

“But I must put up with it, Mr. Tippetson, I have no remedy.”

So spake the Countess of Trimmerstone; but her ladyship knew that she had a remedy—only the remedy was worse than the disease. Mr. Tippetson also knew that there was a remedy; but Mr. Tippetson was not quite so great a novice as to name that remedy in so many words. He therefore made no reply, and her ladyship was also silent; yet her heart swelled, and the tears were in her eyes, and she seemed altogether given up to the hopelessness of sorrow. Now as Henry Augustus Tippetson was an adept in common-place, he knew that there was more prudence and policy in absolute silence under present circumstances, than in any language which he could utter. And as the Countess, in the hurry and agitation of her grief, was now in one part of the room, now in another, now sitting, now walking, now before the glass, and now before the window, Mr. Tippetson was always at her side; and after many changes of place, they at length sat down together on a sofa; and Mr. Tippetson, scarcely thinking what he did, actually took hold of her ladyship’s hand, and pressed it between his two hands more tenderly than any single man ought to press the hand of any married woman. What was the young gentleman’s design in this, or whether he had any design in it at all or not, we cannot say. But be it as it may, he approached her ladyship in such a questionable shape, that whether his intents were wicked or charitable, she spoke to him, saying, “Oh, Tippetson!”

Now this was too bad. Whatever were the young gentleman’s intentions, her ladyship ought certainly to have left him to himself, and to have suffered him to evolve his own schemes: it was grievously indecorous, we think, to give the gentleman any assistance or prompting in such matter; but we will not be very positive, seeing that we do not understand the etiquette of elopement. And perhaps the Countess herself thought that Mr. Tippetson was also inexpert, and therefore assisted him in the development of his scheme for relieving her from the burden of a disagreeable husband.

When, therefore, the Countess had with so much tenderness said, “Oh, Tippetson!” it was impossible for Henry Augustus to avoid saying, “Oh, Celestina!”—for thus familiarly had he been accustomed to address the lady while she was a spinster. As by the use of this familiar mode of address her

ladyship's active fancy imagined that more was meant than met the ear, and as there was evidently little time for deliberation, and as she thought it absolutely indispensable to make some show of opposition to such a wicked proposal, as she construed "Oh, Celestina!" to mean, her ladyship immediately withdrew her hand from Mr. Tippetson, and exclaimed, "Oh, never! never! never! do not be so barbarous; I cannot—no, I cannot—I would undergo any thing rather than take so imprudent a step."

Mr. Tippetson, whose ideas of morality were not very nice, and whose sense of propriety was not very acute, thought that it was a gentle designation of elopement to call it only "an imprudent step." He was not best pleased, therefore, with this mode of resistance; but he was now under the absolute necessity of kneeling to her ladyship, and of seizing her hand again most passionately, and pressing it to his heart, and vowing eternal fidelity, and exclaiming—

"Oh, fly with me, my dearest Celestina; I will go with you to the end of the world."

By the way, he had not the slightest intention of going farther than Paris, or to the south of France at the utmost. But, of course, when a single gentleman tells a married lady that he will go with her to the end of the world, it is absolutely impossible for her to avoid or to refuse leaving her husband, her friends, and her reputation. So felt, and so acted, the Countess of Trimmerstone; and considering the short notice which she had, it is somewhat astonishing that she was so soon ready to depart. She was gone before her husband returned from Mr. Martindale's. Some of the servants said that she had prepared for the excursion before Mr. Tippetson proposed it.

It is a question which requires a nicer casuistry than we are master of, to decide which of these two precious ones was most to blame. When a husband neglects his wife, it is the opinion of some considerate and candid creatures, that the lady's conduct in leaving him, if not justified, is palliated. But perhaps some husbands would not neglect their wives so much as they do, if these aforesaid wives could not find some one else to pay attention to them. The lady, however, in the present case, did not leave her husband during his neglect of her, but just at the very moment that he was beginning to be more attentive than ever, and to claim her sweet company all to

himself. But then she did not like to live in the country all alone, as it were, and out of society and gaiety. Oh, no! certainly not. Therefore she thought it much more lively to go to Paris to reside with a perfumed puppy in an obscure lodging, surrounded with people of whom she knew, and could know, and wished to know nothing.

Our readers would think us very methodistical if we were to express ourself in very strong terms against the abomination of elopements; and those very same readers would think us very irreligious, should we question any of those dogmas which are supposed to form part and parcel of the religion of the state. We are not however about to do either the one or the other; but we cannot help recommending all married ladies to be very cautious how they talk to their *friends* concerning the cruelty of their husbands. We would also recommend married ladies, and single ones too, not to place unlimited confidence in romantic protestations; and above all, would we tell married ladies that the worst husbands are better than the best seducers.

As it is not our intention to suffer Mr. Henry Augustus Tippetson to intrude again on our pages after his present disappearance, and as the Countess of Trimmerstone disappears with him, we will now so far violate chronological order as to narrate all that remains to be said concerning that hopeful couple.

Mr. Tippetson, who had desired to immortalise himself by an elopement with a lady of rank, now that the Countess of Trimmerstone was in his power, did not feel quite so proud of his conquest as he had anticipated and fancied. There is nothing in rank where there is no distance and reserve. The Countess, even before they had reached Dover, began to appear to him as a weak, silly woman. Now, if in stealing a countess, he had stolen the title of earl for himself, he might have been more proud of his exploit; but as it was, he still kept the name of Mr. Tippetson, and his poor simpleton of a companion had no name at all. Then again he could not enjoy the pleasure of hearing himself talked about in the fashionable circles. He saw very soon in the newspapers that he gained celebrity by the elopement, but he could not hear any remarks upon the subject. He very soon found that his companion was no companion; and therefore, with mighty energy and resignation, he determined to make the best of a bad bargain. It is a great pity that the Countess had not come to that resolution before she left her

husband. Here again we have a lesson for married ladies; and beg most respectfully and kindly to inform them, that it is much more inconvenient to be neglected by a seducer, than to be neglected by a husband.

Mr. Tippetson was a man of the world; but he did not know much of the world, especially of the world of Paris. It is very good that English people in the one shilling gallery should believe that one Englishman can beat three Frenchmen, and that they generally do believe till they try; but one simple Englishman, like Mr. Tippetson, may generally be beaten by one Frenchman at games of skill or chance in the Palais-Royal. The perfumed seducer found out this to his cost; and thereupon the Countess of Trimmerstone became more inconveniently expensive to him. There arose also another inconvenience to the young gentleman, viz. her ladyship's prodigious vulgarity. He could never be seen with her in public. The Parisian ladies used to stare at her, though she thought herself prodigiously fine. Mr. Tippetson accommodated himself to the people among whom he dwelt. The Countess began soon to grow sulky, because she had no society. Tippetson thought his own society quite enough for her ladyship. By degrees that society was more and more curtailed: sometimes he left her for a whole day; and sometimes he was absent day and night; and sometimes he would stay from her ladyship two or three days successively. This was very sad, but she had no remedy. To utter angry reproaches she dared not; she could only plead pathetically, and call him unkind, and use the gentlest tones of expostulation. Her ladyship was far more afraid of Mr. Tippetson than ever she had been of her husband, and was much more careful of offending him by look, word, or deed. On the other hand, the gentleman was sooner weary of the Countess than he would have been of a wife; and whensoever the gentleman, in the expression of his weariness, took it into his head to use the language of reproach, her ladyship, from the peculiarity of her situation, felt unable to return or repel it.

Whether it be possible or not for a married woman who has lost the affection of her husband, ever to regain and recover that affection, we presume not to say; but notwithstanding the diffidence we feel in our own judgment, and notwithstanding our own inexperience of such matters, we will venture to give it as our firm opinion, that when the affections of a seducer are gone away from the silly one whom he has beguiled, or who has beguiled him, it is the most hopeless of all efforts to endeavour to recall

them. But however hopeless the effort may be, it still must be made. So felt the unfortunate and unhappy woman, who, under the notion of liberty, had sold herself into an irretrievable slavery. If however she possessed not sufficient discernment and strength of mind to keep herself from this miserable condition, it was not very likely that she should be possessed of wit and wisdom enough to perform one of the most difficult of all difficult tasks, to recall a wandering affection. And the efforts which are used for this purpose are in their nature, or from the nature of the human mind, so exceedingly perverse, that in the same ratio as they fail of doing good, they are productive of evil.

Thus it came to pass that the affections of Mr. Tippetson for the poor witless Countess of Trimmerstone grew weaker and fainter; and in proportion to her endeavours to retain him, she found that she was nearer to losing him. Not many years passed away before he absolutely left her; and from this state of humiliation she wrote to her broken-hearted father, praying that he would not let her perish for want in a strange land. That supplication was not unheeded; she was saved from absolute want; but she lived the remainder of her days in solitude, obscurity, and self-reproach. We now return to the period from whence we have digressed.

CHAPTER V.

“Ha!—my fears
Anticipate thy words!”

SMOLLETT.

When Lord Trimmerstone returned from his visit to Mr. Martindale, it was with the full intention of firmly though gently insisting on preparations being forthwith made for a departure from town and a settlement in the country. When he inquired for the Countess, the domestics answered by looking at each other with manifest symptoms of confusion, as if to ask which should be the herald of evil tidings. His lordship was naturally impatient; and such a mode of meeting his inquiries was not likely to make him less so. With great impetuosity, therefore, he exclaimed,

“What is the matter? Why don’t you speak? Tell me this instant where is the Countess!”

Thus speaking, he laid hold of his own valet, who trembling in every limb replied,

“My lady is gone...”

“Gone!” exclaimed his lordship; “where, and with whom?”

“With Mr. Tippetson, my lord.”

This answer solved all difficulties; and his lordship immediately understood the cause of the embarrassment manifested by his domestics. At the information he was more enraged than surprised, and he flew into a violent passion; from which the rest of the servants present were glad to escape, leaving the valet with his lordship to answer any farther questions which the Earl might be curious enough to ask.

From this man sufficient particulars were gathered to make the whole story clear, and to fit the matter for the natural result of an appearance before the public in the form of an action at law; in which action Mr. Markham held a brief for the plaintiff, and a gentleman, whose name we

could not learn, held a brief for the defendant. As trials of this nature are in the newspapers given at full length, and as they are usually read with great attention by all whom they concern, and by many whom they do not concern, we should only be guilty of a needless repetition were we to lay this trial before our readers. We have noticed and alluded to the trial simply for the sake of two remarkable points in it: one of them is an instance of great simplicity on the part of Markham; and the other is a specimen of great acuteness and penetration on the part of the defendant's counsel. We have here mentioned but two counsellors; there were however six engaged: not that they were absolutely wanted any more than six horses are wanted for a hearse; but it is the fashion.

The simplicity of Markham was manifested in the circumstance, that notwithstanding the fine opportunity afforded him for pouring out a torrent of metaphors and indignation, whereby he might have gained a six-month's immortality among the unfledged spoutlings of debating-societies and wisdom-clubs, he merely endeavoured to put the jury into full and clear possession of the facts of the case, and to meet the plausibilities which might be started by the counsel on the other side. He did not say a word about honey and turtles on the one hand, or scowling fiends and demons on the other. He did not talk about paradise, for he did not suppose that there was any such place in Piccadilly. He did not talk as if he thought that heaven and earth must come together, because Mr. Tippetson had run away with the Countess of Trimmerstone. He did not seem to think it at all a miracle that their post-chaise arrived safely at Dover, and the steam-boat took them safely to Calais. He did not run over all the elopements from Helen downwards, and demonstrate that Mr. Tippetson was worse than Paris, or that the Countess of Trimmerstone was more beautiful than Helen. He did not tell the jury that all morality and domestic virtue would be banished from the earth, or even from the west end of the town, if they should sentence Mr. Tippetson to pay Lord Trimmerstone a farthing less than twenty thousand pounds. He did not quote poetry or spout froth. So much for Markham's simplicity.

Now, on the other hand, let us record for the honor of that gentleman whose name we do not know, a specimen of his dexterity in making the most and the best of a bad cause. It had been proved in the course of the trial, according to the usual practice in such cases, that the Earl and

Countess of Trimmerstone had lived very happily together. There was perhaps some difficulty in finding persons who had seen them much together; but there was evidence enough to prove the point, and there was none to disprove it. The opposing counsel then had nothing left but to persuade the jury that Mr. Tippetson was so much superior to the Earl of Trimmerstone, that the Countess was almost pardonable for making the exchange; or that his lordship was so indifferent to her ladyship, that the loss was a matter of little concern to him. On the latter topic he dwelt with the greatest force; and in illustrating that point, he made use of a most powerful and convincing argument, drawn from the fact that his lordship did not immediately with all his household and establishment pursue her ladyship and bring her back again. This was a most ingenious argument, and for the eloquence and dexterity with which it was used, we are tempted to make a brief extract from the learned gentleman's address to the jury. After having stated that the plaintiff did not immediately pursue the defendant and the fugitive fair one, he continued:

“Now, gentlemen of the jury, can you for a moment imagine that the plaintiff had any regard whatever for his wife, when he did not even take the trouble to pursue her and bring her home again. Here was a virtual manifestation of his indifference to her. If a robber carries off that which is valuable and valued, and the person robbed has time and power to pursue the plunderer, does he not immediately use his efforts to compel the thief to restore his ill-gotten booty? Gentlemen of the jury, if one of you should have your pockets picked, would you not immediately cry out, ‘Stop thief!’ Yet the plaintiff, in the present action, suffered a robber to carry off his greatest treasure without any endeavour on his part to recover it. Here, gentlemen, is proof positive, that the plaintiff cared less for his wife than any one of you would for a snuff-box or pocket-handkerchief.”

At this impressive and conclusive sentence, the learned gentleman paused, astonished at his own wit, and waiting for the murmur of approbation, which he thought must necessarily follow such a combination of eloquence and sagacity; but, unfortunately, some of the jury did not see the point of the argument, and they smiled at the learned gentleman's simplicity; but they saw that he was a young man, and knew no better.

It has often been with us a matter of consideration, how far it is advisable to defend a bad cause; and what discretion should be allowed in such cases

to those learned gentlemen, who have not received from nature any very great share of discernment. We have heard that it has been said by them of Ireland, that bad luck is better than no luck at all; and by parity of reasoning, peradventure it may appear to some, both of Ireland and England, that a bad defence is better than no defence at all. Of this we have our doubts; for we can suppose it very possible that a defendant, whose cause was a bad one, should say to his counsel, "My cause is bad enough of itself, I beseech you not to make it worse by your wit or eloquence." The use of a clumsy *non sequitur* argument has sometimes prevailed with some juries. But juries are now growing more enlightened; and the system of composing juries is improved. There still, however, remains room for farther improvement: for since the science of crani...—we beg pardon, we mean phrenology—has been brought to such perfection as to prove, beyond the shadow of a doubt, that a man who has been hanged for murder has the organ of destructiveness strongly developed, it is quite a reproach to the legislature that no steps have been taken to render that most exact of all the sciences subservient to the purposes of society. The size of the head is the measure of the judgment: the upper classes, as it has lately been shown, having larger heads, generally speaking, than the lower and labouring classes. In order then to form an intelligent jury, nothing farther is necessary than that a law should be forthwith made, enacting that no person should be eligible on a jury who has not a head of a certain thickness. The discovery that wisdom and thick heads go together is certainly not modern; it is quite as old as our big wigs for judges, bishops, and others who, if not absolutely wise, ought to be always thought so. Moreover, we are humbly of opinion, that the vulgar notion that thick-headed people are stupid, has arisen from the ironical application of the term thick-head. Exactly in the same manner do we now give the name of Solomon to a simpleton; not that we consider Solomon to have been a fool, but quite the reverse. This theory of ours also solves what has hitherto been a matter of difficulty and perplexity to the ingenious; viz. the apparent paradox that thick-headed and shallow-pated should mean the same. Thick-headed, we see, is used ironically, and shallow-pated seriously, to express a fool. It may be still farther observed, that our young gentlemen do now take marvellous pains to make their heads appear thick, by wearing a large quantity of hair, bushed and bristled out with great pains and study; and when entering a house, or any place of public resort, they do ordinarily poke their fingers through their hair to

make it stick out as widely as possible. This is a nasty trick; but for the sake of looking very wise, it is worth while to be a little nasty. We make no apology for this digression, seeing that it is very wise and valuable and entertaining; and an apology would be dull, flat, and unprofitable.

To proceed then with our narrative. The plaintiff received an award of five thousand pounds; and the defendant, not finding it convenient or agreeable to pay that sum, remained a voluntary exile from his native land.

The Earl of Trimmerstone had begun to think seriously, and almost painfully. He looked back on the past, and was astonished to see what opportunities of rendering himself respectable he had suffered to pass away unimproved. He now saw that in almost every step he had been wrong, and he was bitterly mortified. He knew not how to escape from his miserable feelings, or to what object or pursuit to direct his attention. Mr. Martindale pitied him very sincerely; but Mr. Martindale ought to have blamed himself that he had not taken pains to prevent this unpleasant catastrophe. For under pretence and colour of supplying the young man with the means of keeping up an appearance in the world, he had only furnished him with an opportunity of making a fool of himself. Mr. Martindale had never given his young relative any of his confidence; he had treated him with a distant and capricious patronage. The old gentleman knew well enough the character of Celestina Sampson; and he also knew enough of his kinsman to be well aware that there could not be on his part much sincerity of attachment to her; but he must have known that mere necessity compelled the match. That necessity it was in his power to remove; and it was indeed his duty, inasmuch as his own fanciful liberality had in the first instance created it. It was also the duty of the old gentleman to watch a little more attentively over the conduct of his relative, even after his marriage, and after his accession of title. But the truth is, that old Mr. Martindale, like many other rich, queer, liberal, or money-giving men, consulted rather his own humor in his liberality than any advantage or benefit likely to accrue from it to the object of his bounty. It had so happened, that at the time that his large property came into his possession, he had no other probable or plausible recipient of his superfluous wealth than the Martindale family. For then he had not discovered, nor did he think it probable that he ever should discover, his lost and long-neglected daughter. Now, however, that this discovery was made, all his thoughts were centred in her and her child; and

though he professed not to have forgotten his cousin, the attention which he paid him was very capricious.

Finding then at last that the Earl of Trimmerstone was really melancholy, and deeply dejected at his disappointments, Mr. Martindale began at length to feel for him, and talk to him with friendly condolence. He quite approved of his design of leaving London, and spending a little time in retirement and solitude. He offered Trimmerstone Hall, and proposed, if it were necessary or even desirable, that it should be totally rebuilt. He would insist on making over to his lordship that dwelling, and the estate connected with it, as properly belonging to the title. He also requested that Lord Trimmerstone would favor him with as much of his company as possible before he left town.

This was not only substantially kind, but it was also done in such a manner as to render it pleasing as well as profitable. It somewhat melted and moved the heart of the young nobleman; but it did not by any means effectually and entirely dissipate that melancholy which was preying upon his spirits. He accepted the invitation to spend much of his time with Mr. Martindale; and when his thoughts were removed from schemes of gaming, and from the vulgar amusements of the turf and the ring, his understanding being naturally good, he much enjoyed the conversation of Signora Rivolta and her daughter, in both of whom he observed an agreeable and rational manner of thinking and speaking. Their society was to him also the more pleasant, as it was so completely the reverse of that to which he had been long accustomed, and with which he connected no pleasant ideas. He was weary of slang, artificialness, and common-place; and he was glad to exchange them for common sense, good taste, and sound judgment. There might be some regrets that he had sacrificed himself to a creature so frivolous as Celestina; but there was no distinct wish in his mind that he had preferred and chosen the gentle, intelligent, and unobtrusive Clara Rivolta. This was fortunate for him, because it rendered his intimacy with the family so much more agreeable than it would otherwise have been had he looked back with vain regret to the past, so far as any of them were concerned.

Signora Rivolta, who was a woman of good discernment, and somewhat proud of that discernment, fancied that Lord Trimmerstone was quite an altered man, and that the character in which he had hitherto appeared was not his real character, but was merely a piece of that apery, by which

clumsy ones make fools of themselves in endeavouring to become fashionable or distinguished. Under this impression, the Signora paid very especial attention to his lordship; and with a view of confirming and establishing him in good resolutions and good principles, very frequently directed her conversation to the subject of religion, using however very general language, lest the old gentleman her father should entertain a suspicion that there was any design of making a convert to the faith of Rome: for Mr. Martindale had dreadful notions of the Roman Catholic faith, though he did not exactly know what it was. He needed not, however, have given himself much uneasiness about the matter; for when people of rank become religious, it is almost, if not quite always, according to the religion of the state.

What effect conversation of this nature produced on his lordship's mind must be narrated hereafter. We must now pay our attention elsewhere.

CHAPTER VI.

“There are that love the shades of life,
And shun the splendid walks of fame.”

LANGHORNE.

Horatio Markham has been but seldom before our readers during the progress of our narrative; but when he has been introduced, it has been very apparent that he has been somewhat of a favorite with us. When a young barrister attends closely and seriously to business; and when, in addition to his rising reputation, which promises at once profit and honor, he enjoys the patronage of a nobleman of exalted rank and commanding influence; when the young man has a motive to industry in seeing and partly enjoying the fruits of professional diligence, his adventures must of necessity be very few, and the tenor of his life must be very monotonous. He may indeed, as Markham very probably did, visit many respectable families; may slip quietly into many an evening party, and as quietly slip out again. He may sit still, or walk about, and say little to any body present at these parties; for his mind may be otherwise engaged; his eyes may be dazzled with many a beauty, and may twinkle for an hour or two, annoyed by excess of artificial light; and he may go home and dream about the Arabian Nights' Entertainments, and the Statutes at Large, and be very glad of a quiet cup of coffee the next morning. He may perhaps think now and then that it would be very desirable that he should have a house at the west end of the town with three drawing-rooms; and that he should have an income, allowing him to spend four or five hundred pounds in an evening to entertain four or five hundred people who would never thank him for his trouble; and that he should have for his wife a woman possessed of every virtue under the sun, beautiful as Venus, but infinitely more decent; majestic as Juno, but not quite such a termagant; and wise as Minerva, but not quite so prosy as Mentor. He may think, again, that perhaps rather less may content his ambition. He may occasionally, by way of recreation, attend a theatre or an opera, and he may forget next morning whether he had been witnessing tragedy or comedy; and perhaps he might not know at the time if he had not

a play-bill. He may sometimes have a friend to breakfast with him at his chambers, and he may talk very sensibly on an infinite variety of subjects, and may give his opinions on many a decision, and on various points of law. He may sometimes in an evening visit a quiet domestic family, and make himself very agreeable to all branches of the family, talking politics with the gentleman, economy with the lady, poetry with the daughters, and science with the sons: he may even carry his complaisance so far as to discover tokens of genius in infants six months old; and if the mania of craniology has bitten any of the family, he may discover the organ of numbers in a great booby who, at ten years of age, has just got into long division. He may hold a share in a literary and scientific institution; and he may look wise over a lecture on chemistry without learning how to make soap, or acquiring the art of detecting the admixture of cape with sherry.

Thus quietly may he hold on the even tenor of his way; and gradually, though surely, may he rise to celebrity in his profession, and to reputation in the world. All this while, however, he has no adventures; he is as monotonous and remarkless as the sun when it rises without a cloud. But if the said young man neglect his business and run riot, and yield himself up to any species of intemperance and folly, then does he bring himself into ten thousand pretty scrapes, which though not very pleasant to himself, may by a skilful narrator be rendered highly diverting to a reader; or, if the narrator have not confidence in his power of amusing, he may at least assume the air of a monitor, and give through the narrative of transgression an admonition to transgressors.

Now, if the gentleman whose vanity we have represented as being gratified by the title of Earl of Trimmerstone had been content to form his fortunes for himself, instead of leaning luxuriously idle on a capricious relative, he would have avoided many of those perplexities into which he was thrown; and though he might not have been honored so much by an association with men of high rank, he would have been honored much more by an intimacy with men of good understanding and decorous conduct. His history would have been more brief, and his mortifications fewer.

The above remarks are designed not as an apology for, but as an explanation of, the circumstance that so little has been said of Markham in this our narrative. Our readers, however, will bear in mind, that such is the young man's character, that he must have been all this while employing his

time and talents as he ought. Some little exception may be made, and that we have mentioned: our allusion is to the weakness by which he suffered himself to be made almost the prey of Miss Henderson. We have alluded, and but slightly, to the perplexity and embarrassment wherewith he was annoyed and distressed on this account. It would be almost wearisome to describe at length the torment which that silly affair inflicted on him. He was not indeed quite such a hero as to resolve in spite of himself to marry the young lady merely because he saw that she thought that he was in love with her. He had not quite so much of the heroism of prudishness, or the prudishness of heroism in his composition, as to make so great a sacrifice. When, however, that ingenious, eloquent, and learned physician, Dr. Crack, made his appearance as a visitor and dangler at Mr. Henderson's; and when Miss Henderson showed a manifest partiality to Dr. Crack, and when Dr. Crack showed a manifest partiality for Miss Henderson, then a weight was removed from the mind of Markham, and he recovered his spirits most surprisingly.

But such is the lot of humanity, that the removal of one calamity or sorrow is but the making way for another. For now that Markham's mind was emancipated from Miss Henderson, he began to feel more uneasiness at Tippetson's intimacy with Clara. It had been, hitherto, a matter of comparative indifference to him while he was annoyed by the persecutions of Miss Henderson; but when trouble was removed, the other appeared greater. He continued, however, his intercourse with Mr. Martindale's family, out of respect to and at the request of that queer old gentleman.

Now, Markham was modest almost to sheepishness. He had a confidence in his judgment as to matters of an abstract nature, but he had not the slightest share of personal conceit or vanity. He did not think, as some young gentlemen seem to do, that he might have any hand he pleased to ask for. He did not for a moment think of setting himself up as a rival to supplant Mr. Tippetson in the affections of Clara; nor did it altogether comport with his notions of propriety and dignity to sigh and mope like a lackadaisical disappointed lover. He conducted himself, therefore, with cheerful good-humor; and the only symptom he showed of uneasiness was, that he seldom stayed when Tippetson was there.

Any one but himself might observe that Markham was decidedly the favorite; but as for a long while Clara thought that he was engaged to Miss

Henderson, she was herself scarcely aware of the existence, still less of the manifestation of any partiality for him. But Tippetson could always see it, inasmuch as he was a crafty man and full of design. And it is not improbable that seeing this he resolved on that scheme which he at last carried into execution.

Although in some respect Markham may be called our hero, as Lord Trimmerstone is our anti-hero, yet as Lord Trimmerstone is not all that is bad, so neither is Markham a paragon of all possible and impossible excellence. What a stupid world it would be if we were all heroes! it would be like a great school of good boys. Now if Markham had been a true hero, he would have married Miss Henderson without any attempt at shuffling or delaying; and if he had been a true hero, he would also have been sadly grieved for Lord Trimmerstone's loss, and he would have lamented Mr. Tippetson's wickedness. But in spite of himself, he could not but feel pleased at Tippetson's departure under circumstances which rendered his return as a suitor absolutely impossible. Unobservant and inattentive as he was, this movement of Mr. Tippetson came upon him with the suddenness and unpreparedness of a thunderbolt. And when soon after hearing the news of the elopement he received a brief from the plaintiff's attorney, he looked over that brief with most prodigious attention; he saw hope in every line of it. Never before had he perused the long, dry, prosy details of a stupidly-drawn brief with one half the interest with which he perused this brief, in which the Earl of Trimmerstone was plaintiff, and Mr. Henry Augustus Tippetson defendant. While he was reading it, he could not but recollect the very complimentary epistle which he had once received from Miss Henderson in consequence of his dexterity and sagacity in a suit of a delicate nature. He had no wish to receive another epistle from the same quarter, nor would he have been much pleased had Clara in like manner complimented him on the present occasion. But he knew, or thought he knew, Clara better than to suppose that he should be thus complimented by her. Supposing that Tippetson was an accepted, or presumed accepted lover of Clara, he thought it very natural that the present occurrence would be to her a painful event. He wished to console her, but he feared lest his offers of condolence might be repulsed or ungraciously accepted.

Very anxiously did he await the day of trial, and very carefully did he weigh in his own mind the various modes of treating the subject. Finding

that the chief speaker on the other side was a man of prodigious eloquence, he determined that he would not have recourse to balderdash, but that he would manage the business in such a plain matter-of-fact style as that the frothy, sloppy, feathery, flowery sputtering of the antagonist counsel should not have an inch of foundation to rest upon. This arrangement, as we have mentioned, answered his purpose. And when the defendant's counsel had made a long, vehement spoutification, all about nothing at all at all, the judge in summing up observed, that though a very *beautiful* speech had been delivered by the defendant's counsel, there did not seem to be any real defence set up against the action.

Now, in making this remark, the judge laid such a peculiar emphasis on the word *beautiful*, and at the same time gave such a schoolmaster-look to the gentleman who had spouted that schoolboy speech, that the orator himself looked absolutely sheepish, and he almost determined never to be eloquent again; but, as second thoughts are best, he retracted that determination, for he considered that if he were not eloquent he was nothing.

Wishing to be instructive as well as amusing, we cannot overlook the present opportunity of a digression in favor of eloquence. It is a great pity that our barristers cannot plead in Greek, for then Demosthenes might be very useful to them; and it would be, in all probability, quite as intelligible to the jury as much of that eloquence which is now spouted in English. To use Greek is quite out of the question, and therefore all they can do is to make their English as much like Greek to the jury as they possibly can. This they often do with wonderful success. Eloquence is in our days most grievously neglected, being almost solely confined to provincial newspapers, in which we may still enjoy the fine metaphorical language of the *olden* time. It is in those choice repositories that we can even yet revel in that fine figure of speech called "*circumbendibus*;" and were it not for these and a few eloquent barristers, and divers aggrieved parishioners in divers little city parishes which become immortalized by vestry squabbles, we should have scarcely any eloquence at all. This is such a favorite topic with us that we dare not trust ourselves to give way to our feelings; we will therefore content ourselves with giving a valuable hint to eloquent barristers. We advise them, if they wish to keep their eloquence and their countenance too, never to look at the judge, or at the opposing counsel, or at

any attorney, or at any one of the jury who has the least look of understanding, but to direct their eyes, if they must keep them open, to any one who looks prodigiously serious and has his mouth wide open.

CHAPTER VII.

“I have liv’d long enough: my way of life
Is fall’n into the sear and yellow leaf.”

SHAKSPEARE.

It might be supposed that, now Mr. Tippetson had very clearly relinquished all intention of offering his hand to Clara, and Miss Henderson had appointed Dr. Crack successor to Mr. Markham, no objection or impediment lay in the way of the last-named gentleman to prevent a regular and formal offer of his heart to Clara Rivolta. So for a moment he thought, and but for a moment. Most curiously do actual events seem to amuse themselves by opposing and contradicting human anticipations.

One morning when there was no business in Westminster Hall, and when Markham, after a late and lounging breakfast in his chamber, was preparing to saunter to the west, and spend his morning and, if Mr. Martindale pleased, his day with Clara Rivolta, just as he had drawn the brush round his hat, that daily author of ten thousand times ten thousand palpitations, the postman, brought him a letter, on which he recognised the hand-writing of his father; but the young man thought that the writing seemed of an unsteadier hand than usual, and he was alarmed.

We have hitherto said little or next to nothing concerning Markham’s father. Our reason for so doing is, that the elder Markham was a linen-draper; and we were very naturally afraid lest any of our readers should for a moment suppose that we knew any thing about such vulgar people. As the subject, however, must be introduced, we hope that our readers will imagine that all the knowledge we have of the linen-draper cast has been derived from some cyclopedia or dictionary of universal knowledge.

When Markham opened the letter, he was still more grieved and surprised to find that its brief and hastily-written contents announced his father’s failure. It had been the young man’s opinion and full persuasion, that his father had been for a shopkeeper rather an opulent man. In such

towns as he dwelt in, though the gentry look down with contempt upon shopkeepers, yet there are among shopkeepers an almost infinite variety of gradations and degrees of dignity and rank. Mr. Markham the elder was one of the principal shopkeepers, and he held his head considerably above many of the tradespeople in his own town; and his intimacy was rather with professional than with trading people. But, unfortunately, in order to keep up his rank in society, he had lived somewhat too expensively; and by the untoward introduction of an underselling, semi-roguish draper into the town, Mr. Markham's business fell off most pitiably, and he was compelled to propose to his creditors the horrors of a composition. We say here, and in this instance, the horrors of a composition, inasmuch as to such a man as Mr. Markham there was something in it most truly distressing and painful. We have indeed heard that there are those who by means of such arrangements grow wealthy, and unblushingly rise in the world; these, we apprehend, can never become part of the Corinthian capital of society, they may be rather described as of the Composite order.

This calamity, which had so unexpectedly befallen the elder Markham, afflicted him most deeply; and he communicated the information to his son in language so desponding, and with such broken-heartedness, that the young man was quite overwhelmed with the information. Breaking through every other engagement, he hastened down to the country to condole with his father on the calamity which had overtaken him; and not without some faint hope that there might be a possibility of averting the blow.

The letter simply stated that a composition had been proposed. Markham the younger, therefore, thought that it might perhaps be within the compass of his power to obviate the necessity of bringing that negotiation to a conclusion. He made therefore as rapid and at the same time as accurate a calculation as he could of the means which were in his power, and forthwith hastened to the scene of perplexity and difficulty.

As he entered the abode of his infancy, he saw, or fancied he saw, a melancholy change. The furniture of the apartment looked as if it had been neglected. The whole house appeared gloomy and still; but worst of all, when his poor father came into the room and took his son by the hand, there was a hardness in the pressure, but no cordiality. Markham thought that his father's hand felt cold, and he saw that his dress lacked its usual neatness, while the countenance was pale, and the voice was tremulous, and the eye

looked downwards. The young man would fain have made the meeting cheerful, but his sympathy with his father's sorrow was stronger than the father's sympathy with the young man's buoyant spirits and hopeful thoughts. Markham caught the contagion of his father's sorrow; and after some vain attempts to put a cheerful aspect on the matter, he ventured to say:

“But is there no remedy to be suggested? It is not much that is in my power at this very moment; but I do trust that I might shortly be able to command all that may be wanted.”

The father averted his face to conceal the tears which he could not suppress; and he extended his hand towards his son. The young man took the offered hand, pressed it, and was for some minutes silent. With difficulty the elder Markham replied:

“No, no, my dear boy, I will not hear a word about involving you in my troubles. You are beginning life, I am finishing my course. It is one comfort to me that I shall not leave you destitute: and perhaps when I am gone, you will not neglect your poor mother. It is kind of you to come down to see us in our troubles: my portion in them will be but short; and when I am gone, I hope and trust you will continue attentive to your dear mother. You owe much to her care, and I am sure you will not forget her. Poor thing! she will see you presently, but her spirits are very much agitated. She knows you are come. It is a great blessing to us, my dear boy, that you have succeeded so well in the world.”

To this and much more did Markham the younger lend a painful and reluctant attention; but he was too much distressed to trust his voice to interrupt the desultory talk of his afflicted father. It was indeed very afflictive to him that, at the very time when he was, by means of an honorable and diligent application to the duties of his profession, rising in the world both in wealth and reputation, there should come suddenly and unexpectedly upon him this drawback to his success; for he could not for a moment admit the idea of enjoying his prosperity while his father should be living under the unpleasant consciousness that his debts were but partially discharged. After a little more conversation, and when the first uneasiness of their painful meeting had been somewhat abated, the young man very earnestly, but respectfully, desired to be informed concerning the particulars

of his father's embarrassments, and the amount of the claims upon him. This inquiry, so humiliating to a parent and to a man of such feelings as the elder Markham, was managed by the young barrister with so exquisitely delicate address, that instead of grieving and irritating, it rather soothed and composed the father's mind. There was also a happy and pleasing consciousness that there had been, on his own part, no impropriety or inaccuracy of conduct; the misfortune was simply and purely a misfortune, arising from events over which he had no control. Perhaps it would be rather too severe, and savour somewhat of moral pedantry, should we say that Mr. Markham the elder ought to have been sooner aware of his changing circumstances, and ought to have curtailed his expenses as his means diminished; and that he ought to have known very fully and very exactly all the probabilities and possibilities of mercantile fluctuation. But even supposing him to have had some little suspicion and some faint consciousness that all was not right, it would have been a piece of magnanimity seldom witnessed in the commercial world, had he resolutely and boldly abridged very essentially his usual expenditure; and perhaps that very abridgment would have been the means of hastening the dreaded calamity. Generally speaking, we may say that the calamity in which the elder Markham was involved was not from his own imprudence.

To expose and regularly set forth the whole state of his affairs was not the work of a moment. This business, therefore, was postponed till the following day. In the mean time Markham's mother made her appearance, wearing a much more composed aspect than the young gentleman had expected, judging from the language which his father had used. Mrs. Markham has little to do in our history; but the mother of an amiable, well-conducted, and intelligent young man is almost always an object of respect. The direction and moral habits of the youthful mind depend much on the practical wisdom of a mother. She does not indeed create the mind, but she gives its energies their first impulse. For when the infant first wakes to consciousness, and commences its converse with the world, the first ray of knowledge, and the earliest of its discriminations, beam from a mother's eye; and the emotions of its little heart receive their modulation from the melody of a mother's voice. And is there not an undefinable, but powerfully apprehensible difference between the voice of inanity, selfishness, and grossness, and the voice of intelligence, generosity, and purity? Is there not also as great a difference between an eye which indicates mind, and one

which is but a cold glassy inlet of uninterpreted light? We have before professed not to philosophise, and we restrain ourselves from farther digression here. But when there stands beside the path of our narrative a character so truly respectable as that of Mrs. Markham, we cannot resist the inclination to notice and eulogise it. Much talk has been made of the dignity of females in the higher walks of life, and many fine and interesting specimens have been handed up to the world of rustic purity and simplicity; but the character of Markham's mother belongs not to either of these classes. Hers was a moral, natural, essential dignity: it was not stateliness and pomp, for in her situation these would have been ridiculous, and of consequence undignified. Nature often gives to individuals in every rank of life a species of inalienable nobility, and sometimes denies even to some in the highest walks that nobility of character, by which alone the artificial nobility of civilised society can be properly upheld in its dignity.

All this our readers know as well as we do; and we have not mentioned it by way of instruction or discovery, but simply to let them understand the character of Markham's mind as having been in its earliest developments under the guidance of a mother of this description, and as having received no ordinary portion of the same spirit. The meeting of the mother and the son was not quite so painful as had been the meeting of the father and the son; for the agitation which Mr. Markham had attributed to her had been more in his own feelings than in hers.

The Markhams were what is called old-fashioned people: not that their manners or opinions really coincided with the manners and opinions of any by-gone age or past generation, but because their notions were somewhat romantic, and their manners somewhat formal. They had their own peculiar views of objects; and in these they differed from their contemporaries, and therefore they were called old-fashioned. They would have been quite as old-fashioned a thousand years ago: for the past is the repository in which imagination finds its stock of virtues. They were people of integrity of spirit and of great moral purity, of mild, not cold decorum. They were scrupulously punctual and exact; and therefore when necessity prevented punctuality in that most delicate of all points, the payment of accounts, they felt it as a severe and painful affliction.

From what we have said of the family, their character and circumstances, our readers may readily imagine the feelings with which the younger

Markham quitted his mother. In the minds of some there is a lurking suspicion that these people were proud, and that in order to preserve fairness and honesty in our descriptions and representations, we should acknowledge that much of their then suffering arose from pride. Perhaps it might be so. Let it be acknowledged. We can only say that it would have been much better for the Earl and Countess of Trimmerstone had they possessed more of that species of pride which abounded in the humbler family of Markham: then would his lordship have avoided the mortification of dependence; then would his lordship have avoided the degradation of associating with divers gentlemen of the fancy, and the perplexity of losing his money to them; then would his lordship have escaped the lectures of the police magistrate, as touching a quarrel with Mr. Isaac Solomons, junior, of St. Mary Axe, and also as touching a squabble with the watchmen in connexion with Mr. Singleton Sloper; and then would her ladyship also have escaped an ill-assorted marriage with one who had no regard for her, and an elopement with one of the dirtiest coxcombs that ever perfumed and disgraced humanity. There is a pride which has its uses and benefits.

When Markham the younger had prepared himself for a painful and distressing meeting with his mother, he was agreeably disappointed to find her so very calm and composed; and it also gave him satisfaction to hear that the state of affairs was not quite so bad as from his father's letter he had been led to imagine. A composition indeed had been offered, or rather proposed; for as yet the poor man had merely ascertained his inability to meet all the claims upon him, and he had found himself in a reduced state, but he hardly knew how much or how little he was reduced. Mrs. Markham, who was a woman of business and of good understanding, and who, though not gratuitously and curiously interfering, had examined and investigated the pecuniary difficulties, gave to her son a more particular statement than his father's nervous and agitated frame of mind would allow him to do. From this statement it appeared that the sum required to meet the exigencies of the case was altogether within the compass of the young man's power. This thought dispersed much of the uneasiness which he had felt at first receiving the painful intelligence. Not entirely however was his mind freed from perplexity; for he had doubts and fears concerning his father's willingness to accept relief from such quarter. Nor was it altogether without some disagreeable feelings that the young man contemplated the loss of the first-fruits of his professional success. On the other hand, it was a high

gratification to him that it was in his power to avert a heavy affliction from those parents to whom he owed so much.

Some very profound philosophers, who are a great deal wiser than we are or ever wish to be, are of opinion that mankind are not under very great obligations to parents, and that parents having a pleasure in doing the best they can for their offspring, and feeling a satisfaction in making all manner of sacrifices for their children, have their reward and motive in the very acts themselves, and therefore deserve no very particular thanks or expressions of gratitude. For whatsoever any one finds pleasure in doing, has not the character of virtue, or the power of binding or leading another to gratitude. So to illustrate this philosophy, we may state the matter thus. If a benefactor can truly say to the object of his benevolence or benefaction, “I thoroughly hate, and most cordially detest you; and I have not any pleasure, but rather a great deal of pain, in doing you any kind offices; and it would give me much greater satisfaction to see you starve, than to be conscious that you are enjoying any of the blessings of life;”—then the benefaction is most truly disinterested, and the recipient is bound to be truly grateful. Though we must acknowledge ourselves puzzled to know where to find such disinterested goodness; therefore, in the mean time, we will patiently put up with such benevolence as the world supplies us with; and we will explain away and apologise for any feelings of gratitude which we may entertain towards benefactors and friends, by saying, that our gratitude is not exercised towards them because they deserve it, but because we like it, and it is exceedingly pleasant to ourselves to think and speak handsomely of those who have been the means of doing us good.

It is, no doubt, only on this ground that we can account for so sensible a man as Horatio Markham being grateful to his parents for the sacrifices which they had made, for the purpose of establishing him in that possession to which his taste and ambition were so strongly directed.

CHAPTER VIII.

“I have neither wit nor words nor worth,
Action or utterance or the power of speech,
To stir men’s blood. I only speak right on.”

SHAKSPEARE.

Now during the first day of Markham’s visit to his parents no progress had been made in the matter of business, for as yet the answers of the creditors had not been received. The elder Markham had sent off by the same post the letter to his son, and those which were destined for his creditors. That which had been sent to his son was first answered, as we have stated.

On the morning, therefore, after the young man’s arrival, the coming of the postman was anxiously looked for by all three. The father, indeed, seemed more and more dejected; and ever and anon, instead of taking notice of his wife and son, he muttered to himself, “They won’t accept a composition; I am sure they won’t; it was foolish of me to expect it.”

This was at the breakfast-table; and when either his wife or son urged him to partake of the morning meal, he coldly said, “It is not mine, it belongs to my creditors.” That was very true; but it was distressing to his family to hear such language; and that not merely because it was true, but because it indicated a bitterness of soul in him who used it.

No answer was made; for neither mother nor son had steadiness enough to trust themselves to speak to one who was under the influence of such distressful feelings. They sat at the breakfast-table beyond their usual time, and the postman brought no letters. The elder Markham looked wildly and distractedly, and he said, “Pray give me the letters; let me know the worst. I can very well bear it.” But when they told him that no letters were arrived, he smiled incredulously, and replied, “It is very kind and considerate of you, that you will break the matter to me gradually.”

“Indeed, my dear,” replied Mrs. Markham, “there are no letters this morning.”

“Then they have detained the letters in the shop,” said Mr. Markham; “I will go and fetch them.”

He rose for the purpose, but he presently returned; and just as he was at the door of the apartment, he hastily came back again, and resuming his seat, he covered his face with his hands, and said, in a melancholy undertone, “Oh! I can never show my face there again.”

The poor man’s distress now increased to a degree that rendered it almost as painful to witness as to bear. It is indeed hardly to be imagined to what excess it might have proceeded, had it not been for an interruption of a peculiar and unexpected nature. This was the appearance of the principal creditor, whose high opinion of Mr. Markham’s integrity would not permit him to satisfy himself with a mere letter of reply to the communication which he had received from the embarrassed tradesman.

There was ushered into the apartment where the family was sitting a very tall thin man, in a long single-breasted drab coat of the finest cloth that was ever woven, and wearing a hat which in its shape and expression so sympathised with the wearer’s look, that the hat and the head seemed made for each other. The visitor stalked directly and undeviatingly up to the elder Markham, took hold of the poor man’s hand, squeezed it very hard, and shook it very violently; and after performing this ceremony in total silence, and with most unperturbable steadiness of look, he then spoke with a shrill nasal twang, at the very top of his voice; “Neighbour Markham, I am sorry to see thee.”

This unusually loud noise and strange-sounding voice was quite a relief to the party, who had that morning held intercourse with each other only in low murmurings and subdued and sorrowful tones. To such a greeting, on such an occasion, Mr. Markham felt it difficult to reply. He only shook his head, and said, “I am sorry to see you, sir.”

Thereupon the man in drab, who had taken a seat by the side of poor Mr. Markham, and had crossed his extended legs and clasped his long fingers, leaving only his thumbs at liberty to move, screwed up his lips as tight as a miser’s purse, and, as if economical of words, uttered through the nose a

sound which no vowels or consonants in any European alphabet are competent to express, either severally or conjointly. As it oftentimes occurs that words are used when no meaning is conveyed, so does it on the other hand sometimes happen that much meaning is conveyed when no words are uttered. Thus it was on the occasion to which we now allude. Mr. Markham was familiar with the above-named unwriteable sound; and he knew that it indicated in the mind of him, through whose nose it passed, a feeling of compassion and a promise of kindness.

Turning to Mrs. Markham, the visitor said, "Mary Markham, this is thy son, probably." On this, Horatio Markham took occasion to speak to the creditor, and began by saying,

"I am very much concerned, sir, for the unpleasant situation in which my father is now placed; but I believe we shall be able to surmount the difficulty, if not immediately, at least in a very short time."

"Do thee, indeed?" said the Quaker; and without making more reply, or vouchsafing to the young gentleman any farther attention, he directed himself again to the elder Markham, and said to him, "Thy son is a promising young man."

"I have reason, Mr. Wiggins, to be very well pleased with my son; he is indeed a blessing to us."

"Neighbour Markham, my name is Wiggins; but my name is not Mister. But let us proceed to business; for to that intent I came hither."

Thereupon the creditor thrust his long arm into a deep side-pocket, and extracted therefrom a long black letter-case, and from that letter-case he drew out the letter which he had received from Mr. Markham.

"Neighbour," said the Quaker, "thee might be disposed to think that I had forgotten thee, seeing that thy letter did not receive an immediate answer: but I was willing to see thy other creditors to know how they stood inclined towards thee. So yesterday we had a meeting."

"A meeting of my creditors!" exclaimed Mr. Markham, with great emphasis of grief; "Oh God! that I should ever come to this!"

"Thee will come to something worse, neighbour Markham, if thee don't leave off taking the name of the Lord in vain," replied Mr. Wiggins; "but

thee is impatient; thee will not listen. I tell thee that there has been a meeting of thy creditors, and they are sorry for thy misfortunes, and they are disposed to assist thee. They respect thy integrity; but they would not have thee take the name of the Lord in vain. It is a sad thing, neighbour, to want money; but it is worse to want patience: thee will never get rich by putting thyself in a passion. But thy creditors will not trouble thee at present. They besought me to tell thee that they would wait thy own time.”

At this information Mr. Markham shook his head mournfully. There are those who when in trouble are exceeding sceptical as to good tidings, and are slow to believe what pretends to promise them good. Poor Mr. Markham was of that description. He hardly liked to have the pathos of his deep sorrow interrupted or interfered with. But his son Horatio was a man of more words and somewhat less formality. He readily expressed his thanks to the principal creditor, but at the same time added,

“I trust, sir, there will be no necessity for any long forbearance; had my father stated all the particulars to me before he wrote to his creditors, I believe there would not have been found any occasion for the step which he has now taken. I will be answerable—”

Here Mr. Wiggins interrupted the young barrister. “Young man, be not in too great haste to part with thy money; thee has not been in possession of it long enough to know its weight.” Then turning to the elder Markham, he said, “Neighbour Markham, thee shall go on with thy business, and if thee needs any supply, thy credit is good with me yet. Let thy son keep that which he has earned. Farewell.”

Not a word that could be said, nor any entreaties whatever were effectual to detain the strange Mr. Wiggins a moment after he had said farewell. It seemed to him a matter of conscience to depart as soon as he had uttered the word which indicated the intention of going.

The spirits of the elder Markham were not cheered by that visit which was designed to remove an oppressive weight of sorrow from his mind. The very consideration that there had been any thing like a necessity for proposing a composition weighed very deeply upon him, and produced serious illness.

Markham, whose intention it had been to make a short visit to his native place, now found himself powerfully and indeed irresistibly detained. It was not indeed absolutely necessary for him to be in town at this time; and had even his professional occupations urged his attendance, it is more than probable that their importunity would have been disregarded: for it is not likely that his father's commercial perplexities should have commanded his sympathies more strongly than an actual sickness.

Our English proverbs are not frequently to our taste; for many of them want point, not a few are destitute of truth, and most of those which are correct are cold common-place truisms. There is, however, one which occurs at the present juncture, not indeed very graceful in its expression or profound in its observation, but having in its meaning and application a moral lesson which cannot be too frequently or too earnestly inculcated on the misery-loving and ever-grumbling people of this most highly-favored land. The proverb to which our allusion points is as follows, "It is an ill wind that blows nobody good." Certainly it was not pleasant to the father of Horatio Markham to be so situated that he must be within a little of bankruptcy. Certainly it was not pleasant to the young man to find that his professional success should in its earliest stages be destined to repair the ravages which untoward circumstances had made in his father's property. Certainly it was very painful to see that after this calamity had been partially healed, or at least palliated, his poor father had so taken to heart the unexpected affliction, as to suffer from its influences a severe bodily illness. Certainly it was mortifying to the young man who was looking upwards in society, and was in the way of what is called making his fortune, to have this sudden and unforeseen blight coming over his fair hopes. Certainly also there was something sorrowful to his soul in the consideration that at the very moment in which there seemed a probability that his attachment to Clara might be honorably avowed, he should be called away from scenes of hope and brightness and opulence, to a house of fear, of gloom, of poverty.

These circumstances gathering together round the mind of our young friend perplexed and pained him. It is very true that he was perfectly well acquainted with all the commonplaces of consolation, and he knew that there not unfrequently arises good out of evil. But what does knowledge amount to in the way of consolation? He saw no particular good end likely

to be answered by all these perplexities; but he saw, or thought he saw, a great evil as the probable result of them. He had left London without giving notice to any of his friends; and the business on which he visited the country was not one which he was very desirous of advertising. He therefore very naturally thought that Clara would suppose that he was not very anxious to renew the acquaintance with her; and he also contemplated the possibility of some more rational being than Tippetson making advances more acceptably and successfully. This thought was a source of uneasiness to him, and he could not see any mode of communicating to Mr. Martindale the cause of his sudden absence from town. He had thought that a day or two would suffice, and that in that short time he should not be missed; but now he found that he was likely to be detained much longer; and should he on his return to London state that his father's illness had delayed him in the country beyond his intention, there would still be something remarkable in the fact of his hasty and silent departure from town.

He therefore thought that this illness was most peculiarly unfortunate and calamitous, as not only being distressing to his parents, but probably productive of serious inconvenience to himself.

We have already intimated that Horatio Markham was deficient in some of those qualities that form a hero. Here we have occasion to repeat the observation. His want of heroism was manifested in several points alluded to in the present chapter. For had he been a proper hero, he would never have suffered Mr. Wiggins to grant any thing of indulgence to the embarrassed shopkeeper, but he would forthwith have paid to the utmost every farthing of the debt to him and the other creditors, had he been under the necessity for that purpose of parting with his library and every saleable article in his possession, even to his very watch. Had he been a proper hero, he would have regarded with more apathy and magnanimity a commercial failure. Had he been a proper hero, he would not have admitted the possibility that there could exist on the face of the earth any human being but himself worthy of Clara's hand, or likely to obtain it. Had he been a proper hero, he would not have been quite so shy, as he clearly was, of the fact that his father kept a linen-draper's shop in a country town.

We have represented Horatio Markham as a man of talent and general good judgment, but we have not described him as a paragon of all possible and impossible excellence. He was a steady, quiet, sober, clear-headed man,

who understood his professional and his moral duties, who gave himself seriously to the business to which he was brought up, and who wished very naturally to rise in the world. In a very high degree he was early successful; but he was not vain of that success, nor did he think himself the greatest or the only genius in the world. In matters of intellect he was unpretending, and in matters of a moral nature pure and conscientious.

As he had proceeded he became more ambitious; and by the distinguished patronage which he enjoyed, he hoped to take ultimately a higher rank in society than at the commencement of his career he had anticipated. He had hoped that his parents, either by his own exertions or by their circumstances, might soon retire from business; but when instead of this retirement he found that there was pecuniary embarrassment which he could not easily, if at all, remove, he was severely disappointed; and when in addition to this the illness of his father detained him from town and from Clara, he feared the worst that could happen. Nor could he imagine that in this complication of unfortunate and perplexing circumstances there was any good likely to arise either to himself or to any one else. But he was wrong; for the illness of the father was the means of deciding the destiny of the son's life.

CHAPTER IX.

“To deal in wordy compliment
Is much against the plainness of my nature.”

ROWE.

Considering the language with which the preceding chapter is closed, it would not be decorous to fly off in a tangent to discuss the movements of other characters in our narrative; though we may very well suppose that some of our readers would be glad to know how the Right Hon. the Earl of Trimmerstone bears his retirement, and how he looks in his reformed condition. Nothing more, however, does it suit us now to state on this head, than that orders had been given, and were rapidly proceeding in their execution, for the repair and reformation of Trimmerstone Hall, and that his lordship found some amusement in superintending these repairs.

In the mean time, however, Mr. Martindale, who was aware that it would be doing more harm than good to supply his noble relative's extravagance with unlimited means of indulgence, thought that he should do his lordship more essential service by procuring him some appointment, which might have at least the semblance of occupation for him. With this view he waited upon the nobleman whom we have before mentioned as having patronised Horatio Markham. Here we are strongly tempted to observe how inaccurate is our ordinary language. We call men high in office, men in power. This is wrong. They find that the higher they rise, the more circumscribed is their power. The greater is their patronage, the less able are they to do as they will. A country parson has power to appoint his own curate; a country squire may choose whom he will for butler, coachman, or footman; but they who have the distribution of better things than curacies and coach-boxes, have to consult and to be guided by many more wills, minds, and opinions than their own.

Mr. Martindale found this to be the case with the nobleman to whom he made application in the present instance. Nothing could be more cordial or polite than the reception which Mr. Martindale experienced, and nothing could be more gratifying than the kind attention wherewith his lordship made inquiry after the health of the various members of his family. But when the business was mentioned for which the call was made, nothing could exceed the regret which his lordship felt and expressed that at present

he had it not in his power to accommodate so respectable and valued a friend as Mr. Martindale. There was certainly sincerity in these expressions, though probably they were used with little variation of phraseology to many others. It would have been much more agreeable to his lordship had it been in his power to grant many more requests, and to oblige many more friends; but, as he himself said to Mr. Martindale, he actually had for every place at his disposal at least fifty applications, and many of them accompanied with recommendations and arguments of a most pressing nature.

As Mr. Martindale was a reasonable man, and one to whom his lordship could speak freely, there soon sprung up between them some conversation on the topic of patronage.

“I assure you, Mr. Martindale,” said his lordship, “it is by no means correct to say that I *enjoy* the distribution of patronage. It is an affair of constant perplexity; and I sometimes am tempted to wish that some of the public grumblers were placed for a while in my situation. They would then see that it is not the easiest matter in the world to please every body.”

“I dare say not, I dare say not, my lord,” replied Mr. Martindale; “we cannot administer our own affairs to please every body, and it is not easier to give satisfaction by the administration of public affairs. I will not fly out into discontent and opposition, because I cannot have every thing I wish for my scape-grace kinsman.”

The distributor of patronage smiled, and replied, “It is not every one that is so considerate, Mr. Martindale. There was a situation vacant some time ago, and I disposed of it to a young man of no family or connexion, and with whom I was made acquainted by mere accident, and whom I took up purely on the ground of his good sense and honorable application to business, and I find that I was abundantly right in the judgment which I formed. But I was afterwards exposed to so much expostulation and reproof from quarters where you might least expect it, that I am almost afraid of following my own judgment in the most trifling matters that relate to the public service.”

“I know,” replied Mr. Martindale, “the person to whom your lordship alludes: he is certainly a man of most excellent mental and moral qualities.”

“And for a man of real ability,” added his lordship, “the most unpretending and unassuming I ever knew. He carries his reserve to an excess; for I never see him here among my visitors.”

Now, as Mr. Martindale was an impetuous and hasty man, and was withal mightily partial to this said Horatio Markham, he forgot for a time his noble kinsman, and after taking leave of his lordship, he went immediately to Markham’s chambers to give him a hint that it might be advisable to pay a little more attention to his patron. It also occurred to the old gentleman that he himself had not seen Markham for several days; so he designed to give him also an intimation concerning that neglect.

Greatly to the surprise of the old gentleman, Markham was not in town; and more than that, his clerk could not say for a certainty when he would be in town. Upon receiving this information, Mr. Martindale took the liberty of inquiring very particularly and curiously to find out where he was, and what was the occasion of his absence. Now, when a rich old man asks questions, a poor young man is ready enough to answer them according to the best of his ability, unless he have some especial reason for concealment. There being with Markham’s clerk no such reason, he endeavoured to give Mr. Martindale the benefit of all his knowledge together with the result of his conjectures. From all that could be gathered from this informant, it appeared that Markham was with his parents, and that his father was unwell.

Now Mr. Martindale did not blame the young man for visiting a sick parent, but he thought it very strange that he should make a secret of his departure from town. It was therefore the old gentleman’s first intention to send a note to his young friend reminding him of the neglect with which he had unintentionally treated his kind and considerate patron; but as the town where Markham’s father resided was not much out of the line of road leading to Trimmerstone, and as the old gentleman was especially fond of a personal intermeddlement with brick and mortar, he conceived the design of paying a visit to Trimmerstone Hall, and calling upon Markham in his way there.

The old gentleman found his way into the little parlour at the back of the shop in the same manner as when he first introduced himself, as stated in the commencement of our narrative. His appearance, on the present

occasion, did not excite less surprise, than when he first made himself known to them. When he entered the apartment, the elder Markham was sitting by the fire-side in an easy chair, and had the appearance of one slowly recovering from a long illness. His countenance was much changed, and he looked considerably older than when Mr. Martindale first saw him. The old gentleman was a very observant, quick-sighted man, and had a perfect recollection of Mr. Markham's appearance when he had seen him in health. He was sorry to see him so much altered, and he expressed his concern accordingly. Mr. Markham attempted to rise. Mr. Martindale quickly caught hold of his hand, and almost too roughly for an invalid forced him back into his chair.

"Sit down, my good friend, sit down. I hate ceremony. Sorry to see you so ill. Your son never let me know any thing of your indisposition." Then addressing himself to Horatio Markham, he went on, "So, Mr. Barrister, you left town in so great a hurry, you could not condescend to give me notice of your departure."

The younger Markham was about to speak, but Mr. Martindale waited not for a reply. He proceeded to make more minute inquiries concerning the illness of Mr. Markham the elder; but was not patient enough to wait for distinct and separate answers. When a person in high spirits and of natural hastiness of manner enters into any thing of a conversation with others who are not in high spirits, he does not immediately notice the contrast, for the loud crowing of his own voice is for a time a reflection of his own cheerful thoughts; but even vivacity needs sympathy to support it, and cannot long exist without. And when the first rush of hasty greeting is over, then it is seen and felt that the vivacity is not mutual, and then the cheerfulness abates. So fared it with Mr. Martindale, who was for his years a man of astonishing vivacity and activity. He soon perceived that there was a depression of spirits in the family, and he rebuked himself for the almost levity of manner with which he had addressed them. He then went on to talk common-place, and took an opportunity of hinting to Horatio that it would be proper for him to pay a little more homage to his patron. The mention of this brought some observations from Mrs. Markham, acknowledging Mr. Martindale's kindness in taking notice of her son.

"Madam," replied the old gentleman, "I think it an honor to have your son's acquaintance; and I wish he would not be quite so diffident of himself.

He is in the way to preferment; but he must not forget that though such men as his noble patron may be ready enough to reward merit, they have no time to hunt about for it.”

Mrs. Markham had, as we have observed, a degree of pride, and being the mother of a son who was a young man of rather superior understanding, she supposed that he was far above all the rest of the world, and must make his way by dint of his own natural talents: therefore, as if she imagined that her son required and needed no other patronage than the power of his own mind, she replied,

“I feel very highly gratified, sir, by the kindness which my son has experienced from you, but I wish that his success in the world may be rather owing to his own merit than to patronage.”

“Madam,” replied Mr. Martindale, “your notions are very good for the country; but London is a very large place, and those who have talents must advertise them by some means or other. I am an old man, I have seen something of the world, and I can tell you what I have seen; I have seen talents lost, ruined, buried alive, rendered useless, ay, worse than useless, a very torment to their possessors, because they have had a pragmatistical conceit that they must be independent of patronage. Excuse me, my good lady, I am an oddity I know. Now let me ask you one question. If you wished to go to the top of St. Paul’s Cathedral, which way would you go?”

Mrs. Markham smiled at the oddness of the illustration, and replied, “Of course, sir, I should go the usual way up the stairs.”

“To be sure you would,” replied Mr. Martindale; “but if, under the notion of independence, you should attempt to climb up without the usual assistance of common-place steps, you would find yourself miserably disappointed. I tell you what, Mrs. Markham, I hate sycophancy and fawning as much as you can do; and I should be no real friend to your son, did I recommend him to adopt such means of advancing himself in the world. But there is a fault on the other side; there is an affectation of independence. Now this affectation neither the mob nor the aristocracy can endure. As for your son, he can only rise by means of his talents; he has nothing else to go to market with; he has no votes or borough-interest wherewith to bribe ministers, and no pompous foolery of speechification wherewith to purchase the approbation of the mob. I respect him for his

plain straightforward good sense, and if my cub of a cousin, who has made his nobility ridiculous by his slip-shod dignity and equivocal respectability, had possessed those qualities which your son possesses, he might be called Right Honorable with a serious countenance.”

This was the first time that Mr. Martindale had given way to such serious reprobation of his noble relative. Our readers will, for Markham’s sake, be glad to hear that the young gentleman had left the room before this speech was uttered. There was so much seriousness in the language and manner of expression, that though Mrs. Markham would to a person of her own rank in life have ventured to make some reply of alleviation, but to a person so much her superior as Mr. Martindale she was silent. The talk then took another direction; but Mr. Markham the elder did not join in the conversation, except so far as to express his acknowledgment to Mr. Martindale for the kindness which he had shown to the young man.

The singular old gentleman then took his leave, almost as abruptly as he had entered the house. It is, perhaps, one of the most difficult lessons which persons in a certain rank have to learn, to know how to manage condescension well. When a person of this rank converses with an inferior with a temporary assumption of equality, there generally exists in the mind of the inferior a feeling of awkward restraint, and a consciousness that this aspect or tone of equality is merely put on, and rises not from any feeling on the part of the individual so condescending of the natural equality of the species: and in the apparent equality, greatness is always jealous of encroachments. It was, however, a favorite amusement with Mr. Martindale, under pretence of not regarding the artificial distinctions of society, to hold free and unrestrained intercourse with persons of every rank and of no rank; but he could never divest himself of the tone and air of dogmatism. He always spoke as if he thought himself Sir Oracle: yet nevertheless he was very good-humored withal, and had, amidst all his oddities, a great benevolence of feeling and disposition.

As we have noticed the inaptitude with which greatness sometimes condescends, it may not be improper, on the other hand, to observe that in those of inferior rank there is not unfrequently on such occasions either a mean servility or a jealous suspicion, that the great one so condescending thinks more of his superiority than he really does.

These mutual inaptitudes are great means of preserving, even in a civilised country, the strong distinction of caste. But in the interview which Mr. Martindale had with the parents of Horatio Markham there was very little of this awkwardness, and the old gentleman afterwards observed that Mrs. Markham was one of the most sensible women he had ever seen.

CHAPTER X.

“Why will you fight against so sweet a passion,
And steel your heart to such a world of charms!”

ADDISON.

Markham was glad that Mr. Martindale's visit had terminated without discovering the unpleasant circumstances in which the young man's father had been involved: and as soon as the elder Markham was sufficiently recovered to attend to his usual occupation, the young man took his leave of his parents and returned to town.

Now another season was commencing in the great metropolis, and the family of Colonel Rivolta had become tolerably well naturalised. The Colonel himself, from his relation to so opulent a man as old John Martindale, became a person of some consequence, and he had the honor to lounge and yawn about the streets with divers persons who bore titles or were in expectation of titles. Much as ignorant and superficial people may laugh at the old story of Jack helping Dick to do nothing, we are firmly and seriously of opinion that a man is never so much in need of assistance as when he has nothing to do. Colonel Rivolta found many persons in London in this predicament, and such was the natural benevolence of his mind that he took an inexpressible delight in affording them all the assistance in his power. The Colonel was never without a cigar in his mouth; and therefore he was peculiarly acceptable to those young noblemen and gentlemen who could not for the weakness of their heads smoke in the morning, because though they could not smoke they could employ themselves with sniffing the fumes of the Colonel's cigars.

The Colonel was not indeed very intimate with the English language so as to enjoy and understand its delicacies and niceties; but he was sufficiently well acquainted with the language and air and style of fashionable impertinence and coxcomical exclusiveness, and he could laugh remarkably well. He was also exceedingly well-dressed, and had that exquisitely ridiculous military air, which if it be not the glory is at least the

pride of most of those green ones who have entered the army since 1815. The Colonel had also in very great perfection the imitative faculty, which enabled him to catch to the very life the manners of the people with whom he associated. He caught with great facility all the fashionable fool's tricks of the dinner-table; and notwithstanding his imperfect knowledge of the English language, he had no difficulty in understanding and in making himself understood in all matters touching eating and drinking: on these subjects he was eloquent and animated. The Colonel was not a very young man, as may be inferred from the age of his daughter, but he had the air and manners of youth; and he was thus more ridiculous, if possible, than those young men with whom he chiefly associated. This, however, could be said for him which could not be said for them; namely, that he had seen actual and severe service, and had undergone many hardships: there was therefore something of philosophy in his very flippancy of character and manner.

Of a gentleman of this description while sauntering about in time of peace, it is very clear that the historian's pen can have little or nothing to record: nor can our readers be much surprised if, when speaking of the interests of Clara Rivolta, we should say little or nothing of her father as influencing her destiny or directing her actions. It is not indeed to be supposed that such a woman as Signora Rivolta should pay very great deference to the opinions of Colonel Rivolta, even if he had any opinions, which, by the way, he had not. If any of our readers are astonished at the fact that the daughter of John Martindale should, in spite of all her good natural understanding, have condescended to marry such a man as Colonel Rivolta, we can only say that such readers must have a very limited circle of acquaintance, or be gifted with the not unusual faculty of being blind to one half of that which passes immediately before their eyes. We have hinted before at this apparent incongruity, and our reference to it again in this place to account for the omission of Colonel Rivolta's name or observations in some part of our narrative, which is now about to be opened; and we wish also to avoid any thing which might appear disrespectful to the nobler sex: for it would be very wrong to represent the disposal of a daughter's hand as being more at the will or under the influence of the mother than of the father, unless some special and peculiar reason were given for the fact. Man is the lord of the creation, and he has right because he has power. If any body can find a better reason let them, we will not quarrel with them or dispute the point; our business is not philosophy.

To our narrative then. Horatio Markham no sooner arrived in town than he went to pay his respects to his noble patron. He was graciously received. He made a few common-place apologies, which were received with due common-place politeness, and that business was soon over.

From the house of his noble patron he made the best of his way to the residence of his queer old friend, John Martindale. Almost all single men, who are not downright hermits, have some peculiar pet place of call; some friend's house, where they uniformly make their first and last visit; where they pop in without fear of intruding. Sometimes, such is the fickleness of humanity, these places are changed; and even Markham, with all his steadiness, was once in great danger of substituting the house of Mr. Henderson for that of Mr. Martindale. A thousand blessings on the head of Dr. Crack for supplanting him there!

Mr. Martindale was not at home when Markham called. That, of course, Markham knew; but he would not suffer any more reproaches from the old gentleman for neglect of attention. Signora Rivolta and her daughter were sitting together; the mother was reading, the daughter was drawing. The mother laid aside her book when Markham entered the room; and she smilingly said, that her time might be better employed than in reading for amusement. The book was a volume of Italian plays. An Englishwoman would have thought herself most learnedly occupied with the same; especially if she had had by her side a dictionary, which she was frequently under the necessity of consulting. There is no waste of time in reading books of amusement when they are not amusing. What a fuss people make about amusement, and very sensible people too! But perhaps there is a pleasure in railing against pleasure, and so we will let it pass.

It was not usual with Signora Rivolta to express herself with so much freedom and cheerfulness to Markham as she did at this interview. There had generally been something of distance and restraint in her, as if fearful of giving the young man too much encouragement.

The time had been that Markham would have been mightily pleased with this manifest change in the deportment of Signora Rivolta; but under present circumstances it appeared to him that it was merely owing to the apparent discontinuance on his part of all serious attention to Clara; and he

also felt that it would be morally impossible for him, in the present state of his father's affairs, to think of making proposals.

With affected ease and cheerfulness he conversed with Signora Rivolta; and with an almost ridiculous affectation of indifference, he took comparatively little notice of Clara. The conversation between Markham and Signora Rivolta was unusually animated. Matters of taste were discussed, politics touched upon, and theology alluded to.

The last was an exceedingly delicate topic. Markham, with all his simplicity and ignorance of what is called the world, had not been inattentive to theology. He had observed and thought much of the influence of religion upon the human mind; this, indeed, had been his first and almost his only speculation. He had been very desirous, even from early youth, of acting and living most accurately and conscientiously. He was as ignorant on the subject of sectarianism as any member of an establishment need wish to be. But sectarianism does not spring from the attractions of heresy so much as from the dissatisfactions of orthodoxy. For so long as the dogmas of our own creed please us, the arguments of another, however ingenious, do not disturb us. Unfortunately, however, for Markham's orthodoxy, his native town labored under the evil of a schism in the church, which is far more injurious to its stability than a schism from it. The evangelical party was very strong and very numerous, and very noisy; and made a great talk about religion, and paid very great attention to church duties and observances. Markham was a man generally speaking much in earnest, and he therefore gave much attention to this modification of the established theology; and had, when a very young man, contrary to the opinion and advice of his father and mother, sided with this party; and he thought the other party little better than mere indifferentists.

He thought he saw among the evangelical party symptoms of the original and primitive spirit of Christianity; and he used to say so very freely, and to think so very seriously. And his mother used to say, he would know better as he grew older: and in process of time he did grow older; and whether he thought better or not we presume not to say; but we do know, that as he grew older, he acquired a habit of analysing motives and looking into principles. And it came to pass that he found among these evangelicals divers manifestations of a worldly spirit, which did not exactly coincide with his notions of extraordinary spiritual purity. In the mercantile part of

that class he saw much that bordered very closely on trickery; in the class a little higher, he found a mighty spirit of conceit and priggishness. Towards their neighbours he saw that many of them were mightily censorious. In conversing with some of them, and those the ringleaders, he found that they were prodigiously ignorant of the very principles on which their peculiarities were founded, and he found them to be unanimous only on one point; namely, that their favorite clergyman was a *nice man*.

At this discovery he was somewhat tempted to smile; and as in some cases tears lead to thought, so in others do smiles lead to reflection. And is not this the order and ordinance of nature? The human infancy, which is the vestibule of intellect, is a scene commingled of smiles and tears, of passionate sorrows and of noisy joys; then comes reflection. So it had been with Markham in what may be called his theological infancy. Led by circumstances to reflect and to think, he perhaps carried reflection and thought farther than he first intended, or was aware of. But it was something, and indeed a very great matter, that he had penetration enough to see through, what he had charity enough to call, the unconscious mask of fanaticism.

Thus led to reflection, his mind did not hastily settle. He was entertained by various speculations, and he made many inquiries, and was forced to find answers for them as well as he could. He had, as people say, his own opinions. What those opinions were we know not, and perhaps Markham himself did not exactly know; and therefore, as he apprehended these opinions indistinctly, he could not communicate them, and thus they were likely to continue his own. Whatever were his literal opinions, the spirit of his theological feeling was catholic; not Roman Catholic, gentle reader, but catholic in its widest acceptation. He did at one time reprobate sectarianism not as a nurse of dangerous heresies, but as a violation of the spirit of nature's catholicism, and an unauthorised earth-born enclosure of heaven's free blessings; but he, in time, so far surmounted that feeling, as to discern in the constitution of the human mind the elements of sectarianism; and he at length came to the dangerous conclusion, that there must needs be diversity of opinion so long as there was diversity of minds.

This state of mind will easily account for his overlooking the theological education of Clara Rivolta, while and when he thought of paying court to her; and it will also serve to explain the fact of his calmly conversing with

Signora Rivolta on subjects connected with theology. For this good lady had also a free and liberal spirit towards dissidents; and did think that in religion there was something eternal and indivisible, which humors of the day could not limit, nor the low walls and fences of sectarianism divide. Her faith, however, and her devotion, however liberal might be her feelings, were modulated and disposed according to the religion in which she had been educated. Those forms she preferred decidedly, but not angrily.

Now that part of the conversation which had reference to theology was on the broadest and most general principles; and the parties, so far as they went, coincided.

Markham had been talking with Signora Rivolta a long while; and he had been so mightily well pleased with his own speculations, freely uttered and candidly received, that he did not notice that all this time Clara had been perfectly silent; and that she had been attentively, to all appearance, occupied with her drawing.

But the conversation on the part of the mother of Clara presently flagged; and the eyes of the Signora were directed to a time-piece that stood on a bracket in the room where they were sitting. The index pointed to the hour of two. Markham recollected having seen that time-piece in poor old Richard Smith's cottage at Brigland; and when Signora Rivolta looked at it so earnestly, there rushed into the young man's mind recollections of the past; and he was so lost in these recollections, that he did not think of the proper interpretation of the Signora's looks at the time-piece.

There was presently an awkward silence; and Clara lifted up her face from the table and looked at her mother, and saw that her mother's eyes were directed to the time-piece; and there also did she look, and then suddenly her countenance changed, and she looked again at her mother, and slightly at Markham, and she almost sighed.

Markham scarcely heeded these movements for a minute or two; but presently his recollection came to him, and he bethought himself that he had made an unusually long visit, and he rose to take his departure. Then he saw, by the manner in which Signora Rivolta received his motion to depart, that his stay had been quite long enough; and he was still, with all his philosophy, so far in love with Clara, that he fancied that she also seemed glad that he was going. She smiled, indeed, and courteously said, "Good

morning, sir.” But if she had not smiled, she must have sighed; and perhaps have almost wept.

As Markham was retiring, he met at the drawing-room door a strange mysterious-looking personage, dressed in black, and having a look of gloom and darkness far beyond any darkness of attire. The stranger fixed his eyes inquiringly on the young barrister, and by his looks seemed to rebuke the young man as an unwelcome intruder. Markham again looked at the stranger, not from wilful curiosity and voluntary impertinence, but almost through a power of fascination. Never had he seen a countenance of such singular and curious expression. It seemed not only unenglish, but unearthly. The eyes were large, flat, and lustreless; the cheeks long, narrow, pendulous, and sadly sallow; the nose aquiline; the forehead low and wrinkled; the hair thick and grizzled; the mouth wide, and the lips thin and pale; and the teeth long and irregular, and alternately black and yellow, like the keys of an old harpsichord. Markham sickened at the sight; he guessed what the stranger was; and so can our readers.

CHAPTER XI.

“But here I am to speak what I do know.”

SHAKSPEARE.

Markham had a long way to walk to reach his chambers. He went slowly, sorrowfully, and abstractedly. He thought over and over again of his troubles and disappointments. It was a painful thought to him, that just at the moment when his ambition of rising in the world seemed about to be gratified, he should find himself, by the misfortunes of his father, checked, thrown back, and humiliated. It could not but occur to his mind, that in order to gratify him, and to place him in a profession to which his genius and inclination directed him, his father and mother had made many sacrifices, and perhaps had impoverished themselves. He could, indeed, in a pecuniary point of view, repair the evil, at least in a great measure; but he could not heal the wounds of the spirit, which he saw that his father had so deeply felt. It was not in his power to recall the past, and restore health and spirits.

The young man also was perplexed and troubled on his own account. He had long cherished, though with some interruptions, the prospect of obtaining the hand of Clara Rivolta. He had, with a very pardonable, because very common conceit, pleased himself with the imagination that as the intellectual qualities of her mind were of a superior character, she was therefore most excellently well calculated for him; and he thought it a great pity that so intelligent a young woman should be sacrificed to such an empty coxcomb as Tippetson. We must pardon Markham for a little vanity: we are all of us vain of something; and those that are not vain of something, are vain of the absence of vanity.

Among other thoughts in Markham's mind there now sprung up, and perhaps predominated over all others, the thought of Clara's religious prejudices: for all people who differ from ourselves have religious prejudices. That hideous looking stranger, whom Markham met at the door as he was parting from Clara, was clearly a priest of the Roman Catholic

church. He looked exactly like an inquisitor; so thought poor Markham, from whose representation we have described the person. What a blessing it is that Protestants have no prejudices!

It was a sad pity, the young man thought, that so amiable and beautiful a creature as Clara should be under the influence and spiritual direction of such an ill-looking, morose, and sour priest. He thought that her understanding was sufficiently strong to be above the influence of superstition; and his only fear was the reverence in which she held her mother would overpower every other consideration, and prevent her from giving due weight to such arguments as might be urged against her hereditary faith. In his own mind there was some portion of imagination; and he could readily understand how a system of religious faith and ceremony, blended with early recollections and associated with thoughts of parental kindness, might be too powerful in its hold upon the mind to admit of being moved or shaken by the coldness and dryness of argument. At all events, whatever might be Clara's faith, and to whatever church she might be attached, there were other objections which rendered it not by any means consistent with Markham's notions of propriety to propose or even to take any steps towards proposing, under present circumstances.

When he arrived at his chambers, he found that during his absence many inquiries had been made for him. Among others, he saw that Sir Andrew Featherstone had called. As Markham had no acquaintance with, and but little knowledge of, that worthy baronet, he supposed that the call was one of business; and knowing the intimacy which subsisted between that gentleman and the Martindale family, he thought that it might be agreeable to the old gentleman if he should return that call very promptly.

He therefore interrogated his clerk as to whether Sir Andrew had given any intimation of the object of his call. The clerk said that Sir Andrew looked in low spirits, and expressed great anxiety to see Mr. Markham, and made very particular inquiries as to the probable time of his return.

"And what answer did you give him?" asked Markham.

"I told him, sir, that I could not be sure of your return to chambers before four or five o'clock, and that you might not then stay longer than merely to dress for dinner."

“But did not you tell him where he might find me?”

“I did, sir; I said that if Sir Andrew was very desirous of seeing you, he would probably find you at Mr. Martindale’s house in Piccadilly. When I mentioned Mr. Martindale’s name he shook his head and said, ‘No, that will not do;’ and then, after a little hesitation, he said that he would call again in the course of the morning.”

This colloquy between Markham and his clerk was scarcely finished, when Sir Andrew Featherstone made his appearance. The worthy baronet was indeed very serious in his looks; and as his usual manner was one of great levity, his serious moods were clumsily gloomy.

“Mr. Markham,” said the baronet, “have you recently seen our good old friend, Mr. Martindale?”

“I saw him, Sir Andrew,” replied Markham, “a few days ago on his way to Trimmerstone.”

“You have not heard from him since?” inquired the baronet; and as he made the inquiry he looked very grave.

Markham of course concluded that some serious accident had befallen his friend, or that he was no more. With anxious eagerness, therefore, he asked, “I am afraid, Sir Andrew, by this question, that you are the bearer of some painful intelligence respecting my worthy friend.”

“I certainly am, Mr. Markham; and I am sorry to say, that, judging from the letter which I received this morning from Mr. Martindale’s attorney at Brigland, I fear that the poor old gentleman is very near his end, even if he be living at all.”

Markham started at the intelligence and exclaimed, “Impossible! it is scarcely a week since I saw him on his way to Trimmerstone in perfect health and spirits.”

“But,” replied Sir Andrew, “he did not reach Trimmerstone: he stopped short at Brigland, where he had some matters to settle with his confidential attorney, Mr. Price; and between you and me, Mr. Markham,” continued the baronet, changing his grave and solemn for wise and mysterious looks, “I strongly suspect that that said confidential attorney will be found to have made of his confidence a great deal more than it was worth.”

Markham was again astonished; for Markham was a very conscientious man, and could not readily believe many of those insinuations which are made against divers members of the legal profession. He thought that the greatest pecuniary sins that could ordinarily be laid at the door of conveyancers were a little exaggeration in the statement of their labors, and an undue estimate set upon their toils. Markham also could not help observing how readily and easily Sir Andrew Featherstone made the transition from a serious annunciation of Mr. Martindale's illness and probable decease, to the hypothetical knavery of his confidential attorney. But why should any thing be strange to us? Simply because we do not observe, or because observing we do not remember.

Markham proceeded to inquire of Sir Andrew Featherstone what steps it would be desirable to take with respect to communicating the intelligence to Signora Rivolta.

"That," exclaimed Sir Andrew, "is the difficulty. Mr. Price has requested me to make the communication; and indeed, to say the truth, I really fear that the poor old gentleman is no more. This is his letter."

Thereupon the baronet handed to Markham the attorney's letter, which was in the usual common-place style as adopted on such occasions, and as there is nothing else common-place in these volumes, we shall not think of violating their uniformity by the insertion of this letter. When Markham had read the letter, he returned it to the baronet, saying,

"Indeed, Sir Andrew, from the tenor of this letter, I am almost sure it must be as you suspect, and our worthy friend, I fear, is no more. It will be a painful task to communicate the information to his family."

"So indeed it will, Mr. Markham," replied the baronet; "and for that reason I wished to devolve the task on you, or any one else that would be kind enough to undertake it. I really cannot manage these affairs so well as some people can. I have already given a hint to the priest that is often calling at the house, but in truth there is very little in his look or manner that is likely to console the poor creatures. Do you know that priest, Mr. Markham?"

"I believe," replied Markham, "that I saw him this morning for the first time in my life; for as I was leaving the house, I met a gentleman of clerical

and morose look, who appeared as if he was the bearer of ill tidings.”

“Oh, very good, very good, he is the proper person to tell them. Well, but now, Mr. Markham, have you any idea of what will become of Mr. Martindale’s vast property? I am very much afraid that Price the lawyer will come in for a great share of it.”

“Indeed, Sir Andrew,” said Markham, “I have never given the subject a moment’s thought; but I have no doubt that a man of such natural acuteness as Mr. Martindale would not suffer himself to be imposed on or deceived by a country attorney. But what reason have you for imagining any thing of the kind?”

At this question Sir Andrew Featherstone shook his head and looked very wise; and he seemed pleased that Markham had given him an opportunity of entering upon the subject by way of explanation.

“Now I will tell you,” said the busy baronet; “Mr. Martindale and I have been long acquainted with each other, and very good friends we used to be in our younger days; but when Mr. Martindale came into possession of his large property, he rather altered his behaviour and was more distant: however, I bore no malice, but called on him as before. In time this shyness wore off; and one day when I was with him at Brigland, soon after he had finished building the Abbey, he told me that he had just been making his will. He was always very fond of making wills. I suppose he may have made twenty or thirty wills in the course of his life. Well, sir, he had been making a will, and he wished me for one to witness the will. Now I could not help, very naturally you know, just giving a glance of curiosity over the sheets; and the old gentleman said to me in his usual, hasty manner, ‘Read the will, man, read it; I don’t wish you to put your hand to you know not what.’ So I read it over, and signed it. I observed that legacies are given to a very considerable amount; and at last this fellow Price was named as one of the executors and residuary-legatee. I could not help remarking to Mr. Martindale that I thought he had been over-liberal to his confidential solicitor; for I was almost sure that by this arrangement he would have at least one-half of the old gentleman’s property.”

“But you do not mean, Sir Andrew, to say, that Mr. Martindale was not aware of the extent of his own property?” replied Markham.

“I do mean to say so,” said the baronet, “and I am sure of the fact; and the villany of this man Price consists in this, that knowing he is to be residuary-legatee, he keeps or has kept Mr. Martindale in the dark as to the real value of his property.”

“Well,” replied Markham, “it cannot now be helped. But it was a pity that you did not endeavour to undeceive Mr. Martindale.”

“Endeavour to undeceive him? Why, my good sir, how do you think that was possible! You surely were sufficiently acquainted with our worthy friend to know that he would never be convinced against his will.”

Markham smiled, and acknowledged the truth of this remark. But the consideration now was, what steps should be taken to ascertain the real state of Mr. Martindale, and what farther communication should be made to Signora Rivolta, and who should be the bearer of the intelligence. Sir Andrew Featherstone, by paying great compliments to Markham’s superior understanding, attempted to throw the burden on his shoulders; but the young barrister, though no more adverse to flattery than any one else, did not think a compliment from the lips of Sir Andrew quite sufficient recompense for the trouble of an unpleasant embassy, and therefore gave it up to him on whom it devolved with greater right and propriety. Poor Sir Andrew was grievously annoyed by his commission, but he felt himself bound to undertake it.

With slow and reluctant steps the worthy baronet proceeded from Markham’s chambers to the town-house of Mr. Martindale; and though he was a man of as much humanity as ninety-nine in a hundred, he was not very sorry when the servant who opened the door informed him that Signora Rivolta could not be seen; for intelligence had been just received from Brigland of the death of Mr. Martindale.

It seems that the letter which Mr. Price had written to Sir Andrew Featherstone was written just before the decease of Mr. Martindale, and that another had been despatched by the same day’s post to Colonel Rivolta immediately after the old gentleman’s departure from life. The Colonel did not trouble himself much about letters, and therefore handed over the communication to Signora Rivolta, who became thus suddenly and abruptly made acquainted with the event which Mr. Price in his considerateness would have conveyed to her circuitously and gradually. For though Mr.

Price was rather cunning and dexterous as concerned pecuniary transactions, and made the business of conveyancing more profitable than many an honest man would have done, yet he was by no means an unfeeling man, or a man of rudeness or vulgarity of manners. He was, on the other hand, a man of great urbanity of manners, and altogether courteous, kind and gentle in his deportment. He never was accused or suspected of any thing like insensibility or unkindness: he was a most excellent father, and one of the best of husbands; and though he was not exceedingly conscientious in pecuniary affairs, he still would never have enriched himself at the expense of another's misery and obvious sufferings. But when the affairs of old Mr. Martindale were put into his hands, and when he saw that the old gentleman's property was so much beyond his wants and beyond his ideas, a temptation was thus presented to the man of law to take some little advantage of this ignorance.

As Mr. Martindale frequently amused himself with making wills, and as in all these drafts and directions he had uniformly stated that Mr. Price was to be one of his executors and residuary-legatee, the conveyancer thought it might be politic still to keep the old gentleman in the dark as to the real value and extent of his property. There is a casuistry which might represent such conduct as being perfectly honest; but we deal not in casuistry, and therefore we leave it with the stamp of our reprobation; and very much, no doubt, such men as Mr. Price will care for our reprobation.

CHAPTER XII.

“Trust not the frantic, or mysterious guide,
Nor stoop a captive to the schoolman’s pride.”

SAVAGE.

Before we remove the scene of our narrative to Brigland again, it will be necessary to let our readers into the secret of the ill-omened appearance of the priest, at whose aspect our friend Markham so instinctively shuddered.

If the slight and occasional notice which we have taken of Clara Rivolta’s character and circumstances have conveyed to the minds of our readers those impressions which we have designed that it should convey; they will see that the poor girl, from circumstances over which she had no control, and from a natural timidity and diffidence, had been painfully and severely tried. They will also readily imagine that she had experienced no slight inconvenience from the difference between the religion of her birthplace and the religion of her present home. They will easily imagine that her mind could not be so passionately and fervently devoted to the old religion as was the mind of her mother; and they will also be able to apprehend that she could not be very hostile to the faith which Markham professed. Now, though Signora Rivolta was a woman of good natural understanding, of great discernment, and of strong mind; and though she could reason well and talk liberally, yet she had by constitutional temperament a strong tincture of fanaticism. Her mind was naturally enthusiastic; and though fanaticism and enthusiasm may be managed with a better grace in minds of an exalted character than in those of inferior powers, yet where these feelings do exist in strong and superior minds they are exceedingly obstinate and unchangeable. It was therefore with no agreeable feelings that Signora Rivolta had contemplated the possibility, and indeed the great probability, that her daughter would give her hand to a Protestant.

A conversation which the mother of Clara once had with Lady Woodstock on this subject by no means reconciled her to the anticipation. The substance of the conversation was as follows: Lady Woodstock had

prevailed with Clara for two or three successive Sundays to attend with her at Mr. Henderson's chapel; and on their return from the chapel one morning, Lady Woodstock observing that Signora Rivolta looked unusually morose, addressed her as if her ill looks were from mere bodily indisposition.

"My dear Signora, I am afraid you are not well this morning."

"Lady Woodstock, I am unwell; but it is the malady of mind. I am not pleased that my daughter should forsake the religion in which she was educated. I have not seen in this country sufficient proofs that the Protestant religion is so superior to the Catholic, as to make me wish that my daughter should renounce the faith of her native land."

Lady Woodstock was not one of those good-humored people who are never out of humor except when they are displeased: her good-humor was perpetual; and it was by no means her habit to snatch eagerly at an opportunity of being affronted. With the greatest cheerfulness of manner, therefore, she replied to this pettish speech of Signora Rivolta.

"My very good lady, why should you imagine that I have any wish to withdraw your daughter from her own religion? But even suppose that such an event should take place, you are not so illiberally inclined as to believe that salvation is not attainable in the Protestant church; and as it is not impossible that your daughter may be married to a Protestant, it is well that she should at least learn to regard that religion with complacency."

The mother of Clara was by no means softened by that reply, but with unabated asperity replied, "I must entreat you, my Lady Woodstock, not to speak so slightly of religion. Would you have a woman renounce her religion for a husband?"

"I think seriously," said Lady Woodstock, "that the religion of the wife should conform to that of the husband."

"Abominable!" exclaimed Signora Rivolta.

"Nay, nay, my good friend, I see nothing so very abominable in the matter. No woman ought to marry a man whose religion will be his condemnation; and the religion which may be made effectual to the salvation of the husband is equally capable of saving the wife."

“Sophistry, not worth refuting;” was the only answer which Signora Rivolta made to this last speech.

The cause of this ill-humor in the mother of Clara, and of this ebullition of bigotry, was the appearance in London of an Italian priest named Martini, whom Signora Rivolta had known in Italy, and from whose fanaticism her mind had received there a strong religious impulse. This Father Martini had, on the Sunday morning in question, officiated at the chapel where Signora Rivolta attended, and his discourse had been on the subject of religious indifference; and that part of religious indifference on which priests are most eloquent, and with which they are generally most angry, is an inattention to sectarian theories or peculiarities. By the eloquence of Father Martini the zeal of Signora Rivolta had been revived, and with that zeal there also arose a feeling of hostility and bitterness towards heretics.

This conversation took place just after the elopement of the Countess of Trimmerstone with Mr. Tippetson: and as after that event Horatio Markham, from circumstances already noticed, did not pay such constant attention as in former days he had paid to Clara, Signora Rivolta began to have hopes that the attachment on Markham’s part was dying away. With respect to Clara, it was evident that her mind was in a painfully unsettled state; and her mother thought that no better remedy could be applied, than removing her from those scenes and associations from whence her unhappiness arose; and as Father Martini was a man of some consideration in his own country, and a person in whom the Signora could confide, it entered into her mind that it might be desirable to send Clara back to her native land under his guardianship, till such time as in the revolution of events Colonel Rivolta and herself might be able to return to Italy.

It would indeed have been a gratification to her mother, could Clara have been easily induced to take the veil; but the Signora had more consideration for her daughter’s feelings than to use, or to suffer to be used, any urgent importunities on the subject. And here we are quite willing and most happy to render to Signora Rivolta the justice which acknowledges and commends the gentle and unimportunate mode in which her wishes on this subject were always expressed. Every body knows that there is a mode of importunity which wearies and worries into compliance, when the judgment and inclination are equally and strongly adverse to that compliance. And

this importunity is so expressed, and with such jesuitical dexterity is it oftentimes managed, that when it has gained its object, its victim is thought and spoken of as acting from its own free will. Beautifully is this importunity pictured in that touching song called “Auld Robin Gray.”

“My mither didna speak,
But she looked in my face
Till my heart was nigh to break.”

Now there was no such species of tender worrying as this in Signora Rivolta’s conduct towards her daughter. The Signora was somewhat fanatical, but she was straightforward and honest.

The presence of Father Martini in London at this juncture certainly led the mother of Clara to thoughts concerning her daughter; and, knowing that Mr. Martindale was not very partial to the priests of her religion, she took occasion of his absence to hold frequent intercourse with this zealous supporter and advocate of that faith in which she had been educated. Father Martini had made frequent visits, and had held long consultations. In those consultations mention had been made of Markham and Tippetson; and when the priest made the last visit, he took it for granted that the person whom he met at the drawing-room door was Markham: for that reason he looked at him with such inquisitorial scrutiny.

It has been stated that Sir Andrew Featherstone had met this Father Martini, and had informed him of the dangerous state in which Mr. Martindale was, at Brigland. This information the priest of course conveyed to Signora Rivolta. But before he had well finished speaking, a letter came from Brigland, addressed to Colonel Rivolta, and by him it was immediately handed over to the Signora.

The suddenness of the information, and the unexpectedness of the event, gave a painful shock to her feelings. At the first meeting of father and daughter, as mentioned in an early part of our narrative, there was comparatively little emotion. They had not been acquainted with or accustomed to each other, and therefore all the emotion which was excited was merely by force of imagination, in which faculty neither of them much abounded. But when Signora Rivolta had resided for a year or two with her lately-discovered father, and had experienced from him so much more

kindness, attention, and even homage, than the circumstances of her birth could have led her to anticipate; when she had observed in his mind those traits and features, which are really and substantially good; and when she had seemed to be essential to his happiness and comfort: then indeed it was painful to her that he had been thus suddenly snatched away from her, and that he had breathed his last at a distance from every relative; and that the only farewell had been the parting for a short journey.

When Signora Rivolta had read the letter, she gave it to her daughter, and covered her face, and wept bitterly, but not loudly. The contents of the letter were thus made known to Clara before she read it. There is sometimes a consolation springing from the suddenness of an afflictive announcement; for if the first shock is well sustained, the details and particulars frequently act as alleviations. But Clara's nerves were not strong, and her susceptibility was acute; and as her mother was not ordinarily passionate in grief or profuse of tears, the deep sobbings which the poor girl now witnessed overcame her self-possession, and she uttered a slight scream and fainted. The usual restoratives were promptly applied, and the stern-looking Father Martini was deeply moved at the scene of distress before him.

Clara was presently removed to her own apartment; and when she was sufficiently recovered to be left alone, Signora Rivolta returned to the priest. Now though this man had a stern and forbidding aspect, and though he was most zealously and exclusively devoted to that form of Christianity which he professed, yet he had the kindly feelings of humanity about him; and even the sternness of his bigotry had mercy for its motive.

"Lady," said the priest to Signora Rivolta, "I can pity you. I can make allowance for the frailty and weakness of human feeling; but you must, in the midst of your grief, remember and adore the hand which sends affliction. And you should consider whether there be not some peculiar spiritual good to be derived and drawn from temporal and worldly sorrow. You have lost a parent. Pray for his soul. His errors might have shaken the stability of your faith; and if he endeavoured, while living, to poison your soul with heresy, now return good for evil, and pray for him. Who can tell how much the prayers of the faithful may avail!"

Signora Rivolta listened calmly, and replied, "But, father, will my prayers be successful for a heretic?"

“Daughter,” replied the priest, “there are no heretics in the grave.”

There was a pause in the conversation; and Father Martini anxiously watched the countenance of Signora Rivolta to see when there might be an opportunity of speaking concerning the daughter, of the steadiness of whose faith there was some ground of doubt. As there appeared some symptoms of composure, the priest, after a short interval, said, “Daughter, when afflictions come upon us, it is for our own good, or for the good of the church, most frequently for both. You have a child who was brought up in the bosom of the holy church; the faith of that child has been endangered. It is now more than ever in your power to secure and establish it. Whereinsoever you doubt your own influence in this land of heresy, that defect may be supplied and that evil remedied by removal of your child into a country where heresy is unknown.”

There followed this address a much longer and more embarrassing interval of silence, which at length was slowly broken by Signora Rivolta in a subdued and almost whispering tone. “Father Martini, I reverence the faith in which I have been reared from my infancy, and I feel it to be a faith of holy and sustaining power; but I fear that it has no influence where it does not rule the will; and I cannot, dare not, use an importunity of persuasion to urge my child to the steps which you suggest. If the church receives her wholly, it shall receive her freely.”

At this speech there was a slight frown upon the brow of the holy man; but Signora Rivolta saw it not, nor was she aware of any unpleasant feeling in the mind of Father Martini, when in reply he said, “Lady, you, as a mother, have power to influence; and the influence which you can use is more than authority and weightier than command. A child cannot long resist a parent.”

With much quickness and promptitude, Signora Rivolta replied, “My child shall not resist me.”

Father Martini was pleased; and with an agreeable feeling he rose to take his leave, saying, “Now, lady, I leave you; and when you have performed your duty to the dead, you will not forget your duty also to the living.”

There was a meaning in the Signora’s last expression which the priest did not observe. To his ear it sounded as if it was intended to say that resistance

would be hopeless and ineffectual. From the lips of Clara's mother it was intended to say, that no importunity of persuasion should be used. It was a pleasant misunderstanding on both sides.

CHAPTER XIII.

“In terms as moving and as strong,
As clear as ever fell from angel’s tongue,
Besought, reproved, exhorted.”

HARTE.

Signora Rivolta, in her present circumstances, felt it absolutely necessary to send for Markham, in order to avail herself of his advice as to what steps were now to be taken: for even if the Colonel had been a man of business and decision, he was almost, if not entirely, a stranger to the laws and manners of England.

Markham immediately obeyed the summons, and accompanied the family to Brigland. At his suggestion they first called upon the clergyman, Mr. Denver. From him Markham supposed that they should be able to gather the particulars of Mr. Martindale’s death better than from talkative and ignorant domestics, and less frigidly narrated than by a calculating scrivener. The young barrister also supposed that Mr. Denver’s thirst for knowledge might have put him into possession of all the particulars; and he knew that nothing so tended to the abatement of sorrow as a little ingenious circumstantiality. In these expectations Markham was not disappointed.

Mr. Denver received the party with great ceremony and formality; and though exceedingly sorry for the death of his good friend Mr. Martindale, he could not help being very much gratified by this mark of respect and consideration, nor could he well conceal his sense of the honor that was done him by this call. He addressed himself principally to Mr. Markham, having been previously acquainted with him, and regarding him as the mouth and ear of the party.

“Ah, sir, this is indeed a serious loss to us all. I little thought when poor Mr. Martindale sent for me last Monday morning, what was his object in wishing to see me.”

“Was he taken ill on Monday morning?” interrupted Mr. Markham.

“Oh dear, no sir; on Monday morning he was as well as you are at this moment. But it happened very curiously, that last Sunday Mr. Martindale came to church, and I preached a sermon on the uncertainty of human life. It is a sermon that I generally preach at this time of year. But Mr. Martindale, who was not much in the habit of attending church, had by some strange fatality heard this sermon twice before. Now, you know, sir,” continued Mr. Denver, addressing himself to Mr. Markham, “that our late friend was not much in the habit of taking notice of sermons. He used to say, in his odd manner, that one sermon was as good as another, for they all gave more good advice than any of the hearers followed. Well, sir, he sent for me, as I was saying, and as soon as I entered the room, (he was sitting in the bow-windowed drawing-room that overlooks the park,) he rose from the sofa, on which he usually sat, between the fire-place and window, and he took me by the hand, and without giving me time to speak, he drew a chair with his other hand, and almost pushed me into it, saying, ‘There, sit down, I want to talk to you.’ So I waited a few seconds, and then said, ‘I shall be exceedingly happy to attend to any commands which you may think fit to honor me with.’ Without making any direct answer to what I said, and as if he was not aware that I had spoken at all, he said, ‘How often have you preached that sermon which I heard yesterday?’ I smiled at the singularity of the question—Mr. Martindale used, you know, to ask very singular questions—and I said in answer, ‘I cannot tell exactly how often; but it has not been preached, I believe, oftener than any other.’—‘Perhaps not,’ he replied immediately; ‘but as I have heard it three times, it sounded to me yesterday as a kind of warning, and I have a notion that I am not far from my end.’ I tried all I could to divert his mind from such gloomy thoughts, but nothing that I could say produced any effect whatever. I said to him, ‘I hope, sir, that you do not feel yourself unwell.’—‘Unwell!’ he replied, ‘to be sure I do. I am an old man; and old age is a disease that must end in death.’—‘But, sir,’ said I again, ‘though you may be advanced in years, yet you enjoy a tolerably good state of health; and there are many persons much older than you who enjoy a very great share of health and a good flow of spirits, and why then, sir, should you cherish such gloomy thoughts?’”

Here Mr. Denver paused for a moment, and his countenance changed to a still graver expression, when clasping his hands together, and then spreading them out, and lifting up his eyes, he resumed his narrative, saying,

“If I live to the age of Methuselah I shall never forget the impressive and energetic manner in which Mr. Martindale replied. Before I had well finished speaking, he hastily caught up my words, and said, ‘Many persons older than me! Ay, sir, and there have been persons younger than me or you who on Monday morning have been in apparently perfect health, and on Saturday have been corpses. Now, sir, you preached to me yesterday, give me leave to preach to you to-day. I recommend to you for the future not to contradict on Monday what you have been preaching on the Sunday. Yesterday you exhorted me most solemnly to prepare for death, and to-day you are doing all in your power to divert my thoughts from the contemplation of mortality.’ There was a degree of seriousness in that rebuke which I felt to be irresistible; and I said no more. Our late friend then proceeded to mention several other matters of a worldly nature, and your name, sir, was very frequently mentioned; am I at liberty to go on with that part of my narrative?”

This interrogation was addressed to Markham, who immediately and almost quickly said, “By all means, Mr. Denver, by all means. I beg you would not hesitate about the use of my name.”

“Your fathers name also was mentioned,” said the clergyman.

Markham supposed, therefore, that some allusion had been made to his father’s embarrassments, and that on that account Mr. Denver felt some delicacy in speaking of the subject. As, however, Markham was well aware that nothing known to Mr. Denver could long be kept a secret, he gave full permission for any and every thing to be repeated which Mr. Martindale had said. On this leave, the rector of Brigland continued his narrative.

“Changing the subject from spiritual to temporal matters, Mr. Martindale then said, ‘Now, sir, I wish to make some alteration in my will in favor of two good friends of mine; and I am not willing to send for Mr. Price on this occasion, because I am desirous of making the alteration in his favor. He is a scrupulous man, and he would plague me with his modest refusals and opposition: so I shall execute it all myself; but I must have witnesses to the alteration, and you must find me some. The other friend whom I wish to put into my will, I believe you know. You dined with him here some time ago, soon after the trial in which my cousin was so unpleasantly engaged.’ I replied, ‘I know the gentleman, sir, to whom you allude, I remember him

perfectly well.' Mr. Martindale then proceeded, and as you wish to hear all the particulars, he said, 'I have lately seen the young man very properly and suitably engaged in attending on his sick father; and from what I could learn before I left the town, I have reason to believe...'”

Here Mr. Denver hesitated, and Markham colored. The latter, however, had sufficient presence of mind to say, “I beg you will proceed; I am sure that Mr. Martindale could never have made any unhandsome or illiberal observations, or that indeed he could have said any thing which I could object to hear.”

“His observations,” continued Mr. Denver, “were not illiberal; but I felt some delicacy in alluding to the subject. Yet as you wish me to continue, I will add, that Mr. Martindale did say that he thought that there was something more than bodily illness, and that he had made such inquiries and had received such information as gave him a very high opinion of the parties concerned. He then said, that he was desirous of putting the name of Mr. Markham in his will. At his request, and totally unknown to Mr. Price, I fetched three gentlemen to witness the alteration of the will. When the gentlemen arrived, Mr. Martindale said to them, ‘Now, my good friends, I have requested the favor of your attendance to witness a transaction in which you have no interest; but I hope you will not on that account refuse to indulge an old man’s whims.’ For these were the same gentlemen who had witnessed the will which had been drawn out by Mr. Price. The gentlemen of course expressed their readiness to attend to the business on which they had been brought together; and then Mr. Martindale said to them, ‘Now, gentlemen, I am a capricious old man, and I wish to make some slight alteration in what I have called my last will and testament; but as the alteration concerns my worthy friend Price, I thought it best not to let him know any thing about the matter.’ He then produced the will, and read it over very distinctly; making as he went on many curious remarks, till when at last he reached the close of it he said, ‘Now I have here left Price residuary-legatee and executor; by which arrangement he will come into about ten or fifteen thousand pounds. But as there has been some change of circumstances which may render superfluous some of these legacies, and as Mr. Price does not reside in town, I have designed to make this alteration, namely, to put down his name as a legatee for twenty thousand, and to

throw the burden of executorship and the chance of what may remain on my young friend, Horatio Markham of the Inner Temple.””

Markham recollected, as who could not? the observation which had been made to him by Sir Andrew Featherstone concerning the trickery of Mr. Price, in keeping the old gentleman in ignorance of the real value and extent of his property, in order to take advantage of that ignorance for his own benefit. When, however, it appeared that Markham was put in that position, it excited in his mind emotions not easily suppressed. Not designing however to take undue advantage of this disposition, he commanded his feelings, and suffered Mr. Denver to proceed.

“The alteration of the will was then made, and duly signed and attested. The will was then committed to the care of Mr. Simpson, the banker, and the party who had witnessed it were requested to stay and dine at the cottage; and nobody could appear in better spirits or in better health than Martindale then did. He was quite as full of humor as ever; and he laughed and joked about the great house, for that was the name by which he always called the Abbey; and he several times said, ‘I think I must make another alteration in the will, and leave that foolish building for a public hospital, or for a madhouse; for it is only fit for crazy folks to inhabit.’ Then he said to us, ‘Have you any idea what that ridiculous mass of building cost me?’ And one said one sum, and another said another; and then the old gentleman laughed out and said, ‘Ay, ay, you may guess as long as you please, but you will never hit the mark, for upon my word I don’t know myself: for, in fact, before it was half finished, I was so much ashamed of my folly, I endeavoured to avoid knowing the amount of the expense.’ And thus quite in good-humor and high spirits did the old gentleman continue till it was past eleven o’clock, and even then he would hardly suffer us to take leave of him. The next morning I called to see him, and he was quite as well as ever, and did not take any notice of what had passed the day before; he only said, ‘Well, Mr. Denver, I am going down to Trimmerstone to inspect the repairs at the hall; but I will take care not to make such a fool’s hutch as that great house over the way.’ After I had been gone about an hour or more, a messenger came to fetch me again to go up to the cottage. Then I found Mr. Martindale extremely ill; a violent paralysis had seized him, and he was nearly speechless. It was with the utmost difficulty that he could be understood. Mr. Price was there, and was really as much affected as if it had

been his own father. It was absolutely impossible to take any commands from Mr. Martindale himself, and Mr. Price thought it best to apprise his relations of the danger in which he was lying. For this purpose he despatched immediately a letter to Sir Andrew Featherstone, that he might gradually break the affair to them. But that letter had been scarcely sent off, when poor Mr. Martindale had a second attack, and in less than an hour he ceased to live. It is impossible for me to express what I felt upon this occasion. The language which he had used to me on the preceding day occurred so forcibly to my mind, it seemed as though it were quite prophetic."

Mr. Denver finished his narration, which was attended to by Signora Rivolta not without some emotion. She felt much more deeply at this recital of her father's decease than she had at the discovery of his existence. Clara too felt very sorry for her loss; for there had always been about her grandfather a peculiarly kind and gentle manner. He was an odd man, certainly; but if odd men have amiable qualities, their very oddness renders these good qualities more impressive and beautiful. Clara relied upon his judgment, and was delighted with the kindness of his heart. Clara was one who loved prodigies; and to her imaginative mind old Mr. Martindale was a prodigy of wisdom and benevolence. Clara might possess judgment as well as imagination; but she was not always aware of the precise line which divided them, and she sometimes mistook the promptings of the one for the decisions of the other.

The construction and arrangement of the external world is beautifully adapted to the varieties of minds which contemplate it, and the diversities of feelings which delight to be interested. If there be in any mind a love of the wonderful, there is abundant supply of it. If there be a delight in uniformity, there is also a uniformity precise beyond the utmost stretch of mathematical conception; and amidst human character there is also a delightful abundance of varied interest: for the sensibility which is most happy in tears, may also find sorrows wherewith to sympathise; the humor that is disposed to indulge itself in laughter, lacks not a liberal harvest of absurdities; the censorious, whose virtues consist in railing at others' vices, never are at a loss for some vices to reprove; and those who like Clara Rivolta are delighted with romantically beautiful specimens of exalted moral character, may always find them.

It was then determined by the party that the gentlemen should proceed to the cottage, and take the necessary steps for arranging the funeral of their deceased friend, and that the ladies should remain at the house of Mr. Denver.

CHAPTER XIV.

“Oh may we meet you in some happier clime,
Some safer vale, beneath a genial sky.”

LANGHORNE.

At the cottage the party found the Earl of Trimmerstone and Mr. Price in very close and serious conversation. They were discussing the arrangements for the funeral; but they seemed pleased at the addition to their party; and in the manner of Lord Trimmerstone towards Markham and Colonel Rivolta, there did not appear the slightest symptom of jealousy, or the least coolness or haughtiness.

After what Markham had heard of the will, and after comparing what Sir Andrew Featherstone had said with what had been related by Mr. Denver, he did not feel himself altogether at ease. For though he was very sure that Lord Trimmerstone was not aware of it, yet he could not feel perfectly composed, from the anticipation of what his lordship might say or think when he should know it, as very soon he must. On this occasion there were feelings in Markham's mind by no means of an enviable nature. He unpleasantly and even painfully recollected that he had been always opposed to Lord Trimmerstone, and that without any deliberate wish or intention on his part; and he could not but imagine that a person of rank like Lord Trimmerstone, having also, as his lordship certainly had, exalted notions of the dignity and glory of title, must be greatly mortified at being brought into opposition with a person of no family. Markham's first acquaintance with the name and family of Martindale had been, as we have narrated, merely from professional employment. His acquaintance and intimacy with the old gentleman had been not his own seeking; and even had he been disposed to drop the acquaintance, it was never in his power to do so without manifest rudeness, and almost downright ingratitude. It was not Markham's wish to be quoted as a pattern, or to be set up against a relative of his accidentally-acquired friend. But the most mortifying circumstance of all was the last act of old Mr. Martindale; for by the will

recently made, there seemed ready to fix upon Markham an indelible stigma as a legacy-hunter. The real circumstances of the case he hardly knew; and he could not, on the information of Sir Andrew Featherstone, accuse Mr. Price, in order to exonerate himself. It was also very well known that though Mr. Price was confidential solicitor to Mr. Martindale, yet as the old gentleman was a kind of amateur lawyer, he was very fond of talking on legal subjects with Markham, and did very often quote his opinion, to which he gave especial weight and importance.

It was also unpleasant and almost distressing to Markham to notice how very courteously Lord Trimmerstone behaved to him, and indeed always had he behaved so. It was very unfortunate, but there appeared no remedy for it, that with the best and purest intentions on the part of the young barrister, he should be brought into such awkward and almost unexplainable difficulties. For Markham was not only a man of strict integrity, but he had also a very high degree of moral susceptibility, and was excessively anxious to possess a high moral reputation: perhaps it was unfortunate for him that his regard to appearances was so great. His object might have been ultimately as well answered had he paid his undivided attention to the substance, leaving the shadow to take care of itself. Our readers will perceive that in what we have here said concerning our friend Markham, that he possessed a small share of vanity: as however he had many truly excellent qualities, that may be pardoned.

Now when Markham and his companions were thus cordially received, the whole party went into a consultation respecting the mode of the funeral; for as Mr. Price had said that there was no mention in the will of any desire on the part of the deceased as to funeral ceremony, the matter was open to discussion. In this consultation, Lord Trimmerstone and Mr. Markham were principally engaged; and it ended by resolving to have the funeral as plain as consistent with circumstances. This plainness was however composed of all the funereal practicabilities of Brigland.

Mr. Denver hearing that Mr. Price had spoken of the will, ventured to say that there existed a will of later date than that to which Mr. Price alluded. At the mention of this Mr. Price turned exceedingly pale; nor was his agitation much alleviated by hearing that one purpose of this new will was to increase the bequest designed for himself.

“Indeed! Mr. Denver,” said the man of law, trembling, “why that is very odd. I know that Mr. Martindale made several wills at different times, but this which I have was made so very recently, that there must be something very extraordinary to have occasioned it, and it is so strange that I should not have heard of it.”

Mr. Denver hoping to surprise agreeably said, “The making of the will to which I refer was concealed from you, Mr. Price, out of a feeling of delicacy, that Mr. Martindale might not hear from you those objections to an increased legacy, which he took it for granted you would make, if the alteration of the will were given to you to draw up. So Mr. Martindale said that he would make his own will, and then you might see after his decease how highly he valued your services.”

To this speech Mr. Price bowed, but no very strong symptoms of satisfaction were manifest in his countenance. Lord Trimmerstone immediately despatched a messenger for Mr. Simpson, requesting him to bring with him the document which had been committed to his care by the late Mr. Martindale. The gentleman presently obeyed the summons, and the will in question was produced.

Lord Trimmerstone cast his eye upon it, and hastily turned over, the very few folios which contained it, and with unaltered look said, “I see no mention made of funeral directions, and therefore we may proceed in our arrangements as before. Mr. Simpson, I will commit the will to your care; and after the funeral it may be read over, in the hearing of such of the parties concerned as may be present on the occasion.”

Mr. Simpson received the paper, bowed, and retired. And as it would require a pen far more practised than ours to give interest to the discussion which followed the retiring of this gentleman, we will proceed to the day of the funeral.

In opposition to the opinion and persuasions of Lord Trimmerstone, Signora Rivolta almost insisted on being present on the occasion. Clara followed her mother’s example, moved by the same considerations, and prompted by similar feelings. They both felt respect and love to the deceased; and the mother of Clara observed, “You will destroy the very character of funereal rites if you exclude those whose sorrow for the loss is greatest.”

“It is on that very account, madam,” replied Lord Trimmerstone, “that we wish to persuade you from attending at the interment. Why should you wish to render your regrets more poignant? and why should you encounter a scene which will be affliction to you, and beneficial to no one?”

“My lord, that which is matter of feeling is not subject for argument. I know that I shall feel deeply and painfully when I stand by my father’s grave; and I believe that my tears there will be joy to no one: but I also know that there may be many hours in life, in which to have shed these tears on such an occasion and at such a place will be to me a pleasure.”

Lord Trimmerstone did not exactly understand how that was to be; but he knew very well that it was not the fashion for females to attend funerals, and he thought it was very absurd in Signora Rivolta to persist in such a request. His lordship did not exactly know why it was not fashionable, and perhaps never thought of inquiring. It is the spirit and glory of fashion to follow models and obey laws, without knowing why or wherefore. The true reason of the unfashionableness of that which Signora Rivolta and her daughter persisted in doing is, that emotion and deep feeling are unfashionable. The Earl of Trimmerstone did not pursue the course of opposition, on finding that the ladies were sincere and earnest in their wish to pay this last tribute of respect to their departed relative.

The funeral service was read by Mr. Denver; who, notwithstanding he did all that he possibly could in order to render the service impressive by reading it solemnly, still from a habit of hastily performing the various parts of clerical duty, was absolutely unable to give the full effect to it. Signora Rivolta felt the defect of pathos, and the absence of genuine solemnity. This defect might perhaps contribute to keep her own feelings more calm and composed; or rather, by rendering her somewhat angry with the apparent indifference of the officiating clergyman, it tended to excite other emotions than merely those of grief and sorrow of heart.

When the last rites were over, it was necessary that the will should be read. If there was any one of the party apprehensive of disappointment, that person must have been Lord Trimmerstone. It certainly must have been mortifying to him to have witnessed the obstructions to his prospects of inheritance; first, in the discovery of his relative’s daughter and family, and next in the patronage and favoritism of that man whom he knew only as a

person professionally employed against himself. It was mortifying also to him to think that this favorite should have become such from the very circumstance which his lordship had most reason to look back upon with shame and regret. It is, indeed, much to his lordship's credit, that notwithstanding all these things he never manifested any symptoms of ill-humor or hostility towards the parties concerned, and never had recourse to any arts or contrivances whatever to flatter the old gentleman into good-humor. All this, however meritorious as it may sound in description, did not spring from any magnanimity on the part of Lord Trimmerstone, nor was it accompanied with any moral effort or reflective thought; it arose purely from a natural indolence of mind, and from a feeling that Mr. Martindale, who had manifested some zeal in procuring a higher title for his dependent relative, would have a natural desire to do what he could for the aggrandisement of the family that bore his own name.

The will was read. It commenced in the usual form. It gave various legacies to servants and humble friends, which need not be specified; it then went on to the distribution of larger and more important bequests; it gave the estate at Trimmerstone, and two other estates in the adjoining county, together with fifty thousand pounds, to the Earl of Trimmerstone. It assigned to Signora Rivolta an estate of two thousand a year; to Clara, a legacy of five thousand pounds; to his worthy and confidential solicitor, Mr. Price of Brigland, the sum of twenty thousand pounds; and to Horatio Markham, the residue: appointing the two last-named as his executors.

With this arrangement the Earl of Trimmerstone was perfectly satisfied; and had such a bequest come into his possession a few years before, he might have been delighted with it: but the time for his feeling strong emotions was past; his spirit was broken, and life had with him ceased to be holiday-time. Of the other legatees, Signora Rivolta, considering the circumstances of her birth, and recollecting the fears and prospects with which she had landed in England, was also perfectly satisfied. Markham, not knowing the extent of his legacy, but almost sorry that his name should have appeared at all in the document, felt embarrassed, and really did most heartily wish that what Sir Andrew Featherstone had told him might prove untrue: for the barrister, who would have delighted in opulence, as the result of professional diligence and skill, was not pleased at owing his wealth to a capricious stranger; and as it was his determination not to avail himself of

this bequest, should it prove unreasonably large, he was greatly disturbed at the idea that by giving or offering it to those whom he thought the right owners, he should seem to be playing a part of ostentatious heroism.

But, alas! for poor Mr. Price! His disappointment was severe indeed. Ever since he had had the management of Mr. Martindale's property, he had been playing a deep game. It was his object to acquire a character with the old gentleman for strict and delicate honesty. He perceived that his employer was not fully aware of the value of his own property, and he saw that it was possible that advantage might be taken of this ignorance. But the crafty solicitor also knew that Mr. Martindale was a man of shrewd sense and great self-will; and therefore thought it most advisable so to manage and conduct the affairs, that if by any freak on the part of the rich man, there should be necessity for explanation and full statement, that explanation and that statement might be made without fear of disgrace and suspicion. By the habit of accuracy in his accounts, the lawyer became absolutely proud of the dexterity and scrupulosity with which he had attended to the affairs of his client; and oftentimes did he urge Mr. Martindale to pay more personal attention, and to inspect the accounts.

The old gentleman's personal expenditure had been but trifling, compared with his actual income. Wishing, however, to be liberal, but still desirous of keeping that liberality within his income, he had made frequent and periodical inquiries of his lawyer as to the extent of the means; and the answers to these inquiries had always been very much within the mark. Very soon after Mr. Martindale had begun to employ Mr. Price as his confidential solicitor, the whim of will-making had seized the old gentleman; and in all the instructions which he had given to his lawyer for that purpose, Mr. Price had been uniformly named as executor and residuary-legatee. The policy of that gentleman had therefore been to keep Mr. Martindale as much in the dark as he conveniently could with respect to the real extent and value of his property. But unfortunately for himself, the confidential solicitor overacted his part; and by causing his employer to apprehend that the residue of his property, after various proposed bequests, would be very much less than it really was, he had led the old gentleman to make the alteration above named.

Now it may seem that a legacy of twenty thousand pounds to a provincial solicitor was a bequest by no means to be despised or lamented. It may be

said that this was better than nothing; but of that we have our doubts. Money is more or less, according to circumstances; and to ninety-nine persons out of a hundred, the disappointment of an expectation is equivalent to an actual loss. In the present case, however, Mr. Price was not merely disappointed, but he was absolutely embarrassed and perplexed: for he had made purchases of land at a great expense, and had left so large a portion of the purchase-money as a burden on his purchases, that the rent of his estates barely sufficed to pay the interest; and in some cases actually fell short of it. Add to this, that since the property in question had been bought, the change in its value had been by no means in favor of the purchaser. The legacy therefore which had been left him, magnificent as it might appear, compared with his apparent circumstances, was far below the necessities of his actual condition.

How the poor man felt under his disappointment, may perhaps be better imagined than described. It is probable, however, that he began to have some suspicion that there was some truth in the proverb which says, "Honesty is the best policy."

CHAPTER XV.

“He heap’d up such an ample store,
That av’rice could not sigh for more.”

SMART.

The day after the funeral all parties concerned, except Markham, took their departure from Brigland. The Earl’s presence was absolutely necessary at Trimmerstone to inspect and direct the repairs at the hall. He took leave of Markham with much stronger expressions of regard than he had ever used before; for he now perceived, or thought that he had discovered, that the barrister had not been using the arts of a legacy-hunter. Never indeed had his lordship seen any such conduct on the part of Markham as might lead him to conclude unfavorably concerning him; but his lordship had taken up the common-place notion, that because the profession of law requires acuteness, therefore its professors must be sharpeners.

Signora Rivolta trusted to Markham to manage that part of the business which related to her family, and at the entreaty of the Colonel returned directly to London. For it was the constant practice of the Colonel’s lady to yield ready obedience to her husband’s requests, knowing that the surest and most effectual mode of governing a blockhead is to let him have his own way as much as possible.

Markham and Mr. Price then met, for the purpose of transacting business, at the office of the latter. It has been already hinted that Markham had a suspicion of the foul play of the confidential solicitor. With this suspicion on his mind he therefore resolved to watch him very narrowly, and to take especial care that now the last will was made, it should be faithfully and properly executed. When Markham entered the apartment destined to be the scene of their first consultation, he could hardly believe it possible that so plausible, plain-speaking a man as Mr. Price could be by any means a dishonest man, or a man of indirect practices. There was a recollection on the mind of the barrister of some slight emotion expressed by Mr. Price at the reading of the will, and also at the previous annunciation of its existence

by Mr. Denver. But these emotions might spring from other sources than that of disappointed covetousness; and as Markham had not any idea of the necessities and perplexities of the solicitor, he thought that the legacy named in Mr. Martindale's will was a very ample and satisfactory bequest. He did not however lay aside his suspicions, or relax in his vigilance of observation.

It was very natural that two persons who had both been intimate acquaintances of the deceased, and who had scarcely ever met before, should at a meeting of this nature first enter into a little talk concerning their departed friend. Mr. Price commenced by saying,

"This is a great loss, Mr. Markham. Our friend Mr. Martindale will be very much missed. The people here at Brigland were very much grieved when housekeeping was given up at the Abbey. The poor will have long cause to regret their benefactor."

"I believe," replied Markham, "that Mr. Martindale was a truly benevolent man, and will be no doubt much missed. My acquaintance with him has been comparatively short; but I had the highest opinion of his heart and understanding."

"It is very strange," said Mr. Price, "that he should have chosen that very singular mode of life. He had the means of living in much better style than he did. Though I must say that the Abbey was too magnificent a building even for his property."

"Are you aware, Mr. Price, of the real value of the late Mr. Martindale's property?"

To this question Mr. Price did not give a very speedy reply, but muttered rather indistinctly, and said in a very slipshod tone of voice, "Why, I can't say exactly, for it consists of various parts; some in land, some on mortgage, and some in the funds; and the price of land is now considerably less than it was some years ago. I really cannot venture to say; but, however, we shall probably ascertain that in the course of our executorship. I suppose you intend to accept the charge... but I fear you will find it a troublesome task. I have myself had so much to do with executorships, that I could almost find in my heart to decline it in the present instance; but I have too great a respect for the memory of my departed client."

There was something in the tone of this last speech, which led Markham to apprehend that there might be some truth in the tale that he had heard from Sir Andrew Featherstone. Without therefore betraying his suspicions, he replied carelessly,

“Yes, I think I may as well act with you, for perhaps I may be the means of saving you some trouble. I also feel a great respect for the memory of Mr. Martindale, though my acquaintance has been but short.”

“Certainly, certainly,” continued Mr. Price, “every body who knew Mr. Martindale must respect him. He was a man of very great kindness of heart, and of real benevolence of disposition.”

The confidential solicitor then hesitated and almost smiled, and put on one of those silly looks which people assume when they are about to ask what may perhaps be denied them. At last he said,

“I suppose it will be desirable to settle the business with the legatees as soon as possible. I always prefer despatch in matters of this kind. I think it does not look well to protract this sort of business.”

“Of course it does not,” replied Markham, “and I shall be most happy to afford you all the assistance in my power for the furtherance of your plans of despatch.”

“Sir, I thank you,” was Mr. Price’s answer; but his manner still manifested that something more remained to be said. Markham perceived it, but most provokingly abstained from saying any thing which might tend to assist the confidential solicitor in the unfolding of his ideas, or the development of his schemes.

After a little more hesitation, Mr. Price proceeded: “There will perhaps be some little trouble and delay in arranging all the affairs; and I am afraid, Mr. Markham, that your legacy will be paid last.”

“Very likely,” replied Markham, “that is as it should be; indeed I had no reason to expect any legacy at all.”

“I think,” continued Mr. Price, “that you will find your legacy rather larger than you are now aware of; and notwithstanding all that was said by Mr. Denver, I should have no objection to change legacies with you.”

“Indeed, Mr. Price! Why surely you do not mean to say that my legacy is worth as much as twenty thousand pounds?”

Mr. Price looked very knowing and important, and said, “Now, Mr. Markham, I will deal candidly with you; I know that your share will amount to more than twenty thousand. If therefore you wish to get rid of all trouble, and quietly receive a handsome commutation, I can venture to say that I will give you thirty thousand pounds for your legacy, and I will take all the trouble of the business on my own hands.”

How far Markham was truly honest and conscientiously veracious in professing to be surprised at this development, we will leave casuists to determine. In order, however, to ascertain, as readily and distinctly as he could, the truth of the story told by Sir Andrew, he professed great astonishment, but declined the proffered commutation, saying with a smile,

“No, no, Mr. Price, I shall not let you off so easily as that; I must have a more tempting offer. You have said that you cannot exactly tell how much our late friend’s property amounts to: now, unless you had reason to suppose you should make a very good bargain indeed, you would not proffer so large a sum on a contingency. Come now, confess, do you not think that my legacy is really worth a great deal more than thirty thousand pounds? You may not know the precise amount of Mr. Martindale’s property, but you cannot have had the management of it so many years without being able to form a tolerably correct judgment of it. You must know the value of his mortgages, and the amount of his funded property.”

Then looking more seriously, Markham went on: “Now tell me honestly, Mr. Price, is not the legacy in question really worth as much as one hundred thousand pounds? I know it is,” continued the barrister, conscious from the solicitor’s manner that Sir Andrew Featherstone’s story was not without foundation.

It then became necessary for Mr. Price to change his tone, and to look serious. “I will tell you honestly,” said he, “that your legacy is worth nearer two than one hundred thousand pounds.”

“But how is it that Mr. Martindale should have assigned to you the sum of twenty thousand pounds, as being more beneficial to you than this

enormous residue? Was our friend so ignorant of the extent of his property as to make so great a mistake as this?"

Mr. Price was confounded: he was fairly detected; and very unpleasant indeed was it for him to stand thus convicted before another man of the law. The confidential solicitor was silenced for a moment or two; and when he recovered the power of speech, he did not so soon recover the power of clearly expressing himself; and if he had said, as twenty thousand Irishmen have been twenty thousand times accused of saying, "I am speechless," he would not have been far from the truth.

A very fine opportunity was now presented to Markham of making a fine set speech, full of indignation and metaphors, after the manner of a sermon, or the last speech of the first, second, third, fourth, and fifth acts of a new comedy; but for many reasons he abstained. In the first place he was not partial to spouting, nor very dexterous in the management, or fertile in the invention of metaphors. In the second place, he knew that it would do no good, but rather harm; for if the heart of Mr. Price was not absolutely callous, the very fact of detection and disappointment would be quite sufficient to make him feel, and to urge him to repent, if he were capable of penitence. All prating and prosing upon the subject would only have diverted his thoughts from the meanness of his own conduct to the quizzicality of the spouter. Markham merely said,

"Do you call that conduct honest, Mr. Price?"

The confidential solicitor turned away his face; but whether it were to conceal a rising blush or a falling tear, we cannot say: if however it were so, we think it a great pity that he should have concealed so great a curiosity as a blush or a tear on the cheek of an attorney.

Markham then said, "Well, sir, as matters now stand, it is impossible for me to avail myself of this error. I must inform Mr. Martindale's relatives of the mistake, for it clearly is a mistake. This instrument does not express my late friend's will."

"But surely," interrupted Mr. Price, "you will not think of exposing and betraying me?"

"I shall certainly not accuse you, sir; but if facts expose you, you have only yourself to thank for the exposure."

Mr. Price was angry, as most people are when they are mortified; and he said, "Well, Mr. Markham, you must do as you please, but I think you excessively scrupulous."

"Better so," replied the barrister, "than the reverse."

That reply was displeasing to the solicitor, and he rejoined, "Why, now, you cannot suppose that either Lord Trimmerstone or Signora Rivolta will take the property, if you offer it to them; and then the conclusion of the matter will be, that you will merely make a show of magnanimous integrity and disinterestedness, and come into a handsome fortune; so you will get rich at my expense, and your character will be raised by the depression of mine. Such conduct is mean and trumpery."

"Let me request of you, sir," replied Markham, "to confine your remarks within the bounds of temperance and good breeding, or you may tempt me to use the opportunity which you afford me of making such replies as may not be most agreeable to you. I cannot and will not take advantage of what I consider to be another's wrong."

Before Markham left Mr. Price, he was careful to take immediate steps towards putting the business in a proper train, to have the matter settled as soon as possible. The barrister then called on Mr. Denver to thank him for his attentions to the deceased. Scarcely was Markham seated when a note was brought to him from Mr. Price; in which note that gentleman expressed a wish to decline acting as executor. The note also intimated, with many circuitous, but intelligible phrases, that it would be exceedingly agreeable to have his legacy paid as soon as possible; and offers were made of all necessary assistance on the part of the late confidential attorney.

To make short work of Mr. Price, we may as well here inform our readers, that in a short time his legacy was paid to him, and the town of Brigland had a vacancy for a new solicitor.

CHAPTER XVI.

“Prove that to know is to attend,
And that we ever keep in sight
What reason tells us once is right.”

WILKIE.

Great was the astonishment of the Earl of Trimmerstone at receiving the following letter from Horatio Markham:

“My lord,

“In looking over the will of your lordship’s late lamented relative, I am greatly concerned to find an error which seriously affects myself. Not to keep you in suspense, I have to inform your lordship that the legacy which devolves to me as residuary-legatee is far beyond the intention or apprehension of the devisor. It is very clear, that from neglecting to investigate his affairs, the late Mr. Martindale was by no means aware of the extent of his property. The legacies, therefore, devised to your lordship and others related to the deceased, are much less than otherwise they would have been. I know for a certainty that the will was formed on a misapprehension. The appearance of my name at all was by me unsought and unexpected, and for many reasons undesirable. Had the late Mr. Martindale bequeathed to me a small complimentary legacy, I should have accepted it, unhesitatingly, as a memento of his kind friendship. Had a definite, though unreasonably large legacy been devised to me, I might perhaps have hesitated and refused to accept it. But now I find that nearly one-half of the large property possessed by the late Mr. Martindale is bequeathed to me by an error; and therefore I must positively, though respectfully, decline accepting more than the devisor apprehended he had bequeathed to me.

“I have written on the same subject, and to the same purpose, to Signora Rivolta; and I wait to know hers and your lordship’s will and pleasure concerning the matter in question.

“I have the honor to be, &c.”

When the above letter arrived at Trimmerstone, his lordship was busily engaged in inspecting the progress of the operatives at the old hall.

Part of the building had been promptly made fit for his lordship’s residence; and as his establishment was now very small, he was not reluctant to use the contracted residence assigned to him. We have already intimated that the Earl of Trimmerstone was depressed in spirits: it is indeed very natural that he should be. The life which he had led, the companions with whom he had associated, the disappointments which he had experienced, his foolish marriage, the disgraceful conduct of his silly countess, the taunts and reproaches of his opulent relative, the weariness and disgust that he felt in having nothing to do, and the annoyance of an empty title, which merely mocked him with the epithet of Right Honorable, all these things combined to render him almost disgusted with, and weary of life.

In this humor he went to Trimmerstone, and took up his abode at the miserable old hall. The gloom of the building was quite in unison with the feelings of his mind, and he very contentedly set himself down to lament over the vanity of life, and to make amends for his past transgressions by growling right surlily at the sins of others. His solitude was soon invaded by a visit from the rector of Trimmerstone, who was rather fanatical in his theology, and finical in attire and address. Neither of these qualities were, in the first instance, agreeable to his lordship; but the Rev. Marmaduke Sprout had the capacity for flattery in a very high degree. He could presently render himself agreeable to any person of exalted rank by his very courteous and conciliating demeanour; and he possessed a peculiar softness and gentleness of manner, with which indeed the Earl of Trimmerstone would, in his past days of cock-fighting, horse-racing, and boxing, have been thoroughly disgusted. But his lordship was quite an altered man. He did not exactly know what was the matter with himself, till Mr. Sprout introduced to his fretful and fidgetty lordship the subject of fanaticism. That

became an excellent antistagnator, and set all his fancies and vagaries at work in quite an opposite direction to that which they had hitherto taken. Formerly, the lowest pursuits under the name of sport or fancy had been agreeable to his lordship; and every species of religious sentiment he had regarded with the profoundest contempt and the most unmingled abhorrence. But now he was sick, and weary of all these things; and because one extreme was purely offensive and wearisome, he took it for granted that the opposite must be truly delightful and highly consistent, and so under the tuition of Mr. Sprout, he changed and reversed all his habits, good, bad, and indifferent. From staking thousands at a horse-race, he turned up his eyes at the grievous abomination of half-crown whist; and, indeed, had he been disposed to card-playing, he could not have indulged himself at Trimmerstone, for Mr. Sprout had banished almost all card-playing from the place, so that there was not a pack of cards in the parish, except two or three mutilated well-thumbed packs of quadrille-cards, which were still used by a knot of antiquated spinsters worthy of the good old days of Sacheverel and High Church. Quadrille-cards will not do for whist, for all the eights, nines and tens are thrown out. Formerly, Lord Trimmerstone used to be proud of giving some of his acquaintance a sumptuous dinner; but now he had changed all that, and he only kept one female cook, who could just manage to make a comfortable and snug little dish or two for his lordship's own self, occasionally assisted by the Rev. Mr. Sprout. Formerly, his lordship had been disposed to be lively, and oftentimes facetious; but now he was prodigiously grave, and almost sulky. Formerly, his lordship never went to church; now he went twice every Sunday, and said Amen as loud as the clerk, and with much more solemnity, for the clerk did not turn up his eyes for fear of losing the place. Formerly, his lordship had been very candid; now he had become exceedingly censorious, and he seemed to measure his religion by the severity with which he reproved transgressors. His lordship several times attempted to make all the inhabitants of Trimmerstone go to church twice every Sunday, except his own cook. But in this his lordship could not succeed, and indeed it was well for him that he could not; for if he had, the church would have been so crowded that he could not have enjoyed a great, large, lined, stuffed, padded, carpeted pew for himself.

Though Lord Trimmerstone was a zealous convert to Mr. Sprout's theory of the national religion, yet that theory was not quite obvious and distinct to

his lordship's apprehension; and often did he blunder in the enunciation of his theory, and awkwardly did he sometimes express himself when he thought he was contending for the truth: for he has been known to rebuke the unepiscopal worshippers in barns and outhouses for holding the pestilential doctrines of election and predestination. This was pardonable in a young beginner; but Mr. Sprout set him right, and showed that the doctrines of predestination and election had been sometimes erroneously apprehended to mean predestination and election, whereas the proper view of the subject was that they meant election and predestination.

That part of fanaticism which consists in gloominess and moroseness, his lordship could manage to admiration; for he was thoroughly disgusted with every thing and every body. We cannot resist the inclination to observe in this part of our narrative, how very just and appropriate a punishment is fanaticism for gross immorality. When the mind has spurned the meeker and gentler bonds of religious principle and conscientious thought, it is rightly punished by the withering rigors of fanaticism, and the gloomy terrors of superstition. Under these influences was now lying the Earl of Trimmerstone. And he was engaged in conversation with the Rev. Marmaduke Sprout, when there was delivered into his lordship's hands the above-mentioned letter of Horatio Markham.

His lordship made the apology usual on such occasions, and forthwith opened and read Markham's letter. As soon as the reading was finished, his lordship said, "This is very honorable conduct in Mr. Markham."

Then handing the letter to Mr. Sprout, he said, "Read this letter, sir, and let me have your advice, how I ought to act under present circumstances."

The reverend gentleman took the letter bowing, and perused it with great attention, and returned to his lordship with another bow, and a smile of satisfaction at being let into a great man's confidence; and said,

"Really, my lord, I hardly know how to advise. Cases do sometimes occur in which there is a great deal of difficulty, and this appears to me to be one of them."

By this speech, though delivered with the solemnity of an oracle, very little information was communicated to his lordship. When people ask for advice, they should, in order to save their friends a great deal of trouble,

state explicitly what sort of advice they wish to have. It is for want of this honesty and explicitness that so much good advice is continually thrown away.

His lordship was now fairly puzzled and perplexed. It was necessary to send some answer to the communication of Markham; and his lordship had discernment enough to perceive that this gentleman was truly a scrupulous and conscientious man. The present transaction proved that fact abundantly. For nine hundred and ninety-nine persons out of a thousand would, without much if any hesitation, have accepted the legacy in question. That feeling in Markham, to which some persons might be inclined to give the name of moral prudery, prevented him from availing himself of a decided error; and on the other hand, his dislike of ostentatious magnanimity and heroics placed him in an unpleasant situation in making an offer of surrendering the legacy.

Notwithstanding the various lectures and the great and clear information which Mr. Sprout had communicated to Lord Trimmerstone, concerning those views of religion most suitable to fanaticism, his lordship was but imperfectly initiated: therefore, when he had read Markham's letter, and handed it over to Mr. Sprout for his perusal also, his lordship could not help observing,

"This is really very meritorious conduct in Mr. Markham, there is not one man in a thousand who would have acted thus under these circumstances."

To this Mr. Sprout very seriously and solemnly replied, "Your lordship will excuse me, but I must observe that there is nothing meritorious in human actions."

"Mr. Sprout," said his lordship, "I will not contend with you for a word; but you must grant, that notwithstanding the supreme importance of faith, which I am quite ready to allow, there is a great difference in human actions, and that some conduct is better than other. There are multitudes who have not faith who frequently perform virtuous actions, and live according to the principles of morality."

The clergyman shook his head, and said, "Mere heathen morality."

"And that," replied Lord Trimmerstone, "is better than no morality at all."

It could not be entertaining to our readers to pursue the long and elaborate arguments by which the rector of Trimmerstone attempted to prove that virtue was of no value but of great importance. We therefore proceed with our narrative.

When the discussion was concluded, and his lordship was abundantly convinced that he knew nothing about the matter, he directed his thoughts to the subject of Markham's letter: and as the divine had given all the advice upon the business which he was able to give, he took his leave; and the Earl of Trimmerstone remained alone to consult with his own thoughts.

All that his lordship could think was, that this conduct of Markham was very handsome. But that was not enough. It would not be a very satisfactory answer to Markham should his lordship say merely that such conduct was very handsome. After much deliberation, his lordship came to the conclusion, that it would be best to have an interview with Markham on the subject, and to make inquiry into all the particulars, resolving to compel the barrister to the acceptance of as much as he could force upon him.

With this view his lordship sent to Markham an immediate acknowledgment of the receipt of his communication, proposing at the same time a meeting with him for the purpose of entering into the particulars of the affair; for Markham's letter had not sufficiently to his lordship's apprehension explained the cause and nature of the error in the will.

Markham's letter to Signora Rivolta received also an immediate answer, and that answer was decisive. The lady, after complimenting the barrister for his very honorable conduct, said, that it was quite out of the question that she or her family could have, according to the laws of England, any claim whatever on any part of the property, save that which was literally and expressly bequeathed to them; and that if any remained unappropriated or unclaimed, the only person who had aught to do with it must of course be the heir-at-law.

Thus it seemed that the business was brought into a small compass, resting only between Markham and Lord Trimmerstone. And though his lordship's moral susceptibility might not have been quite so acute and delicate as Markham's, yet when such an appeal as this was made to his feelings, he could not but entertain some thoughts of disinterestedness: for

the disinterestedness of the residuary-legatee was so powerful, as to excite in his lordship's mind a degree of sympathy and a corresponding feeling.

CHAPTER XVII.

“He could not do it handsomer than thus.”

SHIRLEY.

An arrangement was made that Lord Trimmerstone should meet the residuary-legatee at Brigland, at the house and in the presence of Mr. Denver, whose testimony on the subject was of so much consequence in settling the point in question. For on the face of the matter, Markham was clearly and unequivocally entitled to the residue of the late Mr. Martindale's property, after payment of the various legacies named in the will; but from what the devisor just before his decease had said to Mr. Denver, it appeared that he was not conscious that the bequest appropriated to Markham was any thing near so valuable as by the acknowledgment of Mr. Price it turned out to be.

The perplexity occasioned by wills is not often of such a nature as that now recorded. It is indeed refreshing to the moral eye to contemplate such an instance of sound and healthy moral feeling. Markham was not so inexperienced as to be ignorant of the value of money, or so romantic and visionary as to despise opulence; but had sense enough to know, and had been observant enough to see, that money does not command every thing, and that it may be purchased at too high a price.

When Markham had received Lord Trimmerstone's note, he immediately called on Mr. Denver to inform him of the intention of the meeting, and to request that he would have the goodness to let his lordship know precisely, or as distinctly as he could recollect, all that Mr. Martindale had said to him concerning his motive in altering the will. The clergyman expressed much astonishment at this proposed meeting, and said,

“What! does my Lord Trimmerstone intend to dispute the will? I am very positive that it is really and truly the actual will of the late Mr. Martindale; and I can very distinctly recollect all that the old gentlemen said.”

“No, Mr. Denver,” replied Markham, “his lordship has not expressed any such intention; but there appears to have been some misapprehension in the mind of our late friend as to the actual amount of his property, and what we wish to ascertain from you is, whether Mr. Martindale in bequeathing twenty thousand pounds to Mr. Price, did not imagine that he was giving him more than would have come to him as a residuary-legatee.”

“Certainly,” said Mr. Denver, “that was what Mr. Martindale said in my hearing. He also said, that another reason for altering his will was that he might put your name into it; and I am very glad to hear that your legacy is so much more than you expected. I have heard that Mr. Price feels himself very much disappointed.”

With a slight frown and a look of thoughtfulness, Markham replied, “I am not so well pleased as you may imagine with the unexpected greatness of this legacy, it puts me into a very awkward position. I can by no means think of taking more than Mr. Martindale intended to give me, and it is very unpleasant to appear in the light of conferring an obligation on Lord Trimmerstone.”

Mr. Denver expanded his countenance into a broad look of astonishment, and said, “Bless me, Mr. Markham, why how very scrupulous you are! I cannot see how any body can blame you for taking the legacy. It was not your doing that Mr. Martindale was ignorant of the full value of his property. Though between ourselves, and I hope you will not let it go any farther, I dare say that Mr. Price used no little pains to keep Mr. Martindale in the dark with a view of coming into a handsome fortune as residuary-legatee.”

“And would you have me, Mr. Denver, to take an advantage of another’s wrong?”

“I cannot see,” replied the clergyman, “why you should not: you are not injuring any one. Lord Trimmerstone has quite as much as he expected, and I dare say that he will not desire to deprive you of any part of what falls to your lot.”

Not even the authority of the divine could convince Markham that he should be acting rightly in availing himself of the bequest to its full extent; and there was also in his mind another objection—he was ambitious, as we

have before observed, of high reputation; and it would have interfered greatly with his comfort and happiness, had he thought that any persons who at all knew him, had the slightest suspicion that there was any thing in his character that savored of meanness or littleness; nor would he have been pleased to have owed his good fortune merely to accident. These feelings may be fastidious, but they have their use; and though they may not exist very widely, or influence the minds of many individuals, yet they have a power in society, and are useful in keeping up the standard of morals and integrity. If it were not for an occasional example of individuals rising above the ordinary level, the influence of the multitude beneath it would gradually but surely sink the standard, and lead to serious deterioration.

According to appointment, Lord Trimmerstone, a few days after, came to Brigland, for the purpose of discussing with Markham the perplexities of the will. The meeting took place at the house and in the presence of Mr. Denver. When his lordship entered the room he held out his hand with great cordiality to Markham, and did not at all seem to feel his dignity abated by familiarity of address to one of whose understanding and moral worth he had the very highest opinion. So much good had fanaticism done to his lordship, as to render him less haughty in his outward demeanour, and to prompt to at least the semblance of courtesy.

“Mr. Markham,” said the Earl, “I have received a letter from you which has very much surprised me. Do I understand it aright?”

“The letter, my lord, which I sent to you, was simply to inform you that on looking into the affairs of your lordship’s late relative, Mr. John Martindale, I find, to my great astonishment, that his property far exceeds what by his will seemed his own apprehension of the extent of it; and therefore that the legacy which devolves to me as residuary-legatee, is much greater than the devisor apprehended or designed. Under these circumstances, therefore, I wrote to your lordship, as one of the nearest relatives of the deceased, to know what might be your will as to the disposal of the property.”

His lordship smiled and said, “My will, Mr. Markham, is, that you should take possession of whatever my cousin has bequeathed to you. For if your legacy had turned out to be less than you expected, I dare say that you

would not have applied to me to increase it; and now that it happens to be more, why should I consent to diminish it?"

"Had it been a little more or a little less, my lord, it would have been superfluous to take notice of it; but when I know that it was Mr. Martindale's intention to leave me only ten or fifteen thousand pounds, I cannot with any propriety avail myself of an absolute error which puts me in possession of a very large fortune. By this error, I am placed in a very unpleasant situation."

"But how are you sure, Mr. Markham, that this is an error? I see pretty well how the case stands. You have not sent for Mr. Price to meet us on this occasion: you had compassion on his feelings. I have long suspected that this man has not been acting quite honestly towards my late relative. I know that he expected to be residuary-legatee; and he has concealed, or at least endeavoured to conceal, from Mr. Martindale the real extent of his property: but you must have known that my cousin was a shrewd observant man; and is it not possible that having detected the trickery of this confidential gentleman, he may have resolved thus to disappoint him?"

"I can hardly admit that, my lord," replied Markham; "for Mr. Denver has told me that when this last will was made, Mr. Martindale expressed himself desirous of leaving to Mr. Price something more than would devolve to him as residuary-legatee; and I can hardly suppose that Mr. Martindale would have left him any thing at all had he detected him in such a transaction. I thank you, my lord, for the construction which you are liberally disposed to put on the will; but I cannot indeed, and I will not avail myself of what I consider as an absolute error."

Lord Trimmerstone listened seriously, looked thoughtfully, and at last, after a considerable pause, said, "Well, Mr. Markham, if it must be so it must; but I sincerely tell you, I am sorry that you are so scrupulous. You really put me into an unpleasant situation; for if it be not honorable for you to accept the property, I cannot think that I should be acting honorably in availing myself of your generosity."

"My lord," continued Markham, "you must not call it generosity. I am acting upon what I conceive to be a principle of simple justice. I might of course take advantage lawfully of the error; but law and justice so far differ, inasmuch as justice must depend upon circumstances; and the letter of a

written law cannot change according to varying events and unforeseen accidents.”

This was all very true and very proper. Lord Trimmerstone could not but admire and commend Markham’s spirit. On the other hand, Markham was astonished at the apparent change in Lord Trimmerstone’s manners, which were not as they had been, those of a proud and vulgar man of high rank, but civil, gentle, and courteous. The fanatic principle had really done his lordship some good. Nothing short of that could have checked him in his gambling course, or brought him from the society of his reckless and heedless companions. It is true that there was not a very complete, nor, in all respects, an entirely advantageous change in his manners. He had become somewhat morose and cynical; and from being delighted with excesses, he had become snarlingly disgusted at temperate pleasures; and he looked with a kind of moral contempt upon those characters which had stood, in a moral point of view, much higher than his own. But at all events, to get rid of ruinous and profligate habits is desirable, and worth some sacrifices.

The interview between Markham and the Earl of Trimmerstone terminated in the conclusion, that the former should take as his legacy a sum equal to that which was devised to Mr. Price; and that the Earl of Trimmerstone should appropriate, according to his own will and pleasure as heir-at-law, that part of the property which Markham contended had not been, morally speaking, devised to any one.

It is not designed that our readers should imagine that the Earl of Trimmerstone readily and easily consented to the above-named arrangements; but it is thought unnecessary to narrate at greater length the dialogue which took place between the parties on the subject. Every well-constituted and healthy mind will naturally and easily suppose what arguments Markham used, and by what objections they were met on the part of his lordship; and those who cannot imagine what was said would not understand, enjoy, or believe it, were it written out for them fully and literally.

Markham triumphed, or gained his point by virtue of possessing the strongest and best exercised mind of the two; but it was not without great reluctance that Lord Trimmerstone consented to regard that large residue of

his late relative's property as being undisposed of by the will: for his lordship had never been a mean or selfish man in the days of his profligacy and libertinism; and now that he had altogether changed his manner of life, and had seriously and soberly set about a reformation of his manners, and was amply supplied by his late relative's bequest with all the means which he could desire, he really did feel anxious to perform an act of generosity, and would willingly, for the sake of the reputation of the action, have surrendered the property in question to Markham, even had there been any doubt as to the legal accuracy of the bequest.

It was therefore a matter of concern to him that he had not been able to prevail on the barrister to take quietly the bequest which was his by law. The feeling of generosity was also strongly excited in his mind by means of sympathy with Markham. There was something so accurately and purely honorable in Markham's conduct on this occasion, that the force of it was irresistible; and a much less liberal mind than that of Lord Trimmerstone could not deliberately, coolly, and selfishly, have taken advantage of it. Nor was it till Markham had represented how much his mind was oppressed by the reflections which he anticipated would be cast on him by the world, that Lord Trimmerstone would consent to have any thing whatever to do with it. When, however, Markham made his lordship understand that the favor was conferred by him who received, and not by him who surrendered the doubtful bequest, then did he accept the disposal of the property in question.

CHAPTER XVIII.

“Had many a man such fortune as I,
In what a heaven would they think themselves.”

TAILOR.

It now became necessary for Markham to return to London; but he forgot not, in his way thither, to pay his dutiful respects to his parents. It is true that he had been placed in a very unpleasant situation, by the unexpectedly large bequest of the late Mr. Martindale; so that, however pleased he might be with an opportunity afforded him of being serviceable to his father, there was an alloy in that pleasure by means of the error in the will, or rather the misapprehension of the devisor. So mingled is the complexion of life's events, that our brightest days are not cloudless, and our darkest nights are not without some glimmering of a friendly star; and surely we may be content to have our joys a little abated, when by the same token we may anticipate that our sorrows will be somewhat alleviated.

After the interview which Markham had had with the Earl of Trimmerstone he felt his mind lightened of burden, and his spirits were greatly revived. And, considering that he wore the habiliments of sorrow, he carried on his countenance the aspect and look of much cheerfulness and composure of mind: for he was happy in the consciousness of having done that which he knew and felt to be right.

For Markham's sake and our own we must be allowed a short digression on the subject of bright faces and black suits. It is a piece of arrant foolery, and detestably silly cant, to make a sneering prating about the manner in which people bear or feel the loss of their friends or relatives. Sorrow is not to be measured by everlasting length of face: any one may assume dull, cold, melancholy looks, and heave sighs with every passing minute; but they who most regret the departed have oftentimes brighter and gayer looks than those who think they ought to be sorry, but feel that they are not. Markham regretted the loss of a good friend, of a cheerful companion, of a kind patron, and good adviser; but Markham had reason, good reason, to be pleased and satisfied with himself, that he had got rid of what might be a reproach, and that he possessed the means of saving his venerated and respected parents from the calamity of an old age of poverty and privation.

He spent a very short time with his father and mother, and then hastened to town to give immediate attention to his professional duties, and to his business as executor.

The intelligence of what was called his good fortune reached town long before him. Many and ridiculous were the rumors concerning the immense property which had devolved to him. So outrageous and unfounded were the tales told of his wealth, that had he been disposed to say it, he might have persuaded not a few that his riches were equal to or beyond the largest known property in the kingdom. At his chambers he found a myriad of cards. The little card-racks which Miss Henderson had painted for him were choked even to suffocation. Cards were on his chimney-piece, and cards were lying on his table. There also appeared a goodly host of prospectuses and syllabuses and proposals; and specimens and schemes; and catalogues and first numbers of new periodicals, and shop-bills, and addresses to the public, and cases of distress; and plans of estates, and notices of sale, and recommendatory letters and applications for places; and letters from coachmen, footmen, butlers, stable-boys, postilions, cooks, housemaids, housekeepers, kitchen-maids, valets, and a multitude of others too numerous to mention. There was a whole week's work before him to read them all.

At sight of all this he sighed, stared, shook his head and smiled; and he thought to himself, that it was a very good thing that he was not prime minister, for then he should be pestered with myriads more applications, and with matters not so easy to be disposed of.

His card-rack was a complete memorandum-book, for there he read the names of every individual whom he had ever seen or spoken to, and besides them a great many more. What could be more natural than for Mr. Jackson to say to Dr. Smith, "I am going to call on Markham?" And what could be more natural than for Dr. Smith to say, "I will go with you, and you may introduce me?" So then Markham's friend, Jackson, leaves his card, and Jackson's friend, Dr. Smith, leaves his card too.

Markham had never been of a covetous disposition; but now he felt most especially and peculiarly delighted, that there was no foundation for the intemperate and extravagant reports concerning his immense wealth.

A paradoxical friend of ours, who makes it a rule to believe every thing that all the world disbelieves, and to disbelieve all that the rest of the world believes, has started an ingenious theory concerning the "*fortunate youth*," who made such a noise some years ago. It is our friend's theory, that the story of his immense wealth was perfectly true, but that he found so much trouble in the disposal of it, and was annoyed by and threatened with such a host of applications, dependents, and acquaintances, that to get rid of all trouble he destroyed all the documents of his wealth, and sunk back for the sake of ease and quiet into his original insignificance and obscurity.

There is some plausibility in this theory; and it must be acknowledged that such was Markham's state of mind at those symptoms of botheration which he saw in his chambers, in his card-racks, and on his table, that it would not have been much to be wondered at, if, on the supposition that his wealth was really so great as it was reported to be, he had adopted the same plan to get rid of his annoyances.

Knowing, however, that so great a weight of responsibility did not rest upon him, he perused and glanced over these solicitations of attention with a much more calm and composed mind. Very few of them appeared to him deserving of notice; and as far as concerned the callers, whose cards adorned his racks, there were not above five per cent that needed any return. With respect to some of them he thought, rather humorously indeed, that it might be advisable to send them back to their owners accompanied with an affidavit sworn before the Lord Mayor, that Horatio Markham's legacy did not exceed twenty thousand pounds.

There was one place, however, where he resolved to pay his immediate respects, and for which no hint of card-leaving was necessary. This call was of course on the daughter of the late Mr. Martindale. Under present circumstances, such call was absolutely necessary; it was also to himself highly and truly agreeable. He had not forgotten, nor could he well forget Clara Rivolta. He was quite uncertain what place he now held in her esteem; he knew not what might be the effect of attempting to renew the acquaintance; and Markham was quite as delicate and fastidious in affairs of the heart as in affairs of the purse. He recollected also the stern-looking Father Martini, and he thought of the force of bigotry and fanaticism, and of the power which superstition has over many minds otherwise intelligent, rational, and amiable. There was in his mind also the thought that so far as

pecuniary matters were concerned, there was not now that objection which formerly there had been; and he thought also that Dr. Crack had taken Miss Henderson away from amongst the obstacles, and that Mr. Tippetson had very effectually disposed of himself: there remained therefore but one impediment, but that one might be insuperable.

Markham found the mother and daughter together as usual. But notwithstanding his previous determination to observe as accurately and attentively as possible the looks and manners of Clara and her mother, so as to draw some decisive inferences from them, he found himself too deeply interested and too much agitated to make any thing like a satisfactory observation. These ladies had of course heard something of the rumors which were so loudly and widely circulated respecting Markham's good fortune; but they were not by any means aware of the extent of Mr. Martindale's property; he might for aught they knew have left behind him fifty times the amount attributed to him. They would not, however, and could not believe the dirty insinuations that Markham had endeavoured, and but too successfully, to induce the old gentleman to bequeath to him an unreasonable and enormous share of his wealth.

Signora Rivolta knew, or fancied she knew, Markham's character too well to imagine it possible that he should have been guilty of any thing like meanness. In the language also of the letter which he had written to her on examining into the affairs of the deceased, there was obviously a strong and clear feeling of sincerity. The daughter of the late Mr. Martindale therefore received the executor and residuary-legatee with great cordiality, and the manners of confidence and friendship.

Markham was so far in self-possession as to see that he was not a totally unwelcome visitor. This discovery gave him some little confidence; but it was possible, and he thought of that possibility, that all suspicion of his designs towards Clara had vanished from the mind of Signora Rivolta. He began to speak about the departed, to state the nature of the property which he had left behind him. Signora Rivolta listened, more as a matter of duty than of interest or curiosity. Markham explained that some months must elapse before the property could be appropriated according to the will of the testator.

“Mr. Markham,” said the mother of Clara, “I am perfectly well satisfied that the business is placed in very proper hands, and I thank you for the trouble which you are taking. I hope, too, that my Lord Trimmerstone has not suffered you to give way to that romantic generosity which you spoke of in your letter to me.”

“Excuse me, madam,” replied Markham, “I do not consider that there was any thing romantic or even generous in the surrender to which you refer. I am desirous of preserving on my mind the recollection of my late worthy friend; and I could not dwell with satisfaction on this recollection, if I were sensible of having taken an advantage of an error to withhold from his family what of right belongs to them.”

“Such feelings are an honor to you, sir; but I cannot think that the Earl of Trimmerstone will take advantage of your scrupulous feelings. I know very little of his lordship, but I do not think him capable of such a want of generosity.”

“The Earl of Trimmerstone,” replied Markham, “is by no means deficient in generosity; that was never his character. But I am happy to say that I have been able to convince and persuade his lordship of the propriety of his taking upon himself the disposal of that property, which I consider, and which every honest man would consider, as unappropriated by its late possessor.”

The daughter of the late John Martindale was not slow in apprehending the feeling of Horatio Markham; and it was pleasant to Clara to hear such conversation between the barrister and her mother.

This conversation was presently interrupted by the entrance of that frightful-looking priest, whose inquisitor-like visage had so horrified Markham a short time before. The young man would have retired, but Signora Rivolta desired him to stay, and forthwith she introduced him by name to the dreaded priest. And when Father Martini spoke to the barrister, there was in his voice something not altogether unpleasant. There was solemnity and formality, but there was also kindness and even persuasiveness; and as Markham entered more particularly into conversation with him, there were in his sentiments and expressions strong manifestations of liberal feelings and comprehensive views. Now as Markham knew that Father Martini was zealous for the faith and discipline

of his own church, he also supposed that he must be grossly ignorant and illiberal. Markham's reasoning run thus: Father Martini professes a religion which is absurd and irrational; therefore Father Martini must be an absurd and irrational man: Father Martini professes a religion which assumes to be the only way of salvation; Father Martini, therefore, must suppose that all the rest of the world must be lost, and therefore he must be exceedingly illiberal. Older men than Markham, and men of greater pretence than he, have used the same leaky logic, without perhaps acknowledging it to themselves. Not frequently is it forgotten that nine times out of ten a man's character has more influence on his religion than his religion has on his character; as a man's shoe more frequently takes the shape of his foot, than his foot takes the shape of his shoe. But discussions of this nature are for shoemakers and theologians. So we proceed with our narrative.

Markham became rather pleased with the aged priest, and was also pleased with himself for his own liberality. The priest also was pleased with Markham, and thought him a very promising subject for conversion, on account of the great candour with which he spoke of the Catholic church, and the temperate manner in which he discussed divers points on which, in their interview, they happened to touch. The logic of the priest was not indeed much better than the logic of Markham; for candour towards an opponent is not always a symptom of conversion to the said opponent's creed or theory. There needs, in order to conversion, a strong principle of partisanship. This our young friend possessed not. Nevertheless, the two happened to be well pleased with each other; and there is some good, some religion even, in brotherly love. There is not a great superabundance of that article in the world; whenever therefore it does appear, it should be greeted well.

Markham, after a long conversation with Father Martini, retired. When he was gone, the priest observed to Signora Rivolta that he could not think that so ingenuous a young man could be a very obstinate heretic; but that, in all probability, if some few of his prejudices could be removed, he might be induced, as being a man of good sense, to embrace the Catholic faith. Precisely the same opinion did Markham entertain concerning Father Martini. It was a great pity, the barrister thought, that a man of such liberal feelings, enlightened views, and benevolent disposition, should have been brought up in a faith so contradictory to common sense, and so revolting to

the understanding, and all the best feelings of the mind. Both were thus happy in their own thoughts, and pleased with their own theories.

Clara Rivolta now listened with unusual interest and earnestness to the conversation which passed between her mother and Father Martini; and every moment was she in expectation, in trembling expectation, of hearing something said concerning the arrangement recommended, in order to keep herself in the steady profession of the Catholic faith. But the conversation took a more secular turn, and mention was made of the will of the late Mr. Martindale.

Signora Rivolta was a little surprised at the very particular and earnest manner in which Father Martini inquired concerning the will and its particulars.

“You should have inquired, father,” said she, “when the gentleman who has just left us was present. He is one of the executors, and is in possession of all the several specifications and items of the will.”

“And who,” said the priest, “is inheritor of the greater part of the property?”

“That,” replied the lady, “is doubtful. From the little that I can recollect of the will, I believe it was Mr. Martindale’s design to give the greater part of his property to the Earl of Trimmerstone; but, in consequence of some error or misapprehension as to the extent and value of the property, I understand that a very large proportion, perhaps nearly half, devolves to Mr. Markham as residuary-legatee.”

“And was he related to Mr. Martindale?”

“No, father,” replied Signora Rivolta; “but an accidental acquaintance led Mr. Martindale to think very highly of this gentleman’s moral and intellectual qualities; and observing his disinterestedness and good feeling in various instances, it was the intention of my late father to leave him a legacy; and the young gentleman has shown a proper, and perhaps an almost refined and fastidious feeling on the subject.”

Hereupon Signora Rivolta went on to state the particulars, of which the reader is already in possession. Father Martini on this looked thoughtful; and several times he was about to speak, but he checked himself, and at last he abruptly said, “Of what does the property consist?”

“That I cannot tell you,” said the daughter of the late John Martindale; “but Mr. Markham will be here again to-morrow, and you may learn from him all that you wish to know on the subject.”

CHAPTER XIX.

“I can inform you by experience now,
How great a satisfaction 'tis to find
A heart and head eas'd of a weighty care.”

TUKE.

On the following morning the priest was again at the house of Signora Rivolta, and met, as he expected, with the barrister. Their greeting on the present occasion was far more agreeable than it had been before. They had a mutual good opinion of each other; and the old man could not but be pleased with the tale which he had heard the preceding day of the honorable and upright conduct of Markham. Father Martini addressed himself, after some common-place observations, very seriously and in set terms to the executor.

“Mr. Markham, I have heard from this worthy lady of an act of justice on your part which does you great credit:” Markham bowed. The priest continued: “I understand that you conscientiously have offered to surrender the property to the heir-at-law.”

“I have so, sir,” replied Markham, “and for that purpose I have had an interview with the Earl of Trimmerstone, who is the heir-at-law; and as soon as the business can be arranged, the property will be delivered to him: for I consider that, as heir-at-law, he has a right to all that is not otherwise expressly willed.”

“And can you tell me,” continued Father Martini, “what relation the Earl of Trimmerstone is to the late John Martindale?”

Before Mr. Markham could answer that question, the conversation was interrupted by the announcement and arrival of a stranger; and who should that stranger be, but the Right Hon. the Earl of Trimmerstone himself! It is not the first time in the experience of humanity that a person, whose name has been mentioned in conversation, has suddenly and unexpectedly made his appearance. When his lordship therefore entered the apartment, the

conversation concerning him ceased; and Father Martini was under the necessity of suspending his curiosity relative to his proximity of relationship to the late John Martindale.

Signora Rivolta looked as if she expected that the priest would take his departure on the arrival of Lord Trimmerstone; but Father Martini looked as if he was fully resolved to stay and hear all that might pass. There is something very awkward in that arrangement of civilised society, which allows us to ask persons to come into our houses, but does not permit us to dismiss them when we please. In consequence of having no regular form for this, sometimes important, purpose, we are under the necessity of having recourse to the roundabout plan of giving hints more or less broad; and sometimes these are not understood, and sometimes they are given so clumsily as to partake very strongly of the nature of rudeness. People are not invited into their neighbours' houses merely by hints; and why should they be sent away by mere hints?

Lord Trimmerstone, however, did not seem to regard the presence of Father Martini, but expressed himself very glad to meet with Markham. "I have been at your chambers, Mr. Markham," said his lordship, "and was directed to you here. Otherwise," turning to Signora Rivolta, "I should have taken the liberty to have appointed a meeting here."

The lady bowed, as signifying that such meeting would not have been taking too great a liberty.

"The business on which I have called is concerning this perplexing affair of my late worthy relative's will. I am sorry to find that our good friend here is so very scrupulous in the matter of his legacy; but he insists upon it that I, as heir-at-law, must have the disposal of it. The time was, madam, that I could have spent this and as much more in folly and vanity. I have now done with the world. I hate it. I abhor it. I have been deceived and disappointed. I have felt and I have seen, and I am disgusted with its vanities. I cannot use this property, and I will not abuse it. It needed only a certain ceremony to have been performed many years ago to have constituted you heir-at-law to this property, now fastidiously refused by our friend here. It was not your fault that that ceremony was not performed."

Father Martini stayed to some purpose: for at this point he interrupted the speaker, saying, with great earnestness and energy of manner, "That

ceremony was performed. I myself performed it; and I have in my possession proofs of it.”

It was very natural, at such a speech as this, that every person in the room should start and stare, and stand speechless for a few seconds, and then say, “Indeed!” The effect, however, was not quite so electric. The individual most concerned in the discovery seemed the least moved of the party. The priest then went on to state the particulars, and produce his proofs. These proofs might have been satisfactory or not: there was no disposition in any of the party to question them. The documents were slightly looked over by his lordship; who was pleased to congratulate Signora Rivolta on the discovery, and to acknowledge her as a relative. His lordship then smiling, said, “I feel myself very happy in this discovery, inasmuch as it relieves me of a burden, and saves me from the use of those arguments and persuasions, which I might otherwise have been compelled to use to persuade you, madam, to suffer me to relinquish in your favor that property which our scrupulous friend refuses to accept. I am satisfied that my late relative did not consider his foreign marriage valid, or I am sure he would have made a different disposal of his property. I will not, however, carry my scruples so far as to affect a relinquishment on this ground of that which has been bequeathed to me. The questionable surplus is, however, clearly yours.”

His lordship then took his leave of the party and returned to Trimmerstone, where he amused himself with rebuking the follies of his own past life, and enjoying the high consideration which his rank gave him among his dependents and tenants. But he felt himself dissatisfied with the world, and hardly knew how to discriminate between the regret of past pleasures and the remorse for past follies.

There now arose another difficulty; and Markham had now to use to Signora Rivolta the same arguments which he had previously used to the Earl of Trimmerstone. Signora Rivolta had said that Lord Trimmerstone ought not to have accepted the surrender; with what propriety could she, after that avowal, accept it herself?

During the discussion which took place after Lord Trimmerstone had departed, the mother of Clara observed, by the frequent direction of Markham’s looks, that his thoughts were still on that subject what they had ever been. She saw and knew that there was also a responsive feeling on the

part of her child, and it was in her resolution to yield to that affection. Without speaking decisively on the subject of the property which now solicited her acceptance, she desired that another meeting might take place on the following day. This was hint enough for Markham to take his leave. The venerable priest departed at the same time. He was mightily pleased with the liberal and good feeling of the young heretic, and was not without some hopes of converting him. They walked together towards Markham's chambers.

It was late, and Markham pressed the old gentleman to dine with him. And their conversation grew extremely animated after dinner, and the priest was so communicative that he actually told Markham of the intention of proposing, and that immediately, to place Clara in a religious house on the continent. The enamoured barrister found that no time was to be lost; and though it might not be altogether consonant to his exquisitely refined notions of disinterestedness, he resolved to take the earliest opportunity of offering his hand to Clara. There is a point beyond which disinterestedness and generosity are not expected to proceed. Markham saw that he was now at that point; and as soon as his guest had left him, he wrote a note to Signora Rivolta, and another to Clara.

These notes were received early on the following morning; and soon after them, and before the arrival of Father Martini, the barrister was at the house of Signora Rivolta, and whether it was accidental or intentional, Clara was alone in the drawing-room. Markham's notes were on the table. The young gentleman saw the notes, and that they had been opened; and he knew by the countenance of the young lady that they had been read, and he thought that they had produced the effect designed. We have made very particular inquiries of both parties as to what was said by each, but we could not persuade them to tell us: in fact, they both protested that they did not know. We are sorry for this, because it would have made a beautiful scene, and have filled a chapter in a style perfectly original.

From this moment the interest of the narrative ceases; and we have only to say, that the parents of Markham lived to see their son enjoy the fruits of integrity and intellect; and that Signora Rivolta was more leniently disposed towards heretics than Father Martini thought perfectly safe; and for fear he should witness her apostacy, he returned to Italy. Colonel Rivolta may be seen any day during the season smoking a cigar in Pall Mall.

THE END.

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